

AGREEMENT

between

UNIT 208

and the

STATE OF MINNESOTA

July 1, 2023 through June 30, 2025

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ARTICLE 1 - PREAMBLE

This Agreement is made and entered into this 11th day of October 2023, by and between the State of Minnesota, hereinafter referred to as the EMPLOYER, and the Minnesota State Employees Union, AFSCME, Council No. 5, AFL-CIO, and its affiliated Local Unions, and unless otherwise noted in this Agreement, "UNION" hereinafter refers to the Minnesota State Employees Union, AFSCME, Council No. 5, AFL-CIO. This Agreement has as its purpose the promotion of harmonious relations between the parties; the establishment of an equitable and peaceful procedure for the resolution of differences; and the establishment of rates of pay, hours of work, and other conditions of employment; and to express the full and complete understanding of the parties pertaining to all terms and conditions of employment.

If the parties mutually agree during the term of this Agreement, this Agreement may be supplemented by such additional provisions relating to departmental issues as the parties to this Agreement deem appropriate. Failure of the parties to reach such supplemental agreement shall not be subject to the impasse procedures as set out in the Minnesota Public Employment Labor Relations Act.

Any agreement which is to be included as a part of this Agreement must so indicate, must be reduced to writing, and must be signed by the parties to this Agreement.

The parties may mutually agree, in writing, to correct misspelled words, mathematical errors, and other clerical errors in this Agreement.

ARTICLE 2 - RECOGNITION

Section 1. Existing Units.

The Employer recognizes the Union as the exclusive bargaining representative of all the employees included in the bargaining unit certified by the Bureau of Mediation Services, 81-PR-1959-A. The composition of this unit is as set forth in Appendix A of this Agreement.

To be covered by this Agreement, employees must work fourteen (14) or more hours per week (or thirty-five (35) percent of the normal work week in the employee's bargaining unit) and be employed more than sixty-seven (67) working days in any calendar year. Employees shall be placed in the bargaining unit as soon as the Appointing Authority anticipates that they will work sufficient hours and days to be eligible for bargaining unit inclusion.

Section 2. Disputes.

The assignment of newly created classes to a bargaining unit or the reassignment of existing classes to a different bargaining unit shall be subject to the determination of the Director of the Bureau of Mediation Services in accord with the provisions of the Minnesota Public Employment Labor Relations Act.

Disputes which may occur over the inclusion or exclusion of new or changed job positions shall be referred to the Bureau of Mediation Services for expedient resolution. The decision of the Bureau of Mediation Services shall prevail during or pending any appeal(s) from such decision.

Section 3. Union Exclusivity.

The Employer will not, during the life of this Agreement, meet and confer or meet and negotiate with any individual employees or with any other employee organization with respect to the terms and conditions of employment of the employees covered by this Agreement except through the Union or its authorized representatives. The Employer will not assist or otherwise encourage any other employee organization which seeks to bargain for employees covered by this Agreement.

ARTICLE 3 - UNION SECURITY

Section 1. Checkoff.

The Employer shall deduct the bi-weekly membership dues from the earnings of those employees who authorize such deductions in writing. The Union shall submit such authorizations and certify the amounts to be deducted at least seven (7) days prior to the end of the payroll period for which the deductions are to be effective and the deductions shall continue in effect until canceled by the employee through the Union. The aggregate deductions of all employees, together with a detailed record, shall be remitted to the Union office within ten (10) days after such deductions are made.

Section 2. Exclusivity.

No other employee organization shall be granted payroll deduction of dues for employees covered by this Agreement.

Section 3. Employee Lists.

The Employer shall report to the Union the information on all employees added to or removed from the bargaining unit in the seniority unit(s). The report shall be made on a bi-weekly payroll period basis and shall be transmitted no later than one (1) week following the end of each payroll period.

Upon the request of the Union, the Employer shall provide the Union with a listing of all employees in the bargaining unit represented by the Union.

Section 4. Indemnity.

The Union agrees to indemnify and hold the Employer harmless against any and all claims, suits, orders, or judgments brought or issued against the Employer as a result of any action taken or not taken as a result of a request of the Union under the provisions of this Article including fair share deductions and remittances.

Section 5. Bargaining Unit Security.

Upon the request of the Local Union, the Appointing Authority shall provide the Local Union general information on the use of non-employee labor.

ARTICLE 4 - SENIORITY

Section 1. Definitions.

- A. **State Seniority.** "State Seniority" is defined as the length of employment with the State of Minnesota since the last date of hire.
- B. **Classification Seniority.** The length of service in a job classification with the State of Minnesota, beginning with the date an employee begins to serve a probationary appointment.
 - 1. **Bumping, Demotions, Transfers.** Classification Seniority in a class to which an employee bumps, demotes or transfers shall include Classification Seniority in all higher or equal related classes in positions represented by the Union or in confidential positions. The employee may use such related class Classification Seniority to exercise a bump, transfer or demotion in lieu of layoff.
 - 2. **Reallocations.** Classification Seniority for employees whose positions are reallocated to a lower or equal class, shall include service in the class from which they were reallocated, regardless of whether or not the higher or equal class is a "related" class in accord with "E" below.
 - 3. **Seniority Credit for Trainee Time.** An employee appointed to a Corrections Officer trainee classification for three (3) or more weeks or an employee working under a provisional appointment as a Corrections Officer 1, Classification Seniority shall be credited to the date of hire at the time an employee begins to serve a probationary period in a related classification.
 - a. Effective July 30, 1991, in the case of an employee who previously served as an intermittent Corrections Officer 1 without a break in service, Classification Seniority shall be determined by totaling the number of hours worked prior to the full-time status, converting these hours to eight (8) hour work days, and increasing the employee's Classification Seniority by the resulting number of work days.
 - b. In the case of an employee hired after July 30, 1991 in an intermittent, temporary, emergency, or student worker capacity, and who had no break in service prior to being employed in a trainee classification for three (3) or more weeks, State Seniority shall be determined by totaling the number of hours worked prior to their employment in the trainee capacity, converting these hours to eight (8) hour work days, and increasing the employee's seniority by the resulting number of work days.
 - 4. **Seniority Credit for Canine Corrections Officers.** An employee appointed to a Corrections Canine Officer classification, who must voluntarily or involuntarily surrender their canine, shall have their Classification Seniority as a Corrections Canine Officer credited towards Corrections Officer 2 Classification Seniority.

5. **Temporary Appointments.** An employee who serves a temporary appointment in a class and receives a probationary appointment to that class shall have Classification Seniority credited to the beginning of the temporary appointment provided there was no break in service between the appointments.
6. **Trial Period and Non-certification.** An employee who returns to a former class under the conditions of Article 12, Section 10 E or F shall accrue seniority as if continually employed in the former class.
- C. **Forfeiture and Interruptions.** Seniority shall be forfeited when an employee separates from State employment. Time on the layoff list or an approved leave of absence shall not constitute an interruption in seniority. Classification Seniority shall include all service in confidential position(s) but shall exclude service in positions not represented by the Union.
- D. **Seniority Units.** "Seniority Unit" is defined as all employees in bargaining units represented by the Union in each agency as listed in Appendix G.
- E. **Related Classes.** "Related Classes" are those classes which are similar in the nature and character of the work performed and which require similar qualifications.

Section 2. Seniority Earned Under Previous Collective Bargaining Agreements.

Employees shall continue to have their seniority calculated as provided for under the immediately preceding negotiated Collective Bargaining Agreement or Memoranda of Understanding except as specifically provided elsewhere in this Agreement.

Section 3. Seniority Rosters.

No later than November 30 and May 31 of each year Appointing Authorities shall prepare and electronically post seniority rosters for each seniority unit. The rosters shall list each employee in the order of Classification Seniority and reflect each employee's date of Classification Seniority, date of State Seniority, and the date of Classification Seniority and class title for all classes in which the employee previously served.

In addition, the Appointing Authority shall list the class options (if any) for which an employee is qualified. If an employee disagrees with the class options listed, the employee shall have thirty (30) calendar days from the date of the posting of the seniority roster to notify Minnesota Management and Budget (MMB). MMB shall determine whether the employee meets the minimum qualifications for the class option.

The rosters shall also identify the type of appointment if other than full-time unlimited.

When two (2) or more employees have the same Classification Seniority dates, seniority position shall be determined by State Seniority. Should a tie still exist, seniority shall be determined by length of prior State service. Should a tie still exist, seniority shall be determined by lot.

Section 4. Appeals.

Employees shall have thirty (30) calendar days from the date of the posting or from return to work from a leave of absence of more than fourteen (14) calendar days to notify the Appointing Authority of any disagreements over the Seniority Roster. Appeals are limited to changes since the previous posting. The Appointing Authority may make corrections to the Seniority Roster during the thirty (30) calendar day appeal period. After the close of the thirty (30) calendar day appeal period, the Appointing Authority shall post an addendum of any changes to the Seniority Roster.

Between postings, the Local Union and the Appointing Authority may agree in writing to changes after the appeal period. Such changes shall be incorporated in the next Seniority Roster and be so identified.

ARTICLE 5 - HOURS OF WORK

Section 1. General.

- A. **Consecutive Hours.** The regular hours of work each day shall be consecutive except that they may be interrupted by unpaid lunch periods. No split shifts will be implemented without the mutual agreement of the Local Union and the Appointing Authority. Each party may cancel such agreement with thirty (30) days written notice to the other party.
- B. **Work Shift.** A work shift is defined as a regularly recurring period of work with a fixed starting and ending time, exclusive of overtime work. The Appointing Authority may change the starting or ending times of an existing shift up to and including two (2) hours after providing the notice period required in Section 1(C).
- C. **Schedule Posting.** Work schedules showing the shifts, days, and hours of all employees shall be posted at least fourteen (14) calendar days in advance of their effective day. All schedule changes shall require such a fourteen (14) day notice except for the three situations referenced in Section 2B 3 which require a twenty-eight (28) day notice. In addition, employees being returned to work as part of a workers' compensation placement are not entitled to a fourteen (14) day notice.

If requested by the employee, the employee may change days, shifts, or hours of work with the approval of their supervisor provided such change does not result in the payment of overtime. A voluntary change of shifts under this section results in the payment of overtime only when it places the employee's hours of work in excess of those permitted by the Fair Labor Standards Act.

Work schedules for employees who are not yet assigned to a permanent post shall be posted at least four (4) calendar days in advance of the effective date of change. Employees not yet assigned to permanent posts after six (6) months must receive fourteen (14) days' notice. Upon request of the Local Union, the Appointing Authority will provide a list of current staff who are not assigned to a permanent post.

Employees who successfully bid or promote to a position are not required to receive a fourteen (14) day notice of the shift change in order to expedite the position filling process.

Prior to changing established days off, the Appointing Authority shall discuss the change with the Local Union.

- D. **Shift Exchanges.** Employees who are qualified and capable may mutually agree to exchange days, shifts and/or hours of work with the advance approval of the watch commander(s) or the employee's scheduling supervisor, which shall not be unreasonably denied and provided such change does not result in the payment of overtime. A voluntary change of shifts results in the payment of overtime only when it places the employee's hours of work in excess of those permitted by the Fair Labor Standards Act (FLSA). The watch commander('s) or the employee's scheduling supervisor('s) signature of approval shall be obtained prior to the occurrence of the exchange. Such exchanges shall be subject to the following conditions:

1. All requests for exchanges must be reduced to writing on a Department of Corrections form and must state the exact days, shifts and/or hours of both employees that are involved in the shift exchange request(s).
2. All shift exchange requests shall be completed within twelve (12) weeks, unless approved in advance by the Appointing Authority.

Each officer may participate in up to a maximum of thirty-three (33) shift exchanges per fiscal year. Shift exchanges are also limited to ten (10) per calendar month.

3. No employee may agree to a shift exchange that would result in the employee working more than eighteen (18) consecutive hours.
4. Employees failing to work on the payback day or any part thereof due to illness of self or others will be treated in accordance with Article 9, Sick Leave.
5. Failure to work the payback day or any part thereof shall constitute just cause for discipline and shall be subject to the provisions of Article 16, Discipline and Discharge.
6. **Cancellation.** Cancellation of a previously approved shift exchange can only occur if neither part of the exchange has occurred and is subject to the following provisions:
 - a. **Within Fifteen (15) Calendar Days:** Upon mutual agreement of all parties involved, including the Appointing Authority, a previously approved shift exchange may be cancelled within fifteen (15) calendar days of the first exchanged shift.
 - b. **Fifteen (15) Calendar Days or Longer:** The Appointing Authority may cancel any previously approved shift exchange for reasons including, but not limited to, transfers, separation, death, military leave, FMLA leave, or other types of statutory leave, so long as the cancellation occurs fifteen (15) calendar days or more in advance of the first exchanged shift.

7. Either employee may cancel a previously approved shift exchange upon written notice to the watch commander(s) or the employees' scheduling supervisor(s), so long as the cancellation occurs fifteen (15) calendar days or more in advance of the first exchanged shift.
 - a. Once an exchange is approved, no proration of vacation or holidays shall be applied to the exchange unless the employee would be prorated for reasons other than the exchange;
 - b. neither employee may subsequently agree to exchange with another employee which would alter the original exchange;
 8. Employees working on a shift exchange shall be allowed to compete for available vacation time consistent with Article 8, Vacation.
 9. Exchanges shall be to a shift, not a specific post. The Appointing Authority retains the right to assign the employee to any work area and/or post necessary to meet the needs of the facility.
 10. Exchanges involving initial probationary employees must be initiated by the probationary employee and must be approved by the Captain/designee or the employee's scheduling supervisor.
- E. **Meal Periods.** Employees shall normally be granted an unpaid lunch period of no less than thirty (30) minutes nor more than sixty (60) minutes near the midpoint of each work shift. Employees shall not normally be required to work during their meal period. Those employees who by nature of their work are required to remain in a duty status during their meal period may, with the approval of their supervisor, either shorten their work day by the length of the meal period or else have their meal period counted as time worked and be paid at the appropriate straight time or overtime rate, whichever is applicable.
- F. **Rest Periods.** All employees shall be granted a fifteen (15) minute paid rest period during each four (4) hours of regularly scheduled work. Employees who are scheduled for a shift of four (4) hours and who are scheduled to receive an unpaid meal period shall not be entitled to a rest period. Employees who work beyond their regular quitting time into the next shift shall receive a fifteen (15) minute paid rest period before they start work on the next shift whenever it is anticipated that such work shall require approximately two (2) hours. The Appointing Authority retains the right to schedule employee rest periods to fulfill the operational needs of the various work units. Rest periods may not be accumulated nor be taken at the beginning or end of the employee's shift. With the supervisor's approval, rest periods may be used to extend the meal period.
- G. **Reporting Time and Pay.** Unless notified otherwise at least two (2) hours in advance of the scheduled starting time, any employee who is scheduled to report for work and who reports as scheduled shall be assigned to at least three (3) hours of work. If work is not available, the employee may be excused from duty and paid for three (3) hours at the employee's

appropriate rate. If the employee begins work but is excused from duty before completing three (3) hours of work the employee shall be paid for three (3) hours at the employee's appropriate rate. (See Article 15, Layoff and Recall, Section 6, Limited Interruption of Employment.)

Section 2. Continuous and Extended Operations.

- A. **Definitions.** Any employee or group of employees engaged in a work operation for which there is regularly scheduled employment on a twenty-four (24) hour a day, seven (7) day a week basis.
- B. **Work Day, Work Week/Period.**
1. **Work Day.** The normal work day shall consist of eight (8) or ten (10) hours of work within a twenty-four (24) hour period, exclusive of a duty-free lunch period.
 2. **Work Week/Period.** The normal work week/period shall consist of four (4) consecutive ten (10) hour days or five (5) consecutive eight (8) hour days, totaling forty (40) hours.
 3. **Changes in Work Day or Work Week/Period.** To depart from the normal work day or work week/period, or to change the normal work week between a four (4) or five (5) day week, or to establish a shift that is not currently being used by that Appointing Authority in the interest of efficient operations, to meet needs of the public or an Agency, to provide for more beneficial services, or to better use facilities or the working force, no less than twenty-eight (28) calendar days' notice will be given to the Local Union. Upon request, the Appointing Authority will discuss the new schedules with the Local Union affording it an opportunity to express its views, prior to the posting period required in Section 1C. When schedules are changed the new schedule shall be posted pursuant to Section 1C. Existing schedules may remain in effect.
- C. **Turnaround Time.** The number of hours between scheduled shifts shall not be less than seven and one-half (7-1/2) hours. Violations shall be compensated at the rate of time and one-half for all hours worked on the shift following the hours of rest.
- D. **Work Shift.** The provisions of Section 1B shall not apply to rotating shifts.
- E. **Fixed Night Shifts.** Appointing Authorities shall maintain a fixed night shift schedule for employees unless the Appointing Authority and the Local Union have agreed to maintain rotating schedules.
- F. **Daylight Savings Time.** Employees required to work more than eight (8) hours on an eight (8) hour shift or more than ten (10) hours on a ten (10) hour shift due to the change from daylight savings time to standard time shall be paid for the additional hour worked at the rate of time and one-half (1-1/2). Employees required to work less than eight (8) hours on an eight (8) hour shift or less than ten (10) hours on a ten (10) hour shift due to the change from standard time to daylight savings time shall be paid for the actual hours worked.

Employees may use vacation time or compensatory time to make up for the one (1) hour lost. Employees whose schedules normally include an unpaid meal period may forgo that meal period in order to decrease the time lost. Employees in the first six (6) months of employment who would be eligible to accrue vacation, may be advanced one (1) hour of vacation time which shall either be deducted from their vacation leave balance, or deducted from their last paycheck if the employee is separated prior to accruing vacation.

ARTICLE 6 - OVERTIME

Section 1. Overtime Hours.

Except as otherwise provided in this section, all hours worked in excess of the established work day, before or after an employee's regular scheduled shift, or on any regularly scheduled day off, shall be considered overtime.

All paid vacation time, paid holidays, paid sick leave, compensatory time off, and paid leaves of absence shall be considered as "time worked" for purposes of this Article.

Section 2. Overtime Rates.

All overtime hours shall be compensated at the rate of time and one-half (1-1/2).

Section 3. Distribution of Overtime.

A. General Provisions.

1. For purposes of overtime, Corrections Officer 1, 2, and 3 are considered one classification.
2. Employees who are utilizing or scheduled to utilize sick leave, shall not be considered qualified and capable for the purpose of determining overtime eligibility for the scheduled day in which the employee is utilizing sick leave.
3. Employees who are scheduled not to work because of approved vacation leave; compensatory time; floating holiday; shift exchange; paid or unpaid leave; shall not be considered qualified and capable for purposes of determining overtime eligibility. However, the only exception to the sentence above is for the employee's regularly scheduled days off during the period of time when the employee is utilizing vacation, compensatory time, floating holiday, or shift exchange.
4. Employees utilizing or scheduled to utilize vacation leave, compensatory time, floating holiday, paid or unpaid leave shall remove their name from the overtime list and shall not be considered for overtime. Overtime distribution errors caused by an employee's failure to remove their name from the overtime list are not grievable.
5. Employees who sign up on the overtime availability list will be allowed to decline a voluntary overtime assignment two (2) times during a pay period. Thereafter, their name will be removed from the list for the duration of the pay period.

6. Employees may remove their names from consideration for a voluntary overtime assignment on a specific day and/or shift prior to being offered.
7. Unless notified otherwise in advance of the scheduled starting time of the scheduled overtime assignment, any employee who is scheduled to report for work and who reports as scheduled shall be assigned at least two (2) hours work. If work is not available, the employee may be excused from duty and paid for two (2) hours at the employee's appropriate rate. If the employee begins work but is excused from duty before completing two (2) hours of work, the employee shall be paid for two (2) hours at the employee's appropriate rate.
8. The Appointing Authority shall not be required to cut in on work progress in order to comply with the requirements of this Section. In emergencies, notwithstanding this Section, the Appointing Authority may assign someone to temporarily meet the emergencies regardless of seniority or overtime distribution.
9. An employee who is forced to work overtime onto a following shift shall be provided, at their request, an institution meal, providing the overtime assignment is expected to last four (4) or more hours.
10. If a Corrections Officer voluntarily works overtime on a regularly scheduled day off, the Officer cannot be forced to work overtime on the next subsequent shift. In the event the Officer is notified that they are being forced to work overtime, the Officer shall inform the person assigning such overtime that they are currently working a voluntary overtime shift.

B. Scheduled Overtime.

1. **Definition.** Scheduled overtime is overtime which is assigned more than one (1) shift in advance of the shift on which the overtime assignment is needed.
2. **Process.**
 - a. Scheduled overtime shall be offered on the basis of State seniority to the most qualified, capable, and available employee on the overtime availability list.
 - b. A scheduled overtime availability list will be established two (2) weeks prior to the pay period by the employees indicating on the overtime availability list the calendar day(s) and shift(s) they are willing to work an overtime assignment. Sign up on the overtime availability list is cut off at midnight at the end of the pay period for use in the subsequent pay period.

C. Unscheduled Overtime.

1. **Definition.** Unscheduled overtime is overtime which is assigned during the immediately preceding shift that the overtime assignment is needed.

2. Process.

- a. Overtime shall be offered on the basis of State seniority to the most qualified and capable employee who is working on the immediately preceding shift and who volunteers during the first hour of their shift.
 - b. In the event the above list is exhausted, the overtime offer will be made on the basis of State seniority to the most qualified, capable, and available employee on the scheduled overtime availability list.
 - c. In the event the supervisor has exhausted the overtime distribution requirements set forth above in B. Scheduled Overtime and C. Unscheduled Overtime, the overtime shall be distributed at the discretion of the supervisor.
 - d. In the event all capable employees decline overtime, the Appointing Authority shall have the right to assign overtime based upon inverse order of State seniority among capable employees. However, no employee shall be assigned forced overtime based on inverse order of State seniority more than once every six (6) calendar days.
3. After completing any required reports and/or duties, any employee directly involved in a critical incident shall not be assigned unscheduled overtime on the immediate subsequent shift.

Section 4. Liquidation.

- A. **General.** At the employee's option, overtime hours shall be paid in cash or assigned to a compensatory bank. This decision shall be recorded on the timesheet each pay period. Should an employee fail to indicate on the time report, liquidation shall be in cash.
- B. **Compensatory Bank.**
1. **Size of Bank.** The maximum amount of hours that may be in the compensatory bank at any given time is two hundred fifty (250) hours.
 2. **Hours Worked in Excess of Bank.** All overtime hours worked over the maximum amount of hours in B (1) shall be compensated in cash.
- C. **Cash Liquidation.** Overtime hours which are liquidated in cash shall be liquidated on the same or immediately following payroll abstract for the payroll period in which it is earned. Employees who choose cash liquidation may still use compensatory time within the same work week/applicable work period. In this case, all overtime hours shall be liquidated in cash except that those overtime hours worked within a work week/applicable work period may be placed in a compensatory time bank at the discretion of the Appointing Authority. If no agreement between the employee and the supervisor can be reached to take the time off, the overtime must be paid in cash.

- D. **Compensatory Time Liquidation in Cash.** Once per fiscal year, the Employer may offer the employee the ability to liquidate all or a portion of the compensatory bank with thirty (30) calendar days advance written notice to the Local Union. Such liquidation shall be done in a uniform manner for all employees of the seniority unit. The Appointing Authority and the Local Union may agree in a local meet and confer to uniform liquidation on some basis other than seniority unit.

An employee transferring to the service of another Appointing Authority, accepting a position not represented by the Union, separated from State service, or placed on permanent layoff, shall have unused compensatory time paid in cash.

Any cash payment of unused compensatory time shall be at the average regular rate of pay received by the employee during the last three (3) years of the employee's employment or their regular rate of pay as of the date of payment, whichever is greater.

- E. **Use of Compensatory Time.** Employees requesting compensatory time off with fourteen (14) or more calendar days' notice to the Appointing Authority shall be permitted to use such time if it does not unduly disrupt the operations of the Appointing Authority, or require payment of additional salary costs. Requests for use of compensatory time off with less than fourteen (14) calendar days' notice to the Appointing Authority or for weekend shifts may be granted at the discretion of the Appointing Authority.

The Appointing Authority may schedule compensatory time off for an employee with more than fifty (50) hours in the compensatory bank by providing them no less than fourteen (14) calendar days' notice prior to the specified scheduled time off. The employee may not be scheduled below fifty (50) hours. Compensatory time scheduled off by the Appointing Authority shall be in increments of at least the employee's normal work day.

If it is necessary to limit the number of employees in a work unit using compensatory time at the same time, conflicts shall be resolved on the basis of State Seniority within or among class(es) as determined by the Appointing Authority.

Section 5. Call In and Call Back.

Call In. Employees called to work prior to their regularly scheduled shift shall be paid at the appropriate overtime rate until their regular shift begins provided that the employee shall receive a minimum payment equal to one (1) hour at straight time or the time worked at the appropriate overtime rate, whichever is greater. Employees shall work the balance of their regular shift at their regular rate of pay.

Call Back. Employees called back to work after their regularly scheduled shift and who were not assigned such work by the end of their last worked shift prior to the assigned work shall be paid a minimum of two (2) hours at the appropriate overtime rate. Employees who are called back to work shall be reimbursed

mileage for driving to and from their work station and their home if they use their own vehicle.

Section 6. On Call.

An employee shall be in an on-call status if the employee's supervisor has instructed the employee, in writing, to remain available to work during an off duty period. An employee who is instructed to be in an on-call status is not required to remain in a fixed location, but must leave word where they may be reached by telephone or by an electronic device.

An employee who is instructed to remain in an on-call status shall be compensated for such time at the rate of fifteen (15) minutes straight time for each one (1) hour of on-call status. Such compensation shall be limited to four (4) hours of straight time pay per calendar day.

An employee called to work while in on-call status shall be compensated as provided in Section 6 of this Article. An employee shall not receive on-call pay for hours actually worked. No employee shall be assigned to on-call status for a period of less than eight (8) consecutive hours. An employee shall have the choice of receiving on-call pay in cash or compensatory overtime.

An effort shall be made to distribute on-call work as equally as possible among employees in the same job class and in the same work area who are capable of performing the work and who request the on-call work. If practicable, employees shall be notified of the on-call assignment at least one (1) month in advance.

Section 7. Release From Work.

Employees who work an overtime or call in assignment which precedes or overlaps a regular shift may be excused from duty, with the approval of the supervisor, after the completion of eight (8) hours work, without loss of premium pay for the call in or overtime assignment.

Notwithstanding emergencies, no employee may be forced nor volunteer to work more than seventeen (17) consecutive hours. Additionally, no employee may be forced nor volunteer to work more than two (2) consecutive days of seventeen (17) hours in a pay period.

Notwithstanding an emergency, an employee who works seventeen (17) consecutive hours has the right to use vacation, compensatory time, or leave without pay for any scheduled shift within the twenty-four (24) hours of the end of the seventeen (17) hour work period. If the employee chooses to work their regularly scheduled shift within the aforementioned twenty-four (24) period, they shall be compensated at the employee's regular overtime rate.

Section 8. Duplication of Payment.

Overtime hours worked shall not be paid more than once for the same hours worked under any provision of this Agreement.

ARTICLE 7 - HOLIDAYS

Section 1. Eligibility.

All employees in bargaining units covered by this Agreement shall be eligible employees for purposes of this Article.

Section 2. Holidays.

The following days shall be considered as holidays:

New Year's Day
Martin Luther King Day
Presidents' Day
Memorial Day
Juneteenth
Independence Day
Labor Day
Veterans Day
Thanksgiving Day
Day after Thanksgiving
Christmas Day

- A. **Floating Holiday.** All employees except intermittent, emergency, and temporary employees shall also receive one (1) floating holiday each fiscal year of this Agreement. However, intermittent employees shall receive one (1) floating holiday each fiscal year of this Agreement if they complete ninety-one (91) working days in that fiscal year. Unless waived by the supervisor, the employee must request the floating holiday at least fourteen (14) calendar days in advance.

The Appointing Authority may limit the number of employees that may be absent on any given day subject to the operational needs of the Appointing Authority.

Any conflicts for requested holidays shall be resolved on the basis of State Seniority within the employee's work unit. The Appointing Authority shall make a reasonable effort to approve the requested holiday. Floating holidays may not be accumulated. An employee who has not requested the floating holiday by March 1 of each fiscal year or by thirty (30) calendar days prior to the end of an employee's season shall be scheduled to take a floating holiday on a day chosen by the Appointing Authority or be paid for the floating holiday in cash at the option of the Appointing Authority. See Article 8, Vacation, Section 3, A.

Section 3. Shift Work.

For purposes of this Article, when a work shift includes consecutive hours which fall in two (2) calendar days, that work shift shall be considered as falling on the calendar day in which the majority of hours in the shift fall. When a work shift includes an equal number of consecutive hours in each of two (2) calendar days, that work shift shall be considered as falling on the first of the two (2) calendar days.

Section 4. Holiday Pay on Day Off.

When any holiday falls on an employee's regularly scheduled day off, the employee shall accrue twelve (12) hours of vacation for every holiday which occurs during the pay period.

Section 5. Holiday Pay Entitlement.

To be entitled to receive a paid holiday, an employee must be in payroll status on the normal workday immediately preceding and the normal work day immediately following the holiday(s).

Any employee who dies or is mandatorily retired on a holiday or holiday weekend shall be entitled to be paid for the holiday(s).

Eligible intermittent employees shall receive a holiday if they work the day before and the day after the holiday or if they work on a holiday. If the intermittent employee works on the holiday, holiday pay shall be paid for all hours actually worked, not to exceed eight (8) hours for a single holiday. If the intermittent employee does not work on the holiday, holiday pay shall be in accord with the schedules set forth in Appendix B1.

Section 6. Payment for Work on a Holiday.

- A. **Scheduling.** If more employees in a work unit would normally be scheduled or are scheduled to work on a holiday than necessary, and there are conflicts in requests for the holiday off, the Appointing Authority shall grant the holiday off on the basis of State Seniority within or among class(es) as determined by the Appointing Authority, provided that the Appointing Authority retains the right to schedule employees with the ability and capacity to perform the job.

Of the employees who do not request the holiday off at least twenty-one (21) calendar days prior to the holiday, the most senior employees based on State Seniority, within or among classes as determined by the Appointing Authority, shall be assigned to work the holiday.

- B. **Payment.** Any employee who works on a holiday shall be compensated at the straight time rate for all regular hours worked and shall accrue an additional twelve (12) hours of vacation for every holiday which occurs during the pay period. Further, it is understood that any employee who is scheduled to work on a holiday, must use paid leave to secure the day off.

Notwithstanding the above, for sick leave usage occurring in conjunction with a holiday(s), the employee shall be required to utilize vacation leave in lieu of sick leave.

Section 7. Religious Holidays.

When a religious holiday, not observed as a holiday, as provided in Section 2 above, falls on an employee's regularly scheduled work day, the employee shall be entitled to that day off to observe the religious holiday. An employee who chooses to observe such a religious holiday shall notify the employee's supervisor in writing at least twenty-one (21) calendar days prior to the religious holiday. This notice requirement does not apply when the employee chooses to use the floating holiday to observe the religious holiday.

Time to observe religious holidays shall be taken without pay except where the employee has sufficient accumulated vacation leave or accumulated compensatory time, has used a floating holiday, or, by mutual consent, is able to make up the time.

ARTICLE 8 - VACATION LEAVE

Section 1. General Conditions.

Eligibility. All employees, except intermittent employees, emergency employees, and temporary employees shall be eligible employees for purposes of this Article. However, intermittent employees shall accrue vacation leave after completion of sixty-seven (67) working days in any twelve (12) month period. Connect 700 Program employees shall be considered eligible during their on-the-job demonstration process for purposes of this Article. Hours of vacation leave used by the Connect 700 Program employee during their on-the-job demonstration process shall not be counted toward the seven hundred (700) hours. Additionally, eligible employees appointed to emergency or temporary status from a layoff status shall continue to be eligible to accrue vacation leave.

Section 2. Length of Service Requirements/Accruals.

- A. **Accrual Rates.** All eligible employees shall accrue vacation pay according to the following rates:

Length of Service Requirement	Rate Per Full Payroll Period
0 through 5 years	4 working hours
After 5 through 8 years	5 working hours
After 8 through 12 years	7 working hours
After 12 through 18 years	7-1/2 working hours
After 18 through 25 years	8 working hours
After 25 through 30 years	8-1/2 working hours
After 30 years	9 working hours

- B. **Length of Service Requirements.** For purposes of determining changes in an employee's accrual rate, Length of Service Requirement shall not include periods of suspension, or unpaid non-medical leaves of absence, that are more than one full payroll period in duration. However, accrual dates shall not be adjusted for employees on military leave or FMLA qualifying leave. Length of service requirement shall only include an employee's service in a vacation eligible status. This method shall not be used to change any Length of Service Requirements determined prior to July 30, 1991.

Changes in accrual rates shall be made effective at the beginning of the next payroll period following completion of the specified Length of Service Requirement.

- C. **Crediting Accruals.** Pre-service Corrections Officer trainee service and any other Department of Corrections trainee service that is unbroken and precedes a probationary appointment does not apply toward vacation accumulation except as modified below.

For the purposes of determining an employee's length of service credit for vacation accruals, the Appointing Authority shall use the date the employee was appointed to a trainee classification, provided the employee began accruing vacation immediately after completing training. However, for trainees who had accrued vacation prior to being appointed to a trainee classification, the employee's length of service credit for vacation accruals will include any time when vacation was previously accrued. In the case of an employee who had previously served as an intermittent Corrections Officer, the employee's length of service credit for vacation accruals will be the State Seniority date.

- D. **Proration.** Eligible employees being paid for less than a full eighty (80) hour pay period shall have their vacation accruals pro-rated in accord with the schedule set forth in Appendix C.
- E. **Reinstatement of Accrual Rate.** An eligible employee who is reinstated or reappointed to State service within four (4) years of the date of resignation in good standing or retirement shall accrue vacation leave with the same credit for Length of Service that existed at the time of such separation.

Upon request, employees of the Legislative Branch who are appointed to the Executive Branch within four (4) years of the date of resignation in good standing or retirement, shall receive credit for their length of service in the Legislative Branch that existed at the time of such transfer or separation for vacation accrual purposes provided that the employee was in an eligible status as defined in Section 1A of this Article when employed by the Legislative Branch. Such employees shall begin accruing vacation leave based on this method effective at the beginning of the first payroll period following the effective date of this Agreement.

Employees of the University of Minnesota, the Minnesota Historical Society and the Metropolitan Council who transfer or who are appointed to State service within four (4) years of the date of resignation in good standing or retirement, shall accrue vacation leave with the same credit for length of service that existed at the time of such transfer or separation. Employees who previously worked for any of the above organizations can be credited with their previous service, if they make application to their Appointing Authority within one hundred twenty (120) calendar days following the effective date of this Agreement. The credit toward additional accrual rates will be effective the pay period in which the employee applies.

- F. **Reinstatement of Vacation Balance.** Effective December 21, 2001, employees of the Legislative Branch who are appointed to the Executive Branch without a break in service may be allowed to bring any accumulated but unused vacation leave with them provided that it does not exceed two hundred and seventy-five (275) hours.

Employees in the unclassified service of the State who are subsequently appointed to a position in the classified service, or vice versa, without an interruption in service shall have their accumulated but unused vacation leave balance posted to their credit in the records of the Appointing Authority.

- G. **Maximum Accruals.** Employees may accumulate unused vacation to any amount provided that once during each fiscal year each employee's accumulation must be reduced to two hundred and seventy-five (275) hours or less. This must be accomplished on or before the last day of the fiscal year. If not, the amount of vacation shall be automatically reduced to two hundred and seventy-five (275) hours at the end of the fiscal year.

Employees on a military leave under Article 10 shall earn and accrue vacation leave as though actually employed, without regard to the maximum accumulation set forth above. Vacation earned in excess of two hundred and seventy-five (275) hours shall be taken within two (2) years of the date the employee returns from military leave.

Section 3. Requesting and Using Vacation.

- A. Each fiscal year, employees must use their floating holiday prior to utilizing vacation leave.
- B. Every reasonable effort shall be made by the Appointing Authority to grant employee vacation requests insofar as adequate scheduling of the work unit permits. Each Appointing Authority will initially post available vacation hours twenty-six (26) weeks in advance. The initial posting period for these available vacation hours will be for seven (7) days. Vacation requests for posted hours shall be submitted within the seven (7) day posting period. Employees who are scheduled to work varying shifts shall submit vacation requests for the shift which contains the majority of their scheduled hours. Vacation leave hours shall not be used during the payroll period in which the hours are accrued.
- C. All remaining available vacation hours shall continue to be posted in subsequent posting period(s). Any remaining open vacation hours fourteen (14) days and under may or may not be approved by the Appointing Authority based on scheduling needs. With the agreement of the Local Union, the Appointing Authority may establish alternative deadlines for vacation requests within the twenty-six (26) week posting period.
- D. Conflicts involving vacation approval of posted vacation hours shall be resolved on the basis of state seniority within the employee's work unit except that vacation requests for four (4) hours or more will take precedence over requests of less than four (4) hours. All requests shall be either approved or denied within three (3) days after the end of the posting period.
- E. Employees shall not be permitted to cancel or alter their approved vacation unless notice is given at least thirty (30) calendar days prior to its scheduled commencement. Upon mutual agreement of the Local Union and the Appointing Authority, this requirement may be waived. Employees may cancel up to twenty-five (25) vacation days each fiscal year. Any vacation hours that become available due to vacation cancellations will be posted the following posting period and all subsequent posting periods. Any available vacation hours

fourteen (14) days and under may or may not be approved by the Appointing Authority based on scheduling needs.

- F. Approved vacations may be canceled when a Department of Corrections employee has transferred to another Department of Corrections seniority unit. Once an employee has been awarded a bid for a position in another work area, the employee shall submit any vacation request(s) to their supervisor in the new work area.
- G. No employee shall request more vacation hours than the hours the employee currently has in their vacation or compensatory bank, plus the amount of vacation accruals which could be earned by the date of the requested vacation, including all other previously approved vacation. The employee may use actual compensatory time banked, an available floating holiday and accrued vacation leave, or a combination of these accruals to cover the approved time off.
- H. No vacation requests shall be denied solely because of the season of the year but shall be dependent upon meeting the staffing needs of the agency.

Section 4. Vacation Charges.

Employees who use vacation shall be charged only for the number of hours they would have been scheduled to work during the period of absence.

Employee vacation accruals earned while on paid leave may be used by the employee with the approval of the supervisor without returning to work prior to the use of such accrued leave.

Should an employee become ill or disabled while on vacation, vacation leave shall be changed to sick leave, effective the date of the illness or disability, upon notice to the employee's supervisor. In the event of the disability or hospitalization of the employee's spouse, minor or dependent children/step-children/foster-children, or parent/step-parent living in the same household of the employee, or illness of a minor child whether or not the child lives in the same household of the employee, and the employee's attendance is necessary while the employee is on vacation, vacation leave shall be changed to sick leave, effective the date of the disability or hospitalization, upon notice to the employee's supervisor. Upon such notice, employees may be requested by the Appointing Authority to furnish a medical statement from a medical practitioner. If requested by the Appointing Authority, such statements shall be provided as soon as possible after the illness, disability or hospitalization occurs.

Section 5. Work During Vacation Period.

No employee shall be required to work during the employee's vacation once the vacation request has been approved. Vacation time shall commence at the end of the employee's last scheduled shift and conclude at the beginning of the employee's next scheduled shift.

Section 6. Vacation Transfer and Liquidation.

An employee transferring to the service of another Appointing Authority shall have accumulated vacation leave transferred and such leave shall not be liquidated. However, if an

employee moves to a vacation-ineligible position, their vacation shall be liquidated. Employees who separate from State service prior to completion of six (6) months of continuous service are not eligible for vacation liquidation.

The Appointing Authority shall liquidate vacation (and severance as described in Article 18) into an individual MSRS Health Care Savings Plan except in the following circumstances:

- In the case of layoff or death, such liquidation shall be made in cash.
- Employees who do not meet the criteria for the HCSP, or who have been exempted from participation in the HCSP by the plan administrator or whose combined vacation and severance payout total less than five hundred dollars (\$500), such liquidation shall be made in cash.

Except in the event of the death of the employee, liquidation shall not exceed two hundred sixty (260) hours.

Seasonal employees shall be allowed to liquidate all, none or a portion of their accumulated vacation balances in cash prior to their seasonal layoff. After notice to the Local Union, and upon mutual agreement of the employee and Appointing Authority, employees facing temporary layoff shall be allowed to liquidate all, none or a portion of their accumulated vacation balances in cash prior to their temporary layoff. If there is no mutual agreement, the seasonal employee's vacation balance shall be liquidated in cash.

Section 7. Vacation Donation Program.

Employees shall be able to donate accrued vacation leave for the use of employees who have exhausted their sick leave as permitted by Minnesota Statutes Chapter 43A.1815. An employee may donate up to forty (40) hours of accrued vacation leave each fiscal year to the sick leave account of one or more state employees.

ARTICLE 9 - SICK LEAVE

Section 1. Eligibility.

All employees, except intermittent employees, emergency employees, and temporary employees shall be eligible employees for purposes of this Article. However, intermittent employees shall become eligible employees for purposes of this Article after completion of sixty-seven (67) working days in any twelve (12) month period. Connect 700 Program employees shall be considered eligible during their on-the-job demonstration process for purposes of this Article. Hours of sick leave used by the Connect 700 Program employee during their on-the-job demonstration process shall not be counted toward the seven hundred (700) hours. Additionally, eligible employees appointed to emergency or temporary status from a layoff status shall continue to be eligible to accrue and use sick leave.

Section 2. Sick Leave Accrual.

All eligible employees shall accrue sick leave at the rate of four (4) hours per pay period of continuous employment beginning with their date of eligibility.

Eligible employees being paid for less than a full eighty (80) hour pay period shall have sick leave accruals pro-rated in accord with the schedule set forth in Appendix D.

Employees on a military leave under Article 10 shall earn and accrue sick leave as though actually employed, pursuant to M.S. 196.26.

An eligible employee who is reinstated or reappointed to State service within four (4) years of the date of resignation in good standing or retirement shall have accumulated but unused sick leave balance restored and posted to the employee's credit in the records of the Appointing Authority.

An employee who receives severance pay shall have their sick leave balance restored at sixty percent (60%) of the employee's accumulated but unused sick leave balance (which balance shall not exceed nine hundred (900) hours) plus eighty seven and one half percent (87½%) of the employee's accumulated but unused sick leave bank.

Upon request, employees of the Legislative Branch who are appointed to the Executive Branch within four (4) years of the date of resignation in good standing or retirement shall have accumulated but unused sick leave posted to the employee's credit.

Employees in the unclassified service of the State who are subsequently appointed to a position in the classified service, or vice versa, without an interruption in service shall have their accumulated but unused sick leave balance posted to their credit in the records of the Appointing Authority provided such sick leave was accrued in accord with the personnel rules or the provisions of this Agreement.

A Local Union and an Appointing Authority may develop sick leave incentive programs with the approval of the Union and the Employer.

Section 3. Sick Leave Use.

An employee shall be granted sick leave with pay to the extent of the employee's accumulation for absences necessitated by the following conditions:

A. Employee.

1. illness or disability, including the period of time that a doctor certifies a female employee unable to work because of pregnancy.
2. medical, chiropractic, or dental care.
3. exposure to contagious disease which endangers the health of other employees, clients, or the public.

- B. **Others.** Sick leave granted under paragraphs 1 and 4 below shall be for such reasonable periods as the employee's attendance may be necessary. Leaves granted under 2 and 3 below shall be limited to not more than five (5) days to arrange for necessary nursing care for members of the family or birth or adoption of a child.
1. illness of a spouse, dependent children/step-children/foster-children (including wards, and children for whom the employee is legal guardian), or parent/step-parent who is living in the same household of the employee; illness of a minor child whether or not the child lives in the same household of the employee.
 2. birth or adoption of a child.
 3. to arrange for necessary nursing care for members of the family, as specified in Section 3B 1 above.
 4. to accompany spouse, minor or dependent children/step-children/ foster children (including wards or children for whom the employee is legal guardian) to dental or medical appointments.
 5. with fourteen (14) calendar days' notice, to accompany parents to dental or medical appointments not to exceed twenty-four (24) hours per calendar year.
 6. See also letter dated August 15, 2014, regarding employee usage of accrued sick leave for the illness and injury of certain family members.

Sick leave hours shall not be used during the payroll period in which the hours are accrued.

Employees using leave under this Article may be required to furnish a statement from a medical practitioner upon the request of the Appointing Authority when the Appointing Authority has reasonable cause to believe that an employee has abused or is abusing sick leave.

The Appointing Authority may also request a statement from a medical practitioner if the Appointing Authority has reason to believe the employee is not physically fit to return to work or has been exposed to a contagious disease which endangers the health of other employees, clients or the public.

Requests to furnish a statement from a medical practitioner may be oral or written. Oral requests shall be reduced to writing as soon as practicable. The written requests shall state the reason(s) for the request as well as the period of time that the employee will be required to furnish the statement. All such requests shall be prospective.

Any sick leave documentation which shows the specific reasons for use shall be restricted to persons on a need to know basis.

Employee sick leave accruals earned while on paid leave may be used by the employee with the approval of the supervisor without returning to work prior to the use of accrued sick leave.

An employee on extended sick leave who has used all of their sick leave accumulation and who still meets the criteria for sick leave use, shall have the right to use the vacation leave to the extent of the employee's vacation accumulation. Such employee shall not be required to exhaust vacation leave accruals prior to an unpaid disability leave under Article 10.

The abuse of sick leave shall constitute just cause for disciplinary action.

Any medical examination required by the Appointing Authority under Article 11, Section 3D shall be at no cost to the employee and the Appointing Authority shall receive a copy of the medical report. Upon request, the employee shall receive a copy of the medical report.

Section 4. Requests.

Whenever practicable, employees shall submit written requests for sick leave, in a manner determined by the Appointing Authority, in advance of the period of absence. When advance notice is not possible, employees shall notify their supervisor by telephone or other means at the earliest opportunity. Supervisors shall respond promptly and shall answer all written requests in writing. Written requests for sick leave shall only state which category of leave specified in Section 3A and B is to be used. However, the supervisor may orally inquire into the specific reason for the request.

Section 5. Sick Leave Charges.

An employee using sick leave shall be charged for only the number of hours they were scheduled to work during the period of sick leave. Holidays that occur during sick leave periods shall be paid as a holiday and not charged as a sick leave day. For additional information, see Article 7, Section 6(B).

Any employee incurring an on the job injury shall be paid the employee's regular rate of pay for the remainder of the work shift. Any necessary sick leave charges for employees so injured shall not commence until the first scheduled work day following the injury.

Section 6. Transfer to Another Appointing Authority.

An employee who transfers or is transferred to another Appointing Authority without an interruption in service shall carry forward accrued and unused sick leave.

ARTICLE 10 - LEAVES OF ABSENCE

Section 1. Application for Leave.

All requests for leaves of absence or extensions thereof shall be submitted in writing by the employee to the employee's immediate supervisor as soon as the need for such leave or extension is known. Extension may be requested orally with prompt written confirmation when the need for the submission is not known in time for a written request. The request shall state the reason for and the anticipated duration of the leave of absence.

Section 2. Authorization for Leave.

Authorization for or denial of a leave of absence shall be furnished to the employee in writing by the supervisor. All requests for a leave of absence shall be answered by the supervisor promptly, including, upon request by the employee, a statement of the Appointing Authority's intent regarding whether or not the employee's position will be filled permanently. No leave of absence request shall be unreasonably denied and no employee shall be required to exhaust vacation leave accruals prior to a leave of absence except as required under Section 4F, Personal Leave.

When the Appointing Authority approves an unpaid leave of absence for an employee, the Appointing Authority shall advise the employee in writing of the steps the employee must take to continue insurance coverages.

When more than one (1) employee requests a discretionary leave and the Appointing Authority determines that a discretionary leave or leaves may be granted, such leave or leaves shall be granted on the basis of State Seniority to the most senior employee making such request, provided the Appointing Authority may deny such request of a senior employee(s) if the Appointing Authority determines that the senior employee(s) has special skills or knowledge that are needed to function properly and efficiently. No employee shall be permitted to exercise seniority more than once in any five (5) year period to receive priority consideration for a discretionary leave of absence. However, this restriction on the use of seniority would not preclude the employee from being granted additional leaves of absence where seniority for such leave is not an issue. The Appointing Authority reserves the right at any time to deny or limit the number of discretionary leaves as provided above.

Section 3. Paid Leaves of Absence.

Paid leaves of absences granted under this Article shall not exceed the employee's normal work schedule.

- A. **Bereavement Leave.** The use of a reasonable period of sick leave shall be granted in cases of death of the spouse, the domestic partner, or parents and grandparents of the spouse, or the parents/step-parents, grandparents, guardian, children, grandchildren, brothers, sisters, wards, or stepchildren of the employee. In addition, bereavement leave limited to one (1) regularly scheduled shift shall be granted in the case of the death of the parent of the employee's minor child.

Time off to attend the funeral of individuals not listed above shall be charged against vacation leave if the employee's supervisor has approved the time off and such approval shall not result in any additional costs.

The supervisor shall make a reasonable effort to adjust the hours of an employee in order to permit their attendance at the funeral of a co-worker.

Employees who experience a stillbirth or the death of their child within the time period they would otherwise be eligible to use Paid Parental Leave (“PPL”) under the conditions of Section 3O may use PPL.

- B. **Court Appearance Leave.** Leave shall be granted for appearance before a court, legislative committee, or other judicial or quasi-judicial body in response to a subpoena or other direction of proper authority for job related purposes other than those instituted by the employee or the exclusive representative. Leave shall also be granted for attendance in court in connection with an employee's official duty, which shall include any necessary travel time. Such employee shall be paid for the employee's regular rate of pay but shall remit to their Appointing Authority the amount received, exclusive of expenses, for serving as a witness, as required by the court.

Unpaid leave shall be granted for other appearances before a court, judicial or quasi-judicial body in response to a subpoena.

- C. **Educational Leave.** Leave shall be granted for educational purposes if such education is required by the Appointing Authority.
- D. **Jury Duty Leave.** Leave shall be granted for service upon a jury. “Service upon a jury” includes time when the employee is impaneled for actual service or is required by the Court to be present for potential selection for service. During any other time, the employee shall report to work. Employees whose scheduled shift is other than a day shift shall be reassigned to a day shift during the period of service upon a jury.
- E. **Military Leave.** In accordance with Minnesota Statutes 192.26, up to fifteen (15) working days leave per calendar year shall be granted to members of the National Guard or military or naval reserves of the United States or of the State of Minnesota who are ordered or authorized by the appropriate authorities to engage in training or active service.

The employee, upon receiving written notification of duty, must notify their immediate supervisor within three (3) calendar days of receiving that written notification.

Employees who are Guard/Reserve members shall be allowed to work their regular days off and use the time to attend military drill weekends. When possible, notice of orders will be given to the supervisor fourteen (14) days in advance and orders will be submitted when available.

- F. **Voting Time Leave.** Any employee who is eligible to vote in any statewide primary or general election, at any election to fill a vacancy in the office of a representative in Congress, or tribal election, may absent themselves from work for the purpose of voting during the election day provided the employee has made prior arrangements for such absence with their immediate supervisor.
- G. **Emergency Leave.** As provided by Minnesota Statutes 43A.05 Subd. 4, the Commissioner of Minnesota Management and Budget, after consultation with the Commissioner of Public

Safety, may excuse State employees from duty with full pay in the event of a natural or human-made emergency, if continued operation would involve a threat to the health or safety of individuals. Absence with pay shall not exceed sixteen (16) working hours at any one time unless the Commissioner of Minnesota Management and Budget authorizes a longer duration.

- H. **Blood Donation Leave.** Leave shall be granted to employees to donate blood at an onsite and Appointing Authority endorsed program.
- I. **Election Judge Leave.** Upon twenty (20) calendar days advance request, leave shall be granted for purposes of serving as an election judge in any election.
- J. **Transition Leave.** At the Appointing Authority's discretion an employee under notice of permanent layoff may be granted up to one hundred and sixty (160) hours of paid leave, ending at the date of layoff. Hours of leave may be granted at any time throughout the layoff notice period and shall not be subject to the Application and Reinstatement provision of this Article.
- K. **Transition Leave as a Result of Non-Certification.** An employee who is non-certified from one Appointing Authority and who has rights to a previous position with another Appointing Authority may be placed on paid transition leave by that receiving Appointing Authority for up to forty (40) hours from the effective date of the non-certification.
- L. **Investigatory Leave.** See Article 16, Discipline and Discharge.
- M. **Paid Administrative Leave.** At the Appointing Authority's discretion, an employee may be placed on paid administrative leave for up to thirty (30) calendar days when the employee has been involved in a critical incident, when the employee is being stalked or is a victim of domestic violence, when the employee's presence in the workplace poses a risk to the employee or the organization, or while recovering from the side effects of an AIDS cocktail. The Commissioner of Minnesota Management and Budget may authorize the leave to be extended for a period not greater than another thirty (30) calendar days, unless the Local Union has agreed to an extension(s) of longer duration. It is the Appointing Authority's policy to return an employee to active duty status as soon as is practical and prudent.
- N. **Hostage Leave.** Persons employed in a correctional institution who suffer a disabling injury as a direct result of a life-threatening hostage incident, who otherwise meet the stated criteria contained therein, may be authorized by the Appointing Authority for injury on duty pay on the basis of psychological or mental illness suffered therein without demonstration of physical injury.

An Appointing Authority may require the employee to be examined by a psychiatrist, physician or other qualified medical practitioner to verify the employee's medical condition, need for such time off, and the length of time needed. In no case shall injury on duty pay extend beyond two-hundred forty (240) hours.

O. **Paid Parental Leave.**

1. **Length of Leave.** Paid parental leaves of absence of up to six (6) consecutive weeks shall be granted to eligible state employees who request such leave following the birth or adoption of a child.

2. **Eligibility.** Employees are eligible if they meet eligibility criteria for Family and Medical Leave Act ("FMLA") leave, which generally means the employee has been employed by the Employer for twelve (12) months and has worked at least 1,250 hours during the year immediately preceding the leave. Paid parental leave ("PPL") is available to employees who experience the following qualifying events:

- an employee or their spouse/partner gives birth to the employee's child;
- a child is placed in the employee's home for adoption; or
- a child is placed in the employee's home to adjudicate parentage in cases of surrogacy when the employee is the intended parent.

3. **Use.** Eligible employees must complete PPL within six (6) months of the qualifying event. At the Appointing Authority's discretion, employees may be allowed intermittent or reduced schedule use of leave, which must be completed within twelve (12) months of the qualifying event. PPL not used within the required timeframe shall not be carried over or cashed out.

4. **Interaction with Other Leaves.** Paid parental leave will run concurrently with any unpaid leave(s) that parents may be entitled to under other provisions of this Agreement or provided by law. Employees shall not receive other types of paid leave provided by this Agreement (e.g., sick, vacation, compensatory time) for hours for which they are receiving PPL.

Section 4. Unpaid Leaves of Absence.

A. **Unclassified Service Leave.** Leave may be granted to any classified employee to accept a position in the unclassified service of the State of Minnesota.

B. **Educational Leave.** Leave may be granted to any employee for educational purposes.

C. **Medical Leave.** Leaves of absence up to one (1) year shall be granted to any permanent employee who, as a result of an extended illness or injury, has exhausted their accumulation of sick leave. Upon the request of the employee, such leave may be extended. An employee who becomes disabled while on layoff or other leave of absence shall have the right to apply for and receive medical leave status so the employee becomes eligible for disability pension.

D. **Parenthood Leave.** A Parenthood leave of absence shall be granted to a natural parent or an adoptive parent, who requests such leave in conjunction with the birth or adoption of a

child. The leave shall commence on the date requested by the employee and shall continue up to six (6) months provided, however, that such leave may be extended up to a maximum of one (1) year by mutual consent between the employee and the Appointing Authority. An employee may commence this leave at any time in the first three (3) months following the birth or adoption of a child.

- E. **Military Leave.** In accordance with Minnesota Statutes 192.261 and federal law, leave shall be granted to an employee who voluntarily or involuntarily enters into active military service, active duty for training, initial active duty for training, inactive duty training or full-time National Guard duty in the armed forces of the United States for the period of military service, not to exceed five (5) years.

At an employee's request, an employee on unpaid military leave shall be allowed to supplement such leave with vacation leave in accordance with law. Any vacation leave used must have been accumulated prior to the start of the military leave.

- F. **Personal Leave.** Leave may be granted to any employee, upon request, for personal reasons. No such leave shall be granted for the purpose of securing other employment, except as provided in this Article. Employees may be required to exhaust vacation leave accruals prior to personal leaves of absence of less than ten (10) working days.
- G. **Precinct Caucus or Convention.** Upon ten (10) days advance request, leave shall be granted to any employee for the purpose of attending a political party caucus or political convention.
- H. **Union Leave.** Upon the written request of the Union, leave shall be granted to employees who are elected or appointed by the Union to serve on a Union Negotiating Team. Local Union Stewards, Local Union Officers, Union Officers or other employees who may be elected or appointed by the Union or Local Union to perform duties for the exclusive representative shall be granted time off, provided that the granting of such time off does not adversely affect the operations of the employee's department or agency. Employees who have been granted unpaid leave under this paragraph shall be allowed to use vacation leave, floating holiday, or compensatory time to attend a Council 5 convention or conference or a Council 5 Policy Committee or Policy Committee Executive Board meeting.

Upon the written request of the Union, leave shall be granted to employees who are appointed full time representatives of the Union. Leave time for service on a Union Master Negotiating Team/Assembly, supplemental negotiations, Agency meet and confers, and attendance at meet and confers established by this Agreement shall be considered as paid leave for purposes of vacation leave and sick leave accrual. Leave time for service on a Union Master Negotiating Team and attendance at meet and confers established by this Agreement shall also be considered as paid leave for purposes of eligibility for holiday pay.

- I. **Leave for Related Work.** Leave not to exceed one (1) year may be granted to an employee to accept a position of fixed duration outside of State service which is funded by a

government or private foundation grant and which is related to the employee's current work.

- J. **Elder Care Leave.** Leave may be granted to any employee, upon request, to care for or to arrange for care for parents of the employee or the employee's spouse.

Section 5. Statutory Leaves.

A list of statutory leaves is contained in Appendix L to this Agreement. Statutory leaves are subject to change or repeal and are not grievable or arbitrable under the provisions of Article 17 of this Agreement.

Section 6. Reinstatement after Leave.

An employee on an approved leave of absence is required to contact the Appointing Authority if an extension is being requested. Failure to contact the Appointing Authority about an extension prior to the end of the approved leave or fails to return at the conclusion of an approved leave, shall be deemed to be a voluntary resignation, and the employee shall be severed from State service. Upon return from an unpaid military leave, employees will be returned to work in accordance with the Uniformed Services Employment and Reemployment Rights Act (USERRA). Any employee returning from an approved leave of absence as covered by this Article shall be entitled to return to employment in their former position or another position in their former class/class option in their seniority unit, or a position of comparable duties and pay within their seniority unit. Employees returning from extended leaves of absence (one (1) month or more) shall notify their Appointing Authority at least two (2) weeks prior to their return from leave. Employees may return to work prior to the agreed upon termination date with the approval of the Appointing Authority. Employees returning from an unpaid leave of absence shall be returned at the same rate of pay the employee had been receiving at the time the leave of absence commenced plus any automatic adjustments that would have been made had the employee been continuously employed during the period of absence. (See also Article 12, Section 7A, regarding return from a leave of absence to a vacancy.)

ARTICLE 11 - JOB SAFETY

Section 1. General.

It shall be the policy of the Appointing Authority to provide for the health and safety of its employees by providing safe working conditions, safe work areas, and safe work methods. In the application of this policy, the prevention of accidents, the creation and maintenance of clean, sanitary, and healthful restrooms and eating facilities shall be the continuing commitment of the Appointing Authority. The employees shall have the responsibility to use all provided safety equipment and procedures in their daily work and failure to use this equipment and procedures may result in disciplinary action. Employees shall cooperate in all safety and accident prevention programs. Alleged violations of OSHA standards are not subject to the grievance procedure.

Section 2. Local Safety Committee.

There shall be established in each department and/or principal place of employment (for example: institutions) a joint Safety Committee composed of Appointing Authority representatives selected by the Appointing Authority and employee representatives selected by the Union, one from each bargaining unit represented by the Union but at a minimum, a total of two (2) representatives. If more than one (1) exclusive representative exists in the department or principal place of employment, the Union will attempt to work out an arrangement with the other exclusive bargaining representative(s) to insure their input to the Committee. The chair of the Committee shall be appointed by the Appointing Authority. The Appointing Authority may consider having co-chairs, one management and one labor. The Safety Committee shall meet at least quarterly or as may be legally required and meetings shall be scheduled by the Safety Officer. Additional meetings may be called by the Safety Officer or by the Local Union or Appointing Authority as the need may arise. All Safety Committee meetings shall be held during normal day shift working hours on the Appointing Authority's premises and without loss of pay.

The function of the Safety Committee will be to review reports of property damage and personal injury accidents and alleged hazardous working conditions, to provide support for a strong safety program, to review building security issues, and to review and recommend safety policies to the Appointing Authority. Normally, the Committee shall acknowledge in writing receipt of reports of alleged hazardous working conditions within thirty (30) calendar days of their submission. A copy of the Committee's recommendations, if any, to the Appointing Authority regarding the disposition of such reports shall also be provided to the individual who filed the report with the Committee. In addition, the Safety Committee will provide the filing party with a copy of the Appointing Authority's response and/or proposed actions, if any. At the request of the Local Union or Safety Committee, hazard assessments will be made available for review.

Each Local Safety Committee in a facility with a laundry and/or a kitchen shall perform a routine heat survey to check temperature, humidity, and exhaust and fan systems in the laundries and kitchens. The Employer agrees to coordinate technical assistance to the Local Safety Committee upon request.

A Local Union Officer or Safety Committee member shall be entitled to participate in any work site safety inspections conducted by the Safety Committee or by State or Federal OSHA Inspectors without loss of pay. Notice of such inspections or safety related inspections by other public officials shall be promptly given to the Local Union President and to the Chairperson of the Safety Committee along with the written reports of results, if any.

To the extent practicable, State owned or leased worksites shall be inspected at least once per year. Such inspections for worksites in locations where there is no Local Safety Committee may be accomplished by a representative of the Appointing Authority and a representative of the Local Union stationed at that worksite.

Section 3. Employee Safety.

- A. All incidents of workplace violence, unsafe equipment or job conditions shall be brought to the attention of the immediate supervisor, or in their absence, the next higher level of supervision. Should the unsafe condition not be corrected within a reasonable time, the equipment or job practice shall be brought to the attention of the Safety Committee. Additionally, employees shall report any exposure to known or suspected carcinogens in writing on a separate form. A copy of the form shall be sent to the Local Safety Committee. Employees have the right to file complaints with the State Department of Labor and Industry OSHA Division.
- B. Any protective equipment or clothing, e.g., safety glasses or other types of eye protection (including prescription lenses and frames when required), safety helmets, safety vests, welding gloves and aprons, safety shoes, ear protection, protective gloves, etc., shall be provided and maintained by the Appointing Authority whenever such equipment is required as a condition of employment either by the Appointing Authority, by OSHA, or by the Federal Mine Safety and Health Administration. The employee shall have the responsibility to use all such provided protective equipment (see Article 20, Section 11).
- C. All employees who are injured or who are involved in an accident during the course of their employment shall file a first report of injury and/or an accident report, on forms furnished by the Appointing Authority, no matter how slight the incident. A summary of the first report of injury and/or accident report shall be furnished to the Safety Committee. All such injuries shall be reported to the employee's immediate supervisor and any necessary medical attention, including transportation if required, shall be arranged. The Appointing Authority shall provide assistance to employees in filling out all necessary Workers' Compensation forms, when requested.
- D. Any medical examination required by the Appointing Authority shall be at no cost to the employee and the Appointing Authority shall receive a copy of the medical report. Upon request, the employee shall receive a copy of the medical report.
- E. During every four (4) hour period in which an employee spends all their time on a computer, the employee will be given a five (5) minute alternative work assignment or if this is not practicable, a five (5) minute rest period scheduled to interrupt continuous operation of the machine. This five (5) minute rest period is in addition to the formal rest period provided in Article 5, is not cumulative, and cannot be used at the beginning or end of a shift, formal rest breaks, or a lunch period.
- F. Any pregnant employee assigned to work with Department of Corrections' inmates, may request reassignment to alternate work within her seniority unit. The Appointing Authority will attempt to accommodate such a request. Such reassignment shall not be subject to the provisions of Article 12, Section 4. In the event that such reassignment is not practicable, the employee shall have the right to request an unpaid leave of absence, pursuant to Article 10, Section 4F.

- G. **Right to Refuse Work.** Consistent with M.S. 182.654, Subd. 11, employees have the right to refuse work in certain circumstances as specified in the statute.
- H. When infectious or contagious diseases are diagnosed among the inmate population, upon request of the Local Union, the Appointing Authority shall meet promptly with the Local Union to determine what steps, if any, are necessary to educate employees about the diseases and to determine what steps, if any, are necessary to safeguard the health and safety of the employees as well as the inmates, residents, and students.
- I. Upon request of the Union or Local Union, the Appointing Authority shall conduct an annual health survey for the purpose of identifying the incidence of known occupational hazards for those employees who by nature of their jobs face serious health dangers through continued exposure to radiation, and toxic or hazardous chemicals.

Section 4. Meet and Confer on Assaultive Behavior.

Upon request of the Local Union, the Appointing Authority and/or designees shall meet and confer with the Local Union regarding employee safety issues related to work-related assault or injury.

Section 5. Right to Know Training.

The Employer and Appointing Authorities agree to work with the Union and Local Unions to provide required Right to Know training to all employees. Training will be given to employees who are routinely exposed to hazardous substances, harmful physical agents, and infectious agents.

Section 6. Building Safety.

Upon the occurrence of any condition threatening a building or the area around it, immediate action shall be taken by the Appointing Authority to safeguard personnel, documents, and funds. A building emergency plan shall be developed by the Appointing Authority. The plan for building emergencies shall specify areas to be used for safety from the elements. It shall also specify actions to be taken by all occupants in emergency situations including building evacuation, search for unidentified objects, and occupation of shelter areas. No employee shall be required to participate in any search for an explosive or incendiary device against their wish, nor suffer any loss of pay because of any building evacuation in an emergency situation.

Section 7. Policy on Computer Ergonomics.

The Computer Ergonomics Policy adopted by the Statewide Safety Committee is contained in Appendix L. This policy is not subject to the grievance and arbitration provisions contained in Article 17 of this Agreement.

ARTICLE 12 - VACANCIES, FILLING OF POSITIONS

Section 1. Vacancies.

A. **Defined.** A vacancy is defined as an opening in the classified service for a non-temporary (more than six (6) months) position, the assemblage of a seasonal work crew if defined as such in Supplemental Agreements, or a shift opening in the seniority unit, which the Appointing Authority determines to fill. A vacancy may be created by death, resignation, dismissal, transfer out of the seniority unit, permanent reassignment to a new work location thirty-five (35) miles or more distant, retirement, leave of absence expected to be longer than six (6) months, permanent disability, promotions, demotions, successful bid, or the creation of a new position or shift or seasonal work crew and the Appointing Authority determines that such vacancy is to be filled.

B. **Exceptions.**

A vacancy is not created when:

1. State departments are merged or combined or when employees are transferred from one State department to another State department by Executive Order or Legislative Act.
2. An Appointing Authority becomes responsible for a function administered by another governmental agency, a quasi-public or private enterprise, employees being absorbed into the bargaining unit shall be placed in comparable positions without creating vacancies.
3. An employee takes a military leave of absence in excess of six (6) months in duration.

Section 2. Employment Condition.

"Employment condition" means any limitation on continuous employment caused by the number of hours of work assigned to an employee, and their appointment status. Hours of work may be full time, part time, or intermittent. Appointment status may be unlimited, temporary, emergency, or seasonal.

A. **Hours of Work.**

1. **Full-time employee.** "Full-time employee" means an employee who is normally scheduled to work 80 hours in a biweekly payroll period.
2. **Part-time employee.** "Part-time employee" means an employee who is normally scheduled to work fewer than eighty (80) hours in a biweekly payroll period.
3. **Intermittent employee.** "Intermittent employee" means an employee who works an irregular and uncertain schedule which alternately begins, ceases, and begins again as the needs of the agency require.

B. Appointment Status.

1. **Unlimited employee.** "Unlimited employee" means an employee who is appointed with no definite ending date.
2. **Temporary employee.** "Temporary employee" means an employee who is appointed with a definite ending date. A temporary employee's term of employment may not exceed a total of 12 months in any 24-month period in any one agency.
3. **Emergency employee.** "Emergency employee" means an employee who is appointed for no more than 45 aggregate working days in any 12-month period for any single Appointing Authority.

Section 3. Work Areas.

The Appointing Authority may define and/or redefine work areas provided that such work areas are based upon reasonable staffing and/or operational needs of the Appointing Authority and do not unreasonably diminish the bidding rights of employees. Upon request, the Appointing Authority will provide to the Local Union a list of current work areas.

Section 4. Reassignment.

- A. **Within a Work Area.** The Appointing Authority shall have the right to assign and reassign duties among employees in a class within a work area. This does not, however, include the right to reassign employees to a vacant position in the same class, and shift and work area.
- B. **Between Work Areas or Shifts.** If no vacancy has been created (or if a vacancy has been created or a shift opening occurs, and the Appointing Authority determines to fill the vacancy or shift opening without adding another employee) and it is necessary to reassign an employee within thirty-five (35) miles, the Appointing Authority shall request volunteers from among employees in the same class (or option) and same employment condition and work area/or shift from which the reassignment is to be made. If one or more employees volunteer for the reassignment, the most senior qualified volunteer shall be reassigned. If there are no volunteers, the least senior qualified employee in the same class (or option) and same employment condition and work area/or shift from which the reassignment is to be made shall be reassigned.
- C. **Temporary Reassignment.** The Appointing Authority may temporarily reassign any employee to another work area and/or shift to five (5) consecutive months or less. If, at any time during the five (5) months, the Appointing Authority has legitimate business reason(s) to make the reassignment permanent, the Appointing Authority shall first discuss this decision with the Local Union. The decision of the Appointing Authority shall be final and may not be grieved.
- D. **Reassignment when a Post is Moved or Eliminated.** If an employee is to be reassigned as a result of their post being moved or eliminated, the employee shall first be placed in the utility pool with the same shift and regular days off as their most recent post. While in the

utility pool, the employee will continue to keep the same shift and days off that they had immediately prior to being assigned to the utility pool. The employee will have three (3) months from the date of being placed in the utility pool to bid to another position before the employer permanently reassigns the employee.

Section 5. Job Posting.

Whenever a vacancy occurs, the Appointing Authority shall post for a minimum of five (5) calendar days a description of the vacancy on officially designated bulletin boards or through such procedures as are otherwise agreed upon between the Appointing Authority and the Union. The specific position vacated, with the same hours of work and days off, shall be the one posted. Such other procedures may include the use of electronic means of posting. When the five (5) calendar day posting requirement would be met on a Saturday, Sunday or holiday, the expiration date of the posting shall be the day following the weekend or holiday.

The posting description shall be dated and shall contain the name of the class (or option), a general description of the duties, the work area of the position, the shift, if applicable, the normal hours of work, and the initial days off. A copy of the posting shall be furnished to the Local Union President.

Vacancies in Corrections Officer Junior/Senior Plans shall be posted at both levels (CO 1 and 2) of the plan. Bids shall be accepted from employees in both classes.

A posted vacancy may be canceled during the posting period but may only be canceled after the posting period for lack of funds. Upon request, the Appointing Authority shall furnish the Local Union with documentation of the lack of funds. Any vacancy for which eligible bids have been received and which has not been canceled shall be filled in accord with contract procedures within four (4) calendar weeks of the posting date.

For informational purposes only, each Appointing Authority within a multi-seniority unit agency shall maintain a list of, or copies of, job postings of vacancies in other seniority units within the agency.

Section 6. Eligibility for Bidding.

Permanent non-probationary classified employees in a different employment condition or different shift from the posted vacancy or in a work area different from the posted vacancy shall be eligible to bid for any vacancy within their class (or class option or another class option within that class for which they are qualified as determined by the Appointing Authority) and seniority unit.

Employees, including those in the same work area as the posted vacancy, shall be eligible to bid for any vacancy within their class (or option or other options for which they are qualified as determined by the Appointing Authority) and seniority unit.

Corrections Officer 1's shall be able to bid upon appointment to the Corrections Officer 1 classification. Corrections Officer 2's shall be allowed to bid during their initial probation after

reallocation. Corrections Officer 3's shall be able to bid during their initial six (6) month probationary period. Corrections Officers 1, 2 and 3 who transfer to another correctional facility shall have bidding rights while on transfer probation. All Corrections Officers who have successfully filled a vacancy via a bid shall not be entitled to bid on another vacancy for a period of six (6) months following the date the employee was selected for the previous vacancy.

The Appointing Authority may, at their discretion, waive the three (3)-bid limit for any vacancy. Once waived, the posting will continue until there are no eligible bidders.

Eligible employees may bid on filling of a posted vacancy by submitting an application in the manner determined by the Appointing Authority. Applications must be received on or before the expiration date of the posting to receive consideration.

An employee who is away from their work location on assignment or approved vacation in excess of seven (7) calendar days, may submit an advance bid for individual vacancies posted during their absence. The advance bid shall indicate the division, section, classification/class option, employment condition and location of the position. Such advance bid shall be valid for the period of the absence or four (4) weeks, whichever is less. The employee shall be responsible for submitting the advance bid to the supervisor who is responsible for the posting.

Employees on seasonal layoff or permanent layoff shall be eligible to bid for any vacancy in the classification and seniority unit from which the employee was laid off. The employee is responsible to be aware of vacancies. The Appointing Authority shall not consider such a bid if acceptance would create a layoff or bumping situation or would prevent the recall of a more senior employee who was permanently laid off from the same class, employment condition and principal place of employment/location.

Note: The letter dated July 12, 2013 provides clarification for those employees who bid while on a leave of absence.

Section 7. Filling Positions.

Vacant positions shall be filled as follows:

- A. **Bidding.** Selection of employees to fill a posted vacancy shall be made from among eligible bidders in order of Classification Seniority, provided the senior employee's ability and capacity to perform the job are relatively equal to that of other bidders. Selection of employees to fill a posted vacancy shall be made from among eligible bidders in either level (CO 1 and 2), but bids by employees in the higher class shall be considered first with their CO 2 seniority receiving priority over CO 1 time.

The Local Union shall have the right to challenge the selection of an employee other than the senior employee through the third step of the grievance procedure only. If the grievance is denied, the Union Business Representative may request a review of the grievance by the Department of Corrections Human Resource Director, whose determination shall be final.

Vacancies shall be filled by the posting and bidding process until there is no bid or until a maximum of three (3) such vacancies have been filled, whichever comes first. However, when a vacancy can be filled by an employee who has received notice of permanent layoff, only one (1) vacancy shall be filled by the posting and bidding process.

All bidders for a vacancy shall be notified, orally or in writing, of the acceptance or rejection of their bid in a timely manner.

When an employee returns from an approved leave of absence and there is a vacancy, the employee shall be reinstated to that vacancy, provided that no employee with more Classification Seniority has bid on the position. If a more senior employee has successfully bid on the position, the employee returning from the approved leave of absence shall be selected for the position vacated by the successful bidder. (See also Article 10, Section 6, regarding return from a leave of absence.)

Notwithstanding the above, the Appointing Authority shall not consider bids by employees for vacancies if acceptance of a bid would create a layoff or a bumping situation nor accept a bid from an employee in a different employment condition if acceptance of the bid would prevent the recall of an employee from the Seniority Unit Layoff List laid off from the same class, employment condition and location.

- B. **Seniority Unit Layoff List.** Selection shall next be made from the Seniority Unit Layoff List unless the vacancy is being filled by an employee with more classification seniority who has received notice of permanent layoff.
1. **Same Employment Condition.** Selection shall next be made from employees on the Seniority Unit Layoff List in order of Classification Seniority if such a list exists pursuant to Article 15, Section 3H. No new appointments shall be made in a seniority unit in a class (or option) and employment condition for which a Seniority Unit Layoff List exists until all employees on such list have been offered the opportunity to accept the position.
 2. **Different Employment Condition.** Selection shall next be made from employees on the Seniority Unit Layoff List in order of Classification Seniority for the class (or option) and seniority unit in which the vacancy exists who were laid off from an employment condition other than that of the vacancy to be filled. Selection shall be limited to the geographic area [within thirty-five (35) miles] of the position from which the employee was laid off.
- C. **Claiming.** Prior to accepting a claim, the agency has the option of filling the vacancy with a seniority unit employee who has received notice of permanent layoff and has more state seniority than any claimer. If this option is not chosen, see Article 15, Section 3D3(g) regarding employee requests to claim positions in other seniority units to avoid layoff or bumping. However, if the agency must choose among claimers, seniority shall not be a consideration.

- D. **Class (or Class Option) Layoff List.** If the vacancy is not filled through the claiming process or with a seniority unit employee who has received notice of permanent layoff, selection shall next be made from among employees on the Class (or Class Option) Layoff List. Selection from employees on this list shall not be unreasonably denied.
- E. **Other.** If the vacancy remains unfilled, the Appointing Authority shall have the option of filling the vacancy by the use of any of the following methods:
1. **Voluntary Demotion.**
 2. **Voluntary Transfer.**
 3. **Reinstatement.**
 4. **Multi-Source Recruitment and Selection System.** If a promotion is to be made using the State's multi-source recruitment and selection system, selection shall be made from among employees within the same seniority unit in which the vacancy exists, whose names are in the applicant pool in the order of State Seniority, provided the senior employee's ability and capacity to perform the job are relatively equal to that of other applicants in the applicant pool.

If the multi-source recruitment and selection system is to be used for a Corrections Officer 3 vacancy, selection shall be made from among qualified employees within the same seniority unit in which the vacancy exists in the order of Corrections Officer 2 seniority, provided the senior employee's ability and capability to perform the job are relatively equal to that of other applicants. Correction Officer 2 employees serving a probationary period will not be considered for promotion to Corrections Officer 3 until successful completion of their probationary period.
 5. **Workers' Compensation Referrals.** Employees who have an active workers' compensation claim and have qualified for transfer or demotion will be referred along with qualified applicants from the agency. The Appointing Authority may appoint any of the applicants referred. If there are no qualified applicants from the agency, only the names of employees who have an active workers' compensation claim and have qualified for transfer or demotion will be referred. The Appointing Authority may fill the vacancy by other means only after demonstrating to the Commissioner of Minnesota Management and Budget that none of the workers' compensation referrals are available, able or qualified to perform the duties of the vacancy.
 6. **Other.** The Appointing Authority may also use any other appointment procedure pursuant to statute.

The Local Union shall have the right to challenge the selection of an employee other than the senior employee through the third step of the grievance procedure only. If the grievance is denied, the Union Business Representative may request a review of the grievance by the Department of Corrections Human Resource Director, whose determination shall be final.

Upon request, the Appointing Authority shall provide to the Local Union President the name of the applicant selected, the method used to select the applicant and any rosters of applicants in the applicant pool used in the selection process. In addition, and upon request, the Appointing Authority shall provide to the Local Union President the name of any employee reassigned pursuant to Section 4B.

When new classes (or class options) are established in the State service and in the seniority unit, employees within that seniority unit shall be afforded the opportunity to compete for appointment to vacancies in the new class through the selection process.

During the application of the posting, bidding and job filling process, the Appointing Authority may temporarily assign employees or make temporary appointments to vacancies to fulfill operational needs.

Section 8. Effects of Changes in Position Allocations on the Filling of Positions.

When the allocation of a position has been changed as the result of changes in the organizational structure of an agency or abrupt changes in the duties and responsibilities of the position, such positions shall be considered vacant under the provisions of this Article and filled in accord with Sections 5, 6 and 7.

Section 9. Effects of Reallocations on the Filling of Positions.

When the allocation of a position has been changed as the result of changes over a period of time in the kind, responsibility, or difficulty of the work performed in a position, such situation shall be deemed a reallocation.

A reallocated position shall not be considered a vacancy under the provisions of this Article if the action leading to the change in the allocation of the position did not clearly result from the assignment of the incumbent to work out of class in a manner so as to by-pass the selection process, assignment of the incumbent to a vacancy in a new position which had not been allocated to a class, or other action taken without regard to the appropriate selection process.

When the reallocated position is not a vacancy, the incumbent employee shall be appointed to the reallocated position provided the employee has performed satisfactorily in the position and possesses any licensure, certification, or registration which may be required.

When the reallocated position is a vacancy or when the incumbent employee has not performed satisfactorily in the position or does not possess the required licensure, certification, or registration, the position shall be filled as provided in Sections 5, 6, and 7 of this Article.

When the incumbent is ineligible to be appointed to the reallocated position as provided above, the employee shall be removed from the position within thirty (30) calendar days from the date of notification to the Appointing Authority. If the employee cannot be reassigned, transferred, promoted, or demoted, the layoff provisions of this Agreement shall apply.

Employees may submit requests for job audits directly to Minnesota Management and Budget or to an agency human resource office with delegated authority. An employee who has had a formal audit request submitted on their position shall be notified in writing of its receipt by the appropriate agency Human Resources Office.

Except for reallocations resulting from a study of an agency or division thereof initiated by Minnesota Management and Budget or an Appointing Authority, if the incumbent of a position which is reallocated upward receives a probationary appointment to a reallocated position, pay for the reallocated position shall commence fifteen (15) calendar days after the receipt in Minnesota Management and Budget or an agency human resource office with delegated authority of a reallocation request determined by Minnesota Management and Budget or the delegated agency to be properly documented, and it shall continue from that date until the effective date of the probationary appointment.

The decision of the Commissioner of Minnesota Management and Budget or an agency with delegated authority on the reallocation of any position shall not be subject to the grievance and arbitration provision of this Agreement.

An employee who is demoted as a result of a reallocation shall have their name placed on the Seniority Unit and Class (or Class Option) Layoff Lists for the class from which they were reallocated.

The Employer shall provide the Union with information about reallocations of bargaining unit employees.

Section 10. Probationary Period.

- A. **Required Probationary Period.** Except as provided below, all unlimited appointments to positions in the classified service shall be for probationary period specified in Section 10C.

No probationary period shall be required for a recall from a Seniority Unit Layoff List, or for a recall from a Seniority Unit Layoff List within two (2) years of the date of layoff, or a transfer in the same class under the same Appointing Authority, or a transfer or demotion to a previously held class under the same Appointing Authority, or for those employees identified in Section 10B below where no prior written notice of the probationary period requirement was given to the employee.

An intermittent employee who has not graduated from the DOC Training Academy, and who later does graduate from the Academy and becomes a part-time or full-time Corrections Officer, will be required to serve a new probationary period.

If the Appointing Authority feels that an extension of the probationary period could result in successful completion of the probationary period, the Appointing Authority, with notice to the Local Union, may extend the probationary period not to exceed three (3) months.

- B. **Discretionary Probationary Period.** An Appointing Authority may, with prior written notice to the employee, require a probationary period as specified in Section 10C for transfers and demotions to a new Appointing Authority or to classes in which the employee has not previously served, reemployment, reinstatement, recall from a Class (Class Option) Layoff List, or) recall from a Seniority Unit Layoff List more than two (2) years after the date of layoff.
- C. **Length of Probationary Period.**
1. **50% or Greater Time Employees.** The probationary periods for newly hired Corrections Officers 1 shall be twelve (12) months. Probationary periods for all other unlimited employees who work 50% or more time shall be six (6) months. Any absence in excess of a total of ten (10) consecutive working days shall be added to the duration of the probationary period.
 2. **Intermittents and Less Than 50% Time Employees.** All probationary periods shall be one thousand forty-four (1,044) working hours or a maximum of one (1) year. Working hours shall include hours actually worked, excluding overtime. Working hours shall also include paid holidays, compensatory time off taken, and paid leave taken in increments of less than the employee's normal work day.
 3. **Reallocated Positions.** Notwithstanding 1 and 2 above, an incumbent appointed to a reallocated position shall serve a probationary period of three (3) months.
 4. **Employees placed on layoff** prior to the completion of their probationary period shall be required to complete the probationary period upon return from the layoff.
 5. **Time served on a temporary or a provisional appointment** (up to a maximum of one-half (1/2) of the probationary period) shall be credited toward the completion of the probationary period in the same position, class and seniority unit provided there is no break in service of more than one (1) payroll period.
 6. **Employees promoted or transferred prior to the completion of their probationary period.** For probationary periods that begin on or after the effective date of this Agreement, employees who promote or transfer prior to the completion of their probationary period and are required to serve a new probationary period, shall complete their probationary period in the previous class on the same date that they successfully complete their probationary period in the new class and/or agency. If the employee does not successfully complete probation in the new class and/or agency, the employee shall return to the former class and/or agency and resume the probationary period at the point it was interrupted.
 7. **Employees demoted during or at the end of a probationary period** shall have the time in the higher class count toward the probationary period in the class to which such employees are demoted, except as provided in 6 above.

- D. **Probationary Evaluation.** During the probationary period, the Appointing Authority shall conduct a minimum of one (1) performance counseling review of the employee's work performance at the approximate mid-point of the probationary period and furnish the employee with a written copy of the evaluation. Whenever practicable, intermittent employees shall have an initial performance review ninety (90) working days into their appointment. Employees shall be informed of areas of needed improvement.
- E. **Trial Period.** Employees who have transferred and/or are required to serve a probationary period may elect to return during the fifteen- (15)-day trial period to the former position if that position has not been awarded via a bid. If the position has been awarded, the returning employee will be assigned to an available position.
- F. **Non-certification.** An Appointing Authority who does not certify a probationary employee shall notify the employee in writing with a copy to the Local Union of the reasons for the non-certification. The Union shall have the right to challenge such reasons through the third step of the grievance procedure. However, for any grievance other than non-certification, employees with permanent status in another class and serving a subsequent probationary period shall not be denied use of Article 17 through the arbitration process.

The employee who is non-certified shall be returned to their former class and employment condition within the seniority unit from where the employee came, and if a vacancy exists, to the same geographic area. If there is no vacancy in the employee's former class and seniority unit, the layoff provisions of this Agreement shall apply. An employee who is non-certified following recall from a Seniority Unit Layoff List shall be returned to the layoff list for the time remaining.

Section 11. Performance Evaluations.

See Article 18, Section 12, Performance Evaluations.

ARTICLE 13 - PROMOTIONAL RATINGS

Promotional ratings required by the Appointing Authority in conjunction with a position's selection assessment shall be prepared for each employee who is an applicant for that position in an objective manner. No employee will be rated by a supervisor who is an applicant for the same position. Prior to being processed by the Appointing Authority the employee's final rating shall be discussed with the employee by the supervisor who signs the rating form and a signed copy of the rating shall be furnished to the employee.

ARTICLE 14 - TRANSFERS BETWEEN AGENCIES

Employees may request a transfer to a position under another Appointing Authority by submitting such request in writing to the Human Resources Office of the Appointing Authority

to which they wish to transfer with a copy to the Human Resources Office of the Appointing Authority by which they are currently employed.

If the receiving Appointing Authority does not require a new probationary period, the sending Appointing Authority shall agree to the transfer.

ARTICLE 15 - LAYOFF AND RECALL

Section 1. Layoff.

An Appointing Authority may lay off an employee by reason of abolition of the position, shortage of work or funds, or other reasons outside the employee's control which do not reflect discredit on the service of the employee.

Any reduction in hours of a less than full-time employee, except for intermittents, which would place the employee outside the bargaining unit shall constitute a layoff and shall be implemented in accord with the provisions of this Article.

Section 2. Labor-Management Cooperation.

When an Appointing Authority initiates a planning process or management study which is anticipated to result in layoff, the Appointing Authority will meet and confer with the Local Union during the decision planning phase and again during the implementation planning phase. The Appointing Authority and the Local Union shall enter into negotiations regarding a Memoranda of Understanding upon request of either party to modify this Agreement regarding the implementation plans which shall include, but are not limited to, the following:

- Length of layoff notice;
- Job and retraining opportunities;
- Alternative placement methods;
- Early retirement options pursuant to M.S. 43A.24, Subd. 2(i);
- Bumping/vacancy options for part-time employees to preserve their insurance eligibility or contribution; and
- Other methods of mitigating layoff or their effect on employees.

Section 3. Permanent Layoff.

- A. **Determination of Position(s).** The Appointing Authority shall determine the position(s) in the class or class option, if one exists, and employment condition and work location which is to be eliminated.

- B. **Advance Notice.** In the event a permanent layoff in the classified service of seniority unit employees becomes necessary, the Appointing Authority shall notify the Union and the Local Union President of the classification(s), number of positions and the employment condition(s) to be eliminated at least thirty (30) calendar days whenever practicable, but at least twenty-one (21) calendar days prior to the effective date of the anticipated layoff. At least twenty-one (21) calendar days prior to the effective date of the layoff, the Appointing Authority shall give written notice of the layoff, including the reason(s) therefor and the estimated length of the layoff period, to all affected employee(s) and to the Local Union President. The Appointing Authority may establish a date, no more than seven (7) calendar days prior to the effective date of the layoff, by which employees must choose the layoff option they will exercise. This date shall be indicated in the written notice of the layoff.

The written notice of a permanent layoff shall include a list of existing and anticipated vacant positions that an employee may accept in accord with Section 3D of this Article, a statement explaining the procedure to contact Minnesota Management and Budget to apply for vacant positions, and notice of the need to indicate interest in temporary work. The written notice of a permanent layoff shall also include a general reference to the employee's claiming rights. The Appointing Authority shall provide the employee with information needed to apply for unemployment insurance and forms for continuing insurance coverage and forms to indicate availability for class and seniority unit recall.

- C. **Layoff Notification.** The Appointing Authority shall send a layoff notice to the employee in the position to be eliminated. The layoff notice shall be provided to the employee in person whenever practicable and shall otherwise be sent by priority mail. At the Appointing Authority's discretion, an employee under notice of permanent layoff may be granted up to one hundred and sixty (160) hours of paid leave, ending at the date of layoff. Hours of leave may be granted at any time throughout the layoff notice period and shall not be subject to the Application and Reinstatement provisions of Article 10.

Upon request, an Appointing Authority shall provide an employee on notice of layoff assistance in searching for State employment.

Provisional, temporary and emergency employees shall be terminated before any layoff of probationary or permanent employees in the same class, employment condition and geographic location/principal place of employment.

Provisional employees shall be separated in inverse order of the date of their provisional appointment.

Prior to the implementation of a layoff, the Employer and the Association may mutually agree to a Memorandum of Understanding (MOU) providing for the voluntary layoff of employees. An employee requesting layoff under this provision shall not be unreasonably denied consideration to be laid off by the Appointing Authority.

D. **Procedure.** The following provisions are all subject to the conditions for bumping or accepting vacancies which are contained in Section 3E. In all cases, the employee exercising an option is restricted to those positions within the same seniority unit (except in Option 3g, claiming). Employees may only bump within the same employment condition (except in Options 3f and h). Employees may be offered vacancies within their seniority unit in a different employment condition. However, the employee's refusal to accept a vacancy in a different employment condition shall not result in the forfeiture of other layoff options.

1. The employee in the position to be eliminated shall either:
 - a. Bump the least senior employee in the same class (or class option or another class option within that class for which the employee is determined by the Employer to be qualified) and the same shift within their work area within thirty-five (35) miles of the employee's current work location. This bumped employee shall bump the least senior employee in the work area within thirty-five (35) miles of the employee's current work location regardless of shift; or
 - b. Accept a vacancy in the same class (or class option or another class option within that class for which the employee is determined by the Employer to be qualified) within thirty-five (35) miles of the employee's current work location; or
 - c. Accept a vacancy within thirty-five (35) miles of the employee's current work location in an equal class in which the employee previously served.
2. If options "1b" and "1c" above are not available, and the employee chooses not to accept option "1a", or option "1a" is not available, the employee shall either:
 - a. Bump the least senior employee in the same class (or class option or another class option within that class for which the employee is determined by the Employer to be qualified) within thirty-five (35) miles of the employee's current work location; or,
 - b. Accept a vacancy in an equal class in which the employee has not previously served and for which the employee is determined by the Employer to be qualified and within thirty-five (35) miles of the employee's current work location.
3. If neither "2a" nor "2b" above is available or if only "2a" above is available, the employee may choose any of the following options:
 - a. **Layoff.**
 - b. **Vacancy Within Thirty-Five (35) Miles.** Accept a vacancy in a lower class in which the employee has previously served or for which the employee is determined to be qualified by the Employer within thirty-five (35) miles of the employee's current work location;
 - c. **Vacancy Outside Thirty-Five (35) Miles.**

- (1) **Same/Equal Class.** Accept a vacancy in the same class (or class option or another class option within that class for which the employee is determined to be qualified by the Employer), or in an equal class in which the employee has previously served or for which the employee is determined to be qualified by the Employer more than thirty-five (35) miles of the employee's current work location;
 - (2) **Lower Class.** Accept a vacancy in a lower class in which the employee has previously served or for which the employee is determined to be qualified by the Employer more than thirty-five (35) miles of the employee's current work location;
- d. **Bump Within Thirty-Five (35) Miles.**
 - (1) **Equal Class.** Bump the least senior employee in an equal class (or class option) in which the employee previously served (or another class option within the class for which the employee is determined to be qualified by the Employer) within thirty-five (35) miles of the employee's current work location;
 - (2) **Lower Class.** Bump the least senior employee in a lower class (or class option) in which the employee previously served (or another class option within the class for which the employee is determined to be qualified by the Employer) within thirty-five (35) miles of the employee's current work location.
- e. **Bump Outside Thirty-Five (35) Miles.**
 - (1) **Same/Equal Class.** Bump the least senior employee in the same class (or class option) or the least senior employee in an equal class (or class option) in which the employee previously served (or another class option within that class for which the employee is determined to be qualified by the Employer) more than thirty-five (35) miles of the employee's current work location;
 - (2) **Lower Class.** Bump the least senior employee in a lower class (or class option) in which the employee previously served (or another class option within that class for which the employee is determined to be qualified by the Employer) more than thirty-five (35) miles of the employee's current work location.
- f. **Bump Temporary Appointment.** Bump any employee on a temporary appointment in the same class who has more than thirty (30) calendar days remaining on such appointment and is within thirty-five (35) miles of the employee's current work location. The temporary employee bumped shall be separated.
- g. **Claiming.** An employee may request to transfer or demote to a non-temporary classified vacancy in another seniority unit in the same, transferable, or lower class (or class option) in which the employee previously served or for which the employee is determined to be qualified by the Employer, and the receiving Appointing

Authority shall not unreasonably deny the request. Employees may not request a transfer or demotion to another Appointing Authority if such a vacancy is available to the employee at a pay level equal to the requested vacancy within thirty-five (35) miles of the employee's current work location which the current Appointing Authority determines to fill or if the employee has previously requested and has been offered a vacancy under this provision in the same or an equal class in the same employment condition within thirty-five (35) miles of the current position.

Eligibility for claiming under this provision begins on the date of the written layoff notice and continues until the actual date of layoff or forty-five (45) days, whichever is greater. If the claiming period extends beyond the date of layoff, no severance or vacation liquidation will be paid until the end of the claiming period. The employee's name will be placed on the Seniority Unit Layoff List but will not be placed on the Class (or Class Option) Layoff List until the end of the claiming period. If the claiming period extends beyond the layoff date, employees may waive their post-layoff claiming rights and the Appointing Authority shall authorize payment of any severance and vacation liquidation and employees will be eligible for placement on appropriate layoff lists.

If the employee successfully claims but cannot be appointed until after the scheduled layoff date, the current Appointing Authority shall place the employee on unpaid leave or, upon mutual agreement, vacation leave until the new appointment begins. Vacation leave usage is not subject to Section 3 of Article 8.

For employees who transfer or demote to another seniority unit under this provision and who do not successfully complete the probationary period, the following shall apply:

- (1) If the layoff notice period has expired, the employee shall be placed on layoff from their original seniority unit, class, employment condition, and location. Such employees are not subject to 3A - 3G of this Article but shall become eligible to be placed on layoff lists in accord with 3H on the effective date of the non-certification.
- (2) If the layoff notice period has not expired, the employee shall be returned to their original seniority unit, class, employment condition, and location for the remainder of the notice period. Such employees shall not claim additional positions.

- h. **Bump in Different Employment Condition Within Thirty-five (35) Miles.** An unlimited full-time or unlimited part-time employee may exercise this option only if 1a and 2a above are not available. An unlimited full-time employee may bump the least senior employee in the unlimited part-time employment condition and an unlimited part-time employee may bump the least senior employee in the unlimited full-time employment condition in the same class (or class option or another option

within that class for which the employee is determined to be qualified by the Employer) within thirty-five (35) miles of the employee's current work location.

E. **Conditions for Bumping or Accepting Vacancies.** The following shall govern bumping and accepting vacancies pursuant to Section 3A-D:

1. In all cases of bumping, the employee exercising bumping rights must have greater Classification Seniority in the class into which the employee is bumping than the employee who is to be bumped.
2. An employee who does not have sufficient Classification Seniority to bump into a previously held class shall not forfeit the right to exercise Classification Seniority to bump into the next previously held class in the same seniority unit.
3. Any employee who has the option to fill a vacancy in the same class or in a class in which the employee previously served must possess more Classification Seniority than bidders, if any, to fill the vacancy.
4. Any employee who has the option to fill a vacancy in a class in which the employee has not previously served shall fill the vacancy only if there are no bidders.
5. When a vacancy exists in a class into which the employee has a right to bump and which is in the employee's current employment condition, the employee must accept the vacancy prior to exercising the option to bump except Option D1a.
6. If more than one employee opts to fill a vacancy or bump another employee, the employee with the greater Classification Seniority shall have priority in exercising that option.
7. When two (2) or more employees in the same class (or class option) and employment condition are being simultaneously laid off, the Union and the Appointing Authority may mutually agree to selection of layoff options among the affected employees.
8. Any non-temporary employee bumped pursuant to this Section shall be laid off in accord with Section 3A - D of this Article.

The Appointing Authority need not consider bids by employees for vacancies if acceptance of a bid would create a layoff or a bumping situation nor a bid from an employee in a different employment condition if acceptance of the bid would prevent the recall of an employee from the Seniority Unit Layoff List laid off from the same class, employment condition, and location.

F. **Junior/Senior Plans.** When layoffs take place in the senior class of a Junior/Senior Plan, as defined by the Employer, and the employee demotes or bumps to the junior class as provided in the layoff procedure, the junior position shall simultaneously be reallocated to

the senior class, provided that the employee is qualified for the reallocation under the terms of the Junior/Senior Plan.

- G. **Rights of Excluded Employees Entering the Bargaining Unit.** Employees who have accepted positions in a bargaining unit not represented by the Union or positions excluded from any bargaining unit shall have bumping rights into a position in a bargaining unit represented by the Union in a class in which the employee previously served or in a class for which the employee is determined to be qualified by the Employer only under the following conditions:

1. The employee may bump only into a position under the same Appointing Authority.
2. The employee shall have exhausted all bumping rights within their own bargaining unit or, if not in a bargaining unit, within the applicable framework.
3. The employee shall fill a vacancy in a class in which they have previously served or for which they are determined to be qualified by the Employer and for which there are no bidders prior to bumping any employee in a bargaining unit represented by the Union. Employees in bargaining units represented by the Union shall be able to fill a vacancy prior to the vacancy being filled by an employee from a bargaining unit not represented by the Union.

All bumps under this part are subject to the general conditions provided for in this Article.

H. **Layoff Lists.**

1. **Seniority Unit Layoff List.** The names of employees who have been laid off or have accepted a demotion or another employment condition in lieu of layoff, or been demoted as a result of a reallocation, shall be automatically placed on a Seniority Unit Layoff List for the seniority unit, class (or class option), geographic location and employment condition from which they were demoted, laid off or reallocated downward, in the order of their Classification Seniority.

Employees may also indicate, on a written or electronic document provided by the Appointing Authority, other employment conditions and geographic locations for which they are available. Employees who were not able to bump, transfer, or demote to a previously held class(es) in lieu of layoff shall be placed on the Seniority Unit Layoff List for the previously held bargaining unit class(es) for which they have indicated availability. Employees shall indicate, on a written or electronic document provided by the Appointing Authority, the class(es), geographic location(s) and employment condition(s) for which they are available. Employees may change their availability by notifying Minnesota Management and Budget in writing. Names shall be retained on the Seniority Unit Layoff List for a minimum of one (1) year or for a period of time equal to the employee's State Seniority, to a maximum of four (4) years.

2. **Class (or Class Option) Layoff List.** If employees provide the required information, the names of such employees shall also be placed on a Class (or Class Option) Layoff List for the class (or class option) from which they were demoted in lieu of layoff, laid off, or reallocated downward in order of their Classification Seniority. Employees who were not able to bump, transfer, or demote to previously held class(es) in lieu of layoff shall also be placed on the Class (or Class Option) Layoff List for the previously held bargaining unit class(es) for which they have indicated availability. Names shall be retained on the Class (or Class Option) Layoff List for a minimum of one (1) year or for a period of time equal to the employee's Classification Seniority, to a maximum of three (3) years.

In order to be placed on the Class (or Class Option) Layoff List, the employee shall indicate, on a written or electronic document provided by the Appointing Authority, the geographic location(s) and the employment condition(s) for which they would accept employment. The employee may change their availability by notifying Minnesota Management and Budget.

- I. **Seniority Unit Vacancies.** For a period of ninety (90) calendar days after an employee has been permanently laid off from State service, the employee may apply for vacant positions in an equal and lower classification in their former seniority unit and if they qualify for the position, the employee's name shall be considered on the basis of State Seniority in the manner provided in Article 12, Section 7(E)(4).
- J. **Recall.** Employees shall be recalled from layoff in the order in which their names appear on the Seniority Unit Layoff List as provided in Section 3H of this Article.

An employee on either the Seniority Unit or Class Layoff List shall be notified of recall by written personal notice (receipted) or certified mail (return receipt required) sent to the employee's last known address at least fifteen (15) calendar days prior to the reporting date. The employee may choose to receive notice of layoff and recall by electronic message with written notice to the Appointing Authority. The employee shall notify the Appointing Authority by certified mail (return receipt required), or electronic message, within five (5) calendar days of receipt of notification, of intent to return to work and shall report for work on the reporting date unless other arrangements are made. It shall be the employee's responsibility to keep the Appointing Authority informed of the employee's current contact information.

The Appointing Authority may temporarily assign employee(s) to any vacancies or openings to fulfill operating requirements during the period while the recall process is taking place.

- K. **Removal From Layoff Lists.** Employees shall be removed from all layoff lists for any of the following reasons:
 1. Recall to a permanent position from either layoff list except that an employee recalled to a permanent position in a different seniority unit or a different employment condition shall remain on the Seniority Unit Layoff List for their former location and

employment condition only. An employee who is recalled to a different seniority unit and who does not successfully complete the probationary period, shall be restored to the Seniority Unit Layoff List for the remainder of the time period originally provided in Section 3H.

2. Failure to accept recall to a position which meets the availabilities specified by the employee except that employees who fail to accept recall from the Class (or Class Option) Layoff List, or fails to respond, shall be removed only from that list. An employee who fails to accept recall to an employment condition for which the employee indicated availability shall remain on the Seniority Unit Layoff List for their former employment condition only.
3. Appointment to a permanent position in a class which is equal to or higher than the one for which the employee is on layoff list(s). If the employee is non-certified in this position, the employee's name will be placed back on the layoff list(s) for the time remaining.
4. Resignation, retirement or termination from State service.

Section 4. Temporary or Emergency Positions.

If a position is to be filled by a temporary or emergency appointment, the appointment shall be offered to employees in the following order prior to filling the position by any other means:

- A. Employees who are permanently laid off and not employed by the State if the position is in the same class, seniority unit, and geographic area from which they were laid off in order of Classification Seniority;
- B. Employees who are permanently laid off and not employed by the State if the position is in the same seniority unit and geographic area from which they were laid off and the employee is determined to be qualified for the appointment by the Appointing Authority in the order of State Seniority;

In order to be eligible for emergency and temporary appointments, an employee must indicate in writing an interest to the Appointing Authority at the time of layoff.

The notice provisions of Section 3C and Section 4E shall not apply for filling such positions.

Employees accepting such positions shall be eligible employees for purposes of holidays, vacation leave and sick leave, provided such employees were eligible for those benefits in their immediately preceding appointment. Employees who were eligible for and enrolled in insurance coverage in their immediately preceding appointment will be eligible for those same coverages and at the same level of Employer contribution which they were previously receiving at the time of their layoff. This section shall not supersede the provisions of Article 19, Section 2B1 and Section 3C1. Such employees shall be eligible to bid only on vacancies in the class and seniority unit from which they were permanently or seasonally laid off under the provisions of

Article 12, Section 6 of this Agreement. Upon expiration of the appointment, the employee shall return to full layoff status.

Section 5. Limited Interruptions of Employment.

Any interruption in employment not in excess of seven (7) consecutive calendar days or any reduction from an employee's normal work hours which continues two (2) calendar weeks or less shall not be considered a layoff. Such limited interruption or reduction in hours may occur as a result of adverse weather conditions, shortage of material or equipment, or for other unexpected or unusual reasons.

Prior to implementing a limited interruption of employment or a reduction in hours, the Appointing Authority, whenever practicable, shall meet with the Local Union to discuss the need for such action.

When the limited interruption of work or reduction in hours does not affect all employees in a class, employment condition, shift, and work location, the least senior employee(s) affected shall have their work interrupted or hours reduced. Limited interruption of work or reduction in hours shall not be instituted for the purpose of subcontracting work normally performed by the affected bargaining unit employees.

In the event limited interruptions of employment occur, employees shall, upon request, be entitled to advance of hours up to their scheduled hours in order to provide the employee with up to eighty (80) hours of earnings for a pay period. Advance of hours shall be allowed up to the maximum number of hours of an employee's accumulated and unused vacation leave. If an employee elects to draw such advances, the employee shall not be permitted to reduce the employee's vacation accumulation below the total hours advanced. However, no employee after the first six (6) months of Continuous Service shall be denied the right to use vacation time during a limited interruption of employment as long as vacation hours accrued exceed the hours that the employee has been advanced under this Section. All overtime hours worked subsequent to such advances shall be credited against the employee's aggregate advance of hours until the advance is reduced to zero (0). Employees may use compensatory time in lieu of vacation to provide a full paycheck. An Appointing Authority may require employees who have accrued compensatory time to use such time before the use of vacation. Such employees may choose not to make up the lost hours.

On the payroll period ending closest to November 1st of each year, all employees who have received such advances and have not worked sufficient overtime hours to reduce the advances to zero (0) will have their advances reduced to zero (0) by reduction of the employee's accumulated and unused vacation leave.

Section 6. Subcontracting.

In the event the Appointing Authority finds it necessary to subcontract out work now being performed by employees that may result in a displacement of employees, the Local Union shall be notified no less than ninety (90) calendar days in advance. During this ninety (90) day period,

the Appointing Authority shall meet with the Local Union and discuss ways and means of minimizing any impact the subcontracting may have on the employees.

Section 7. Voluntary Reduction in Hours.

Appointing Authorities may allow employee(s) to take unpaid leaves of absence to reduce layoffs otherwise necessary. If it is necessary to limit the number of employees in a work unit on unpaid leave at the same time, the Appointing Authority shall determine whether conflicts shall be resolved among classes or within a particular class based upon staffing needs. In either event, leave shall be granted on the basis of State Seniority within the employee's work unit.

Such employees taking leaves of absence under this Section shall continue to accrue vacation and sick leave and be eligible for paid holidays and insurance benefits as if the employees had been actually employed during the time of leave. If a leave of absence is for one (1) full pay period or longer, any holiday pay shall be included in the first payroll period warrant after return from the leave of absence. Upon return from leave, the employee shall return to their former position.

ARTICLE 16 - DISCIPLINE AND DISCHARGE

Section 1. Purpose.

Disciplinary action may be imposed upon an employee only for just cause.

Section 2. Union Representation.

The Appointing Authority shall not meet with an employee for the purpose of questioning, in person or by a phone interview, the employee during an investigation that may lead to discipline without first offering the employee an opportunity for union representation, and such meeting shall not take place until a Union representative is available or is released by their supervisor. A Union representative who provides representation during the Union representative's work hours at such an investigatory interview or any meeting related to a demotion, suspension, discharge, or vacation deduction at which an employee is entitled to Union representation (in other words, a *Loudermill* meeting) shall have no loss of pay. Any employee waiving the right to such representation must do so in writing prior to the questioning, however, in the case of a phone interview, an employee may initially waive the right to representation orally. A copy of such waiver shall be promptly furnished to the Local Union President or Steward. The employee shall be advised of the nature of the allegation(s) prior to questioning. However, if any employee is being questioned during an investigation of resident/patient abuse, the employee, upon request, shall have the right to union representation. If an employee is being questioned for any other purpose, the employee shall be given a general overview of the nature of the investigation. Upon request, an employee shall be provided a copy of the transcript of their interview, if available, and/or be allowed to listen to a tape of their interview, if any.

Section 3. Disciplinary Procedure.

Disciplinary action or measures shall include only the following:

1. oral reprimand (not grievable);
2. written reprimand;
3. suspension;
4. vacation reduction in lieu of suspension*
5. demotion; and
6. discharge.

* After consideration of an employee's prior approved vacation, vacation reduction in lieu of suspension may be the equivalent of up to three (3) normally scheduled shifts. At the Appointing Authority's discretion, unpaid suspension and vacation reduction may be combined into one (1) discipline. If the Appointing Authority has reason to discipline an employee, it shall be done in a manner that shall not embarrass the employee before other employees or the public. Oral reprimands shall be identified as such.

When any disciplinary action more severe than an oral reprimand is intended, the Appointing Authority shall, before or at the time such action is taken, notify the employee in writing of the specific reason(s) for such action, and shall provide the Local Union with copies of any written notices of disciplinary action.

An employee who has been notified by their Appointing Authority that they are being investigated for possible disciplinary action shall be informed, in writing, of the status of the investigation upon its conclusion.

Section 4. Investigatory Leave.

The Appointing Authority/designee may place an employee who is the subject of a disciplinary investigation on an investigatory leave with pay provided a reasonable basis exists to warrant such leave.

Section 5. Discharge.

The Appointing Authority shall not discharge any permanent employee without just cause. If the Appointing Authority feels there is just cause for discharge, the employee and the Local Union shall be notified, in writing, that the employee is to be discharged and shall be furnished with the reason(s) therefore and the effective date of the discharge. The employee may request an opportunity to hear an explanation of the evidence against them, to present their side of the story and is entitled to union representation at such meeting, upon request. A Union representative who provides representation during the Union representative's work hours at such a meeting (the *Loudermill* meeting) shall have no loss of pay. The right to such meeting shall expire at the end of the next scheduled work day of the employee after the notice of discharge is delivered to the employee unless the employee and the Appointing Authority agree otherwise. The discharge shall not become effective during the period when the meeting may occur. The employee shall remain in pay status during the time between the notice of discharge and the expiration of the meeting. However, if the employee was not in pay status at the time of the

notice of discharge, for reasons other than an investigatory leave, the requirement to be in pay status shall not apply.

Section 6. Appeal Procedures.

Any disciplinary action imposed upon an employee may be processed as a grievance through the regular grievance procedure as provided in Article 17.

The Union shall have the right to take up a suspension, demotion, and/or discharge as a grievance at the third step of the grievance procedure and the matter shall be handled in accord with this procedure through the arbitration step if deemed necessary.

The termination of unclassified employees is not subject to the arbitration provisions of Article 17 (Grievance Procedure).

Section 7. Personnel Files.

- A. **Materials in File.** Initial minor infractions, irregularities, or deficiencies shall first be privately brought to the attention of the employee and, if corrected, shall not be entered into the employee's personnel record.

An oral reprimand shall not become a part of an employee's personnel record. Investigations which do not result in disciplinary actions shall not be entered into the employee's personnel record. A written record of all disciplinary actions other than oral reprimands shall be entered into the employee's personnel record. All disciplinary entries in the personnel office record shall state the corrective action expected of the employee.

Each employee shall be furnished with a copy of all evaluative and disciplinary entries into the personnel office record and shall be entitled to have the employee's written response included therein.

Documentation regarding any wage garnishment action against an employee shall not be placed in the employee's personnel file.

Only the personnel office record may be used as evidence in any disciplinary action or hearing. This does not limit, restrict, or prohibit the Appointing Authority from submitting supportive documentation or testimony, either oral or written, in any disciplinary hearing, nor does it so limit the Union.

Formal grievances filed by the Union in accordance with the provisions of Article 17, Grievance Procedure, shall not be retained in the employee's personnel file. This includes the grievance form and the Settlement and Release document. However, this material may be stored in the Human Resources Office and will be subject to the provisions of the Minnesota Government Data Practices Act.

- B. **Employee/Union Access to File.** The contents of an employee's personnel office record shall be disclosed to the employee upon request and to the employee's Union

representative upon the written request of the employee. In the event a grievance is initiated under Article 17, the Appointing Authority shall provide a copy of any items from the employee's personnel office record upon the request of the employee. Up to ten (10) copies of such material shall be without cost to the employee, Local Union, or Union. A supervisor's file is subject to the release provisions of the Minnesota Government Data Practices Act.

- C. **Removing Materials from File.** Upon the employee's written request, the following documentation shall be removed from the employee's personnel file:
1. a written reprimand provided that no further disciplinary action has been taken against the employee for one (1) year from the date of the written reprimand;
 2. a written record of a suspension of ten (10) days or less provided that no further disciplinary action has been taken against the employee for three (3) years from the effective date of the suspension;
 3. a written requirement to provide a medical statement (and any such statements) due to suspected sick leave abuse, provided that the employee has not received such a requirement for one (1) year from the expiration of the previous requirement.
 4. a "letter of expectation" provided that the employee has performed satisfactorily for one (1) year from the date of the "letter of expectation".
 5. At the request of the employee, any record of oral reprimands maintained in a supervisory file shall be removed after six (6) months. Disciplinary letters which have met the contractual conditions of removal from the employee's personnel file shall also be removed from the supervisor's file. Unpaid leaves of absence, excluding military leave and FMLA leave, shall not be included in the completion of the service requirements listed in 1-4 above.
 6. The removal of a written reprimand, at the request of the employee from their personnel file, shall constitute the resolution of any applicable outstanding grievances related to the written reprimand.
- D. **Supervisory Conferences.** Supervisory conferences with employees shall be documented in writing within five (5) days of the conference. The employee shall receive a copy of this documentation, and the employee may respond to the written documentation.

A written request to remove a document from a personnel file under this section shall not be placed in the file.

Materials removed pursuant to this section shall be provided to the employee.

Section 8. Resignations.

An employee shall have the right to withdraw a written resignation within three (3) calendar days of its submission.

ARTICLE 17 - GRIEVANCE PROCEDURE

Section 1. Grievance Procedure.

A grievance is defined as a dispute or disagreement as to the interpretation or application of any term or terms of this Agreement.

Employees are encouraged to attempt to resolve the occurrence of any grievance on an informal basis with the employee's immediate supervisor at the earliest opportunity. If the matter is not resolved by informal discussion, it shall be settled in accord with the following procedure.

If an employee/former employee pursues an appeal procedure under M.S. 197.46 (or other applicable Veterans Preference law), the employee/former employee shall be precluded from making an appeal under the following grievance procedure.

Section 2. Processing Grievances.

A. **Release-time.** Union Representatives and the grievant, as specified in "B" below, shall be allowed a reasonable amount of time, without loss of pay, during working hours while on the Appointing Authority's premises to investigate or process grievances in steps 1 through 3. Union representatives and the grievant shall not leave work or disrupt departmental routine to discuss grievances without first requesting permission from their immediate supervisor which shall not be unreasonably withheld.

B. **Representatives.**

Step 1: Up to two (2) of the following Union Representatives may participate: Union Steward, Chief Steward, Union President, Union Vice-President, with or without the grievant.

Steps 2 and 3: Up to three (3) of the same Union Representatives may participate with or without the grievant. In addition, the Union Staff Representative may participate in Step 3.

Upon agreement of the Union and the Employer, the Local Union Steward, Chief Steward, President, and Vice-President need not be from the same seniority unit or bargaining unit as the grieving employee.

Grievance meetings at which the Step 2 Employer Representative is also the Appointing Authority for the third step of the grievance procedure shall be considered to be both the second and third step grievance meetings.

C. See Appendix J entitled "Appointing Authority/Designee's Duty to Furnish Information to Exclusive Representatives Regarding Contract Grievances."

D. **Steps.**

STEP 1: The designated Union Representative(s), with or without the employee, shall attempt to resolve the matter with the employee's immediate supervisor within twenty-one (21) calendar days after the employee, through the use of reasonable diligence, should have had knowledge of the first occurrence of the event giving rise to the grievance. The supervisor shall then attempt to resolve the matter and shall respond to the Union Representative within seven (7) calendar days.

STEP 2: If the grievance has not been resolved to the satisfaction of the Local Union within seven (7) calendar days after the immediate supervisor's response is due, it may be presented in writing by the designated Union Representative to the next level of supervision which has been designated by the Appointing Authority to process grievances. The written grievances shall state the nature of the grievance, the facts upon which it is based, the provision(s) of the Agreement allegedly violated, and the relief requested. The designated Appointing Authority Representative shall arrange a meeting with the Union Representative(s) to discuss the grievance within seven (7) calendar days. A written response shall be forwarded to the Union Representative within seven (7) calendar days of the meeting.

STEP 3: If the grievance still remains unresolved, it may be presented to the Appointing Authority or designated representative by the designated Union Representative within seven (7) calendar days after the Step 2 response is due. The Appointing Authority or designee shall arrange a meeting with the designated Union Representative(s) within seven (7) calendar days. The Appointing Authority or designee shall respond to the Union Representative and the Union staff representative in writing within seven (7) calendar days.

STEP 4: If the grievance remains unresolved after the response of the Appointing Authority is due, the Union shall have sixty (60) calendar days in which to submit a letter to the State Negotiator and the Appointing Authority stating its desire to proceed to arbitration. Within five (5) calendar days after the Union has notified the State Negotiator that it desires to proceed with the arbitration of the grievance the parties shall determine the arbitrator to hear the arbitration by the method provided for in Section 3 of this Article. Except as provided in the procedures for Section 4, expenses for the arbitrator's services and the proceedings shall be borne by the losing party, however, each party shall be responsible for compensating its own representatives and witnesses. If either party cancels an arbitration hearing or asks for a last minute postponement that leads to the arbitrator's making a charge, the canceling party or the party asking

for the postponement shall pay this charge. The decision of the arbitrator shall be final and binding upon the parties. Except as provided in the procedures for Section 4, the arbitrator shall be requested to issue their decision within thirty (30) calendar days after the conclusion of testimony and argument. If either party desires a verbatim record of the arbitration proceedings, it may cause such a record to be made, providing it pays for the record and makes a copy available without charge to the other party and the arbitrator.

- E. The Union and the Employer agree to meet and confer to review the grievance procedure as it applies to small agencies and boards.

Section 3. Arbitration.

Except as indicated in Section 4 below, all arbitrations arising under this Agreement shall be conducted by an Arbitrator to be selected by mutual agreement of the Employer and the Union. If the parties fail to mutually agree upon the arbitrator, the parties shall request a list of five (5) arbitrators from the Bureau of Mediation Services. Both the Employer and the Union shall have the right to strike two (2) names from the list. A coin shall be flipped to determine which party shall strike the first name. The other party shall then strike one (1) name and the process shall be repeated and the remaining person shall be the arbitrator.

Section 4. Expedited Arbitration.

The parties agree to utilize an expedited arbitration procedure for mutually identified grievances in the interest of achieving swift and economical resolution of those grievances.

Section 5. Arbitrator's Authority.

The arbitrator shall have no right to amend, modify, nullify, ignore, add to, or subtract from the provisions of this Agreement. They shall consider and decide only the specific issue or issues submitted to them in writing by the parties of this Agreement, and shall have no authority to make a decision on any other matter not so submitted to them. The arbitrator shall be without power to make decisions contrary to, inconsistent with, or modifying or varying in any way the application of laws, rules, or regulations having the force and effect of law. The decision shall be based solely upon the arbitrator's interpretation and application of the expressed terms of this Agreement and to the facts of the grievance presented.

Section 6. Time Limits.

If a grievance is not presented within the time limits set forth above or the time limits set forth in a Supplemental Agreement, it shall be considered "waived." If a grievance is not appealed to the next step or steps within the specified time limit or any agreed extension thereof, it shall be considered settled on the basis of the Appointing Authority's last answer. If the Appointing Authority or its agents does not answer a grievance or an appeal thereof within the specified time limits, the Union or its agents may elect to treat the grievance as denied at that step and immediately appeal the grievance to the next step. The time limit in each step may be extended by mutual written agreement of the Appointing Authority or its agents and the Union or its

agents in each step and such extension will not be unduly denied. By mutual agreement of the Appointing Authority and the Union, the parties may waive Steps 1, 2 and/or 3.

By mutual agreement of the parties, time limits may be extended for the purpose of entering an employee into an Employee Assistance Program. Requests by the Union or Appointing Authority to so extend time limits shall not be unreasonably denied. All such agreements shall be in writing and signed by both the Union or its agents and the Appointing Authority or its agents.

ARTICLE 18 - WAGES

Section 1. Salary Ranges.

- A. **Salary Range Assignments.** The salary ranges for classes covered by this Agreement shall be those contained in Appendices E-1, E-2 and E-3. In the event that bargaining unit employees are to be assigned to newly created or newly added bargaining unit classes during the life of this Agreement, the salary range for such class shall be established by Minnesota Management and Budget which will advise the Union in advance of final establishment. The salary range established by the Department shall be based on comparability and internal consistency between classes in the salary plan.
- B. **Range Reassignments.** The Employer may assign a class to a higher salary range during the life of this Agreement after consultation with the Union. Upon request of the Union, the Employer will meet and negotiate regarding movement of current employees to the higher salary range. The Union may cancel this provision with seven (7) calendar days advance written notice to the Employer.

Section 2. Conversion.

Effective July 1, 2023, all employees shall be assigned to the same relative step within the salary range for their respective class as specified in Appendix E-1, except as set forth below.

Employees who are paid at a rate which exceeds the maximum rate established for their class prior to implementation of this Agreement, but whose rate falls within the new range for their class, shall be assigned to the maximum of the new range.

In the event the July 1, 2023 maximum rate set forth in Appendix E-1 is equal to or less than the employee's salary as of June 30, 2023, no adjustment shall be made, but employees assigned to these classes shall suffer no reduction in pay.

Section 3. First Year Wage Adjustment.

Effective July 1, 2023, all salary ranges and rates shall be increased by five and one-half percent (5.5%), rounded to the nearest cent. The compensation grids for classes covered by this Agreement are contained in Appendix E-1. Employees shall convert to the new compensation grid as provided in Section 2.

Section 4. Second Year Wage Adjustment.

Effective July 1, 2024, all salary ranges and rates shall be increased by four and one-half percent (4.5%) rounded to the nearest cent. Salary increases provided by this section shall be given to all employees including those employees whose rates of pay exceed the maximum rate for their class. The compensation grids for classes covered by this Agreement are contained in Appendix E-3. Conversion to the new compensation grid shall not change an employee's eligibility for step progression increases.

Section 5. Progression.

Progression step increases may be granted to employees who are eligible for progression steps according to the provisions of this section.

All step increases authorized by this Section shall be granted on a semi-annual or annual basis based on satisfactory performance. Step increases shall be effective at the beginning of the pay period nearest to the employee's progression date, as defined below.

Individual progression dates for those employed prior to July 1, 2007 shall be as determined on July 1, 2007 pursuant to the provisions of the 2007-2009 Collective Bargaining Agreement. The progression date for employees hired or promoted on or after July 1, 2007 shall be the last date of hire or promotion.

Appointing Authorities may withhold step increases because of unsatisfactory performance with written notice to the employee. Increases so withheld may subsequently be granted upon certification by the Appointing Authority that the employee has achieved a satisfactory level of performance. Granting an employee a delayed performance increase shall not change the employee's progression date. If an Appointing Authority fails to give the employee written notice that a step increase is to be withheld prior to the employee's progression date, the increase shall be granted.

Compensation Grid 8. Employees in classes covered by compensation grid 8 shall advance to the next higher step in their salary range on their progression date. An employee appointed to Corrections Officer 1 at step 1, shall move to step 2 after completing one (1) year of satisfactory service. Employees in the classes Corrections Officer 2, Corrections Officer 3, and Corrections Canine Officer shall advance to step 2 semi-annually from their progression date. All employees shall advance from the second and third step to the next higher step in their salary range semi-annually. Employees at or beyond the fourth step shall advance to the next higher step annually thereafter until the maximum rate of pay is attained.

Section 6. Salary Upon Class Change.

- A. **Promotion.** Employees who are promoted during the life of this Agreement shall be granted a salary increase of at least one (1) step or shall be paid at the minimum of the higher range, whichever is greater.

- B. **Voluntary Transfer.** An employee who transfers within the same class shall receive no salary adjustment. An employee who transfers between classes shall receive the minimum adjustment necessary to bring their salary to the minimum rate of the new class. However, an employee receiving a rate of pay in excess of the range maximum shall continue to receive that rate of pay.
- C. **Voluntary Demotion.** An employee who takes a voluntary demotion shall retain their present salary unless that salary exceeds the maximum rate of pay for the new position in which case the employee's salary shall be adjusted to the new maximum. However, an employee may continue to receive a rate of pay in excess of that maximum upon the recommendation of the Appointing Authority and approval of the Commissioner of Minnesota Management and Budget.
- D. **Demotion in Lieu of Layoff.** Any employee who demotes as part of the layoff procedure in Article 15 of this Agreement shall retain their current rate of pay or the rate of pay at the top of the pay range of the class to which they demote, whichever is less. However, an employee may continue to receive a rate of pay in excess of the maximum upon the recommendation of the Appointing Authority and approval of the Commissioner of Minnesota Management and Budget. Employees covered by this Agreement who demote within a seniority unit as a result of a single layoff shall be treated consistently.
- E. **Non-certification During Probationary Period.** An employee who is not certified to permanent status and returns to their former class shall have their salary restored to the same rate of pay the employee would have received had they remained in the former class.
- F. **Salary Over Maximum on Reallocation.** If a position is reallocated or re-compared to a class with a lower salary range maximum, and the salary of the employee exceeds the maximum of the new range, the employee shall be placed in the new class and shall retain their current salary. In addition, the employee shall receive any across-the-board wage increase as provided by this Agreement.

Section 7. Shift Differential.

The shift differential for employees working between the hours of 6:00 p.m. and 6:00 a.m. shall be two dollars and twenty-five cents (\$2.25) per hour for all hours worked before 6:00 am and after 6:00pm. Such shift differential shall be in addition to the employee's regular rate of pay, shall be included in all payroll calculations, but shall not apply during periods on hours not worked.

Section 8. Work Out of Class.

When an employee is expressly assigned to perform substantially all of the duties of a position allocated to a different class that is temporarily unoccupied and the work-out-of-class assignment exceeds ten (10) consecutive work days in duration, the employee shall be paid for all such hours at the employee's current salary when assigned to work in a class which is a transfer or demotion. For a class which is a promotion, an employee shall receive an increase to

the minimum rate of the new class or at least one (1) step higher than the employee's current salary, whichever is greater.

If an employee is assigned to work out of class but does not meet the ten (10) consecutive work day standard, and within five (5) working days the employee is subsequently assigned to work out of class to the same assignment, the previous time served on work out of class will count towards meeting the ten (10) consecutive work day standard.

When an employee is assigned to serve in a class for which the employee is on a layoff list, the employee shall be paid as provided above or the maximum step previously achieved by the employee, whichever is greater.

If the Appointing Authority determines to make a work-out-of-class assignment of six (6) or more consecutive months to a higher class represented by the Union, the Appointing Authority shall appoint the most senior capable and available employee among or within classes and among or within work areas as determined by the Appointing Authority.

Section 9. Severance Pay.

All employees who have accrued twenty (20) years or more continuous State service shall receive severance pay upon any separation from State service except for discharge for cause. Employees with less than twenty (20) years continuous State service shall receive severance pay upon retirement at or after age 65; death; or layoff, except for seasonal layoffs. Employees who separate from State service for reasons other than discharge after ten (10) years of continuous State service and who are immediately entitled at the time of separation to receive an annuity under a State retirement program shall, notwithstanding an election to defer payment of the annuity, also receive severance pay.

Employees who separate from State service with twenty (20) or more years of continuous State service and are eligible to receive severance pay will have one hundred percent (100%) of severance pay converted to the MSRS administered Health Care Savings Plan (HCSP). Employees with less than twenty (20) years of continuous State service who are eligible to receive severance pay upon retirement at or after age sixty-five (65) will have one hundred percent (100%) of severance pay converted to the MSRS administered Health Care Savings Plan (HCSP). At the time of separation, if the employee has been approved exemption from participation in the HCSP from the plan administrator, then the employee will receive any payment due in cash. Employees who do not meet the criteria for the HCSP or whose combined vacation and severance payouts total less than five hundred dollars (\$500) will continue to receive such payments in cash. The MSRS administered Health Care Savings Plan (HCSP) does not apply to permanent or seasonal layoffs. In the case of the death of an employee, severance payment shall be made in cash.

Severance pay shall be equal to forty (40) percent of the employee's first nine hundred (900) hours of accumulated but unused sick leave, and twelve and one-half (12 1/2) percent of the employee's accumulated but unused sick leave in excess of nine hundred (900) hours, times the employee's regular rate of pay at the time of separation.

Employees who have been laid off and received severance pay and are reappointed to State service are eligible for additional severance only if they meet the continuous State service requirement.

Employees who have received severance as a result of continuous State service and are reappointed to State service, are eligible based on their previous years of service for additional severance upon separation.

Severance for eligible employees returning to state service shall be computed upon the difference between the amount of accumulated but unused sick leave restored to the employee's credit at the time the employee was reappointed and the amount of accumulated but unused sick leave at the time of the employee's separation.

Such severance pay shall be excluded from retirement deductions and from any calculations in retirement benefits and shall be paid over a period not to exceed two (2) years from termination of employment. In the event that a terminated employee dies before all or a portion of the severance pay has been disbursed, that balance due shall be paid to a named beneficiary or, lacking same, to the deceased's estate.

Section 10. Injured on Duty Pay.

An employee who, in the ordinary course of employment, while acting in a reasonable and prudent manner and in compliance with the established rules and procedures of the Appointing Authority, incurs a disabling injury stemming from the aggressive and/or intentional and overt act of a person, or which is incurred while attempting to apprehend or take into custody such person, shall receive compensation in an amount equal to the difference between the employee's regular rate of pay and benefits paid under Workers' Compensation, without deduction from the employee's accrued sick leave. Such compensation shall not exceed an amount equal to four hundred (400) times the employee's regular hourly rate of pay per disabling injury.

An employee who, in the ordinary course of employment, while acting in a reasonable and prudent manner and in compliance with the established rules and procedures of the Appointing Authority, incurs a disabling injury stemming from the aggressive and/or intentional and overt act of a person, or which is incurred while attempting to apprehend or take into custody such person, that requires the employee to seek medical attention during or immediately following the shift shall be compensated a lump sum payment for the time until admission and/or discharge, not to exceed four (4) hours. If transport to a secondary medical facility is required, up to an additional four (4) hours shall be granted.

Section 11. Performance Evaluations.

Employees shall be given the opportunity to sign the performance evaluation, but such signing does not indicate acceptance or rejection of the evaluation. The employee shall receive a copy of the performance evaluation at the time they sign it. Performance evaluations shall not be signed or presented by another employee covered by this Agreement. If the Appointing

Authority adds comments to the performance evaluation after the evaluation has been signed by the employee, the Appointing Authority shall notify the employee of the change. The employee shall have twenty (20) calendar days from the date of the receipt of the finalized appraisal to file a written response in the employee's personnel file.

Pursuant to the Minnesota Management and Budget Administrative Procedure No. 20, an employee may appeal their performance rating to the Appointing Authority within thirty (30) calendar days of the official date of rating. The decision of the Appointing Authority is final. At the employee's request a Union Representative may be present during the appeal meeting(s).

Upon request, an employee is entitled to a copy of their current position description. Upon request of a local union, an Appointing Authority shall develop an internal appeal system to review disputes regarding the accuracy of position descriptions. The Appointing Authority shall meet and confer with the local union prior to implementation of the appeal system. Such position descriptions shall not be grievable.

Section 12. Health and Dental Premium Accounts.

The Employer agrees to provide eligible employees with the option to pay for the employee portion of health and dental premiums on a pretax basis as permitted by law or regulation.

Section 13. Medical/Dental Expense Account.

The Employer agrees to allow insurance eligible employees to participate in a medical and dental expense reimbursement program to cover co-payments, deductibles and other medical and dental expenses or expenses for services not covered by health or dental insurance on a pre-tax basis as permitted by law or regulation, up to the maximum amount of salary reduction contributions allowed per calendar year under Section 125 of the Internal Revenue Code or other applicable federal law.

Section 14. Dependent Care Expense Account.

The Employer agrees to provide insurance eligible employees with the option to participate in a dependent care reimbursement program for work-related dependent care expenses on a pretax basis as permitted by law or regulation.

Section 15. Deferred Compensation.

The Employer agrees to provide employees covered by this Agreement with a state-paid contribution to the deferred compensation program under M.S. 352.965. The state-paid contribution shall be in an amount matching the employee's contribution on a dollar for dollar basis not to exceed one hundred and two hundred and fifty dollars (\$250) per employee in each fiscal year of the Agreement.

An employee may choose to convert some or all of their compensatory time bank one time during each fiscal year at a time of their choosing using the employee self-service system so long as the total hours converted in a fiscal year do not exceed eighty (80) hours.

Section 16. Incentives Pilot. The Appointing Authority may create and use incentive program(s).

In order to offer incentives, the Appointing Authority must first develop a procedure that governs the eligibility and parameters of the program, solicit feedback from the Union, and obtain approval from Minnesota Management and Budget.

The Appointing Authority may create and use incentive program(s) that address one or more of the following areas: referral, retention, recruitment, or reassignment incentive.

This provision becomes effective upon the contract's successful ratification and will sunset upon the ratification of the 2025 – 2027 contract.

ARTICLE 19 – INSURANCE

Section 1. State Employee Group Insurance Program (SEGIP). During the life of this Agreement, the Employer agrees to offer a Group Insurance Program that includes health, dental, life, vision, and disability coverages equivalent to existing coverages, subject to the provisions of this Article.

All insurance eligible employees will be provided access to an electronic summary of benefits (SOB) or certificate of coverage (COC) for each insurance product. These documents shall be provided no less than biennially and prior to the beginning of the insurance year.

Section 2. Eligibility for Group Participation. This section describes eligibility to participate in the Group Insurance Program.

- A. **Employees - Basic Eligibility.** Employees may participate in the Group Insurance Program if they are scheduled to work at least 1044 hours in any twelve consecutive months, except for: (1) emergency, or temporary classified, or intermittent employees; (2) student workers; and (3) interns.
- B. **Employees - Special Eligibility.** The following employees are also eligible to participate in the Group Insurance Program:
 - 1. **DNR Employees.** An employee of the Department of Natural Resources may meet the basic eligibility requirement for participation in the Group Insurance Program based on a combination of seasonal and temporary project employment. Eligibility commences after completion of three (3) years of continuous service in which the basic eligibility requirements are met; continues until the employee completes a year in which the basic eligibility requirements are not met; and commences again after the employee meets or is anticipated to meet the basic eligibility requirements in one (1) year.
 - 2. **Employees with a Work-related Injury/Disability.** An employee who was off the State payroll due to a work-related injury or a work-related disability may continue to participate in the Group Insurance Program as long as such an employee receives workers' compensation payments or while the workers' compensation claim is pending.

3. **Totally Disabled Employees.** Consistent with M.S. 62A.148, certain totally disabled employees may continue to participate in the Group Insurance Program.
4. **Separated Employees Under M.S. 43A.27.** Pursuant to M.S. 43A.27, Subdivision 3a(1), an employee who separates or retires from State service and who, at the time of separation has five (5) or more years of allowable pension service and is entitled to immediately receive an annuity under a State retirement program and, who is not eligible for regular (non-disability) Medicare coverage, may continue to participate in the health and dental coverages offered through the Group Insurance Program.

Consistent with M.S. 43A.27, Subdivision 3a(2), an employee who separates or retires from State service and who, at the time of separation is at least fifty (50) years of age and at least fifteen (15) years of State service may continue to participate in the health and dental coverages offered through the Group Insurance Program. Retiree coverage must be coordinated with Medicare.

C. **Dependents.** Eligible dependents for the purposes of this Article are as follows:

1. **Spouse.** The spouse of an eligible employee (if legally married under Minnesota law). For the purposes of health insurance coverage, if that spouse works full-time for an organization employing more than one hundred (100) people and:
 - (1) elects to receive either credits or cash in place of health insurance or health coverage or towards some other benefit in place of health insurance, then they are not eligible for the comparable coverage or insurance under this Article; or
 - (2) is enrolled in a high deductible medical insurance plan (as defined by the IRS) that includes a contribution to a health savings account (HSA) through their employing organization, then they are not eligible for medical coverage under this Article. When both spouses work for the State, or another organization participating in the State Employee Group Insurance Program, a spouse may be covered as a dependent by the other, but when covered as a dependent they may not carry their own coverage (members may only be covered once).
2. **Children.**
 - a. **Health and Dental Coverage:** A dependent child is an eligible employee's child to age twenty-six (26).
 - b. **Dependent Child:** A "dependent child" includes an employee's (1) biological child, (2) child legally adopted by or placed for adoption with the employee, (3) step-child, and (4) foster child who has been placed with the employee by an authorized placement agency or by a judgment, decree, or other court order. For a step-child to be considered a dependent child, the employee must be legally married to the child's legal parent or legal guardian. An employee (or the employee's spouse or jointly) must have permanent, full and sole legal and physical custody of the foster child.

- c. **Coverage Under Only One Plan:** For purposes of (a) and (b) above, if the employee's adult child (age 18 to 26) works for the State or another organization participating in the State's Group Insurance Program, the child may not be covered as a dependent by the employee unless the child is not eligible for a full Employer Contribution as defined in Section 3A.

Effective January 1, 2015 for purposes of (a) and (b) above, if the employee's adult child (age 18 to 26) works for the State or another organization participating in the State's Group Insurance Program, the child may be covered as a dependent by the employee.

3. **Grandchildren.** A dependent grandchild is an eligible employee's unmarried dependent grandchild who:
- a. Is financially dependent upon the employee for principal support and maintenance and has resided with the employee continuously from birth, or
 - b. Resides with the employee and is dependent upon the employee for principal support and maintenance and is the child of the employee's unmarried child (the parent) to age nineteen (19).

If a grandchild is legally adopted or placed in the legal custody of the grandparent, they are covered as a dependent child under Section 2C (2) and (4).

4. **Child with a Disability.** A dependent child with a disability is an eligible employee's child or grandchild regardless of marital status, who was covered and then disabled prior to the limiting age or any other limiting term required for dependent coverage and who continues to be incapable of self-sustaining employment by reason of developmental disability, mental illness or disorder, or physical disability, and is chiefly dependent upon the employee for support and maintenance, provided proof of such incapacity and dependency must be furnished to the health carrier by the employee or enrollee within thirty one (31) days of the child's attainment of the limiting age or any other limiting term required for dependent coverage. The dependent with a disability is eligible to continue coverage as long as they continue to be disabled and dependent, unless coverage terminates under the contract.
5. **Qualified Medical Child Support Order.** A child who would otherwise meet the eligibility requirements and is required to be covered by a Qualified Medical Child Support Order (QMCSO) is considered an eligible dependent.
6. **Child Coverage Limited to Coverage Under One Employee.** If both spouses work for the State or another organization participating in the State's Group Insurance Program, either spouse, but not both, may cover the eligible dependent children or grandchildren. This restriction also applies to two divorced, legally separated, or unmarried employees who share legal responsibility for their eligible dependent children or grandchildren.
- D. **Continuation Coverage.** Consistent with state and federal laws, certain employees, former employees, dependents, and former dependents may continue group health, dental, and/or life coverage at their own expense for a fixed length of time. As of the date of this

Agreement, state and federal laws allow certain group coverages to be continued if they would otherwise terminate due to:

- a. termination of employment (except for gross misconduct);
- b. layoff;
- c. reduction of hours to an ineligible status;
- d. dependent child becoming ineligible due to change in age, student status, marital status, or financial support (in the case of a foster child or stepchild);
- e. death of employee;
- f. divorce or legal separation; or
- g. a covered employee's enrollment in Medicare.

Section 3. Eligibility for Employer Contribution. This section describes eligibility for an Employer Contribution toward the cost of coverage.

- A. **Full Employer Contribution - Basic Eligibility.** Employees covered by this Agreement who are scheduled to work at least seventy-five (75) percent of the time are eligible for the full Employer Contribution. This means:
- 1. Employees who are scheduled to work at least eighty (80) hours per pay period for a period of nine (9) months or more in any twelve (12) consecutive months.
 - 2. Employees who are scheduled to work at least sixty (60) hours per pay period for twelve (12) consecutive months, but excluding part-time or seasonal employees serving on less than a seventy-five (75) percent basis.
- B. **Partial Employer Contribution - Basic Eligibility.** The following employees covered by this Agreement receive the full Employer Contribution for basic life coverage, and at the employee's option, a partial Employer Contribution for health and dental coverages if they are scheduled to work at least fifty (50) percent but less than seventy-five (75) percent of the time. This means:
- 1. Employees who hold part-time appointments and who are scheduled to work at least forty (40) hours but less than sixty (60) hours per pay period for twelve (12) consecutive months.
 - 2. Employees who hold part-time appointments or seasonal employees and who are scheduled to work at least one thousand forty four (1044) hours over a period of any twelve (12) consecutive months.

The partial Employer Contribution for health and dental coverages is seventy-five (75) percent of the full Employer Contribution for both employee only and dependent coverage.

- C. **Quarterly Look Back:** Part time unlimited employees who:
- 1. are anticipated to work at least sixty (60) hours per pay period in an insurance eligible appointment for three (3) months or who have worked for at least sixty (60) hours per

pay period in an insurance eligible appointment for three (3) months and who are anticipated to continue to work at that level in an insurance eligible appointment shall be eligible for the full Employer Contribution.

2. are anticipated to work at least forty (40) hours but not more than sixty (60) hours per pay period in an insurance eligible appointment for three (3) months or who have worked for at least forty (40) hours but not sixty (60) hours per pay period in an insurance eligible appointment for three (3) months and who are anticipated to continue to work at that level in an insurance eligible appointment shall be eligible for a partial Employer Contribution.

Employees shall be reviewed quarterly to determine the actual number of hours worked and hours anticipated to be worked. If the employee does not continue to meet the above standards, the employee's insurance eligibility status shall be changed to the appropriate level.

D. **Special Eligibility.** The following employees also receive an Employer Contribution:

1. **DNR Employees.** An employee of the Department of Natural Resources may meet the basic requirements for a full or partial Employer Contribution based on a combination of seasonal and temporary project employment, as described in Section 2B1.
2. **Employees on Layoff.** A classified employee who receives an Employer Contribution, who has three (3) or more years of continuous service, and who has been permanently or seasonally laid off, remains eligible for an Employer Contribution and all other benefits provided under this Article for an extended benefit eligibility period of six (6) months from the date of layoff.

Seasonal Layoff. The calculation in determining the six (6) months duration of eligibility for an Employer contribution begins on the date the employee is seasonally laid off.

Permanent Layoff. The calculation in determining the six (6) month duration of eligibility for an Employer contribution begins on the date the employee is permanently laid off or accepts an appointment in lieu of layoff without a break in service with a lesser employer-paid insurance contribution than the employee was receiving in the appointment from which the layoff occurred and is no longer actively employed in the appointment from which the layoff occurred.

In the event the employee, while on permanent or seasonal layoff, is rehired to any state job classification with a lesser employer-paid insurance contribution than the employee is receiving under the six (6) months of insurance continuation, the employee shall continue to receive the Employer contribution toward the employer-paid insurance for the duration of the six (6) months.

However, notwithstanding the paragraph above, in the event the employee successfully claims another state job in any agency and classification which is insurance eligible without a break in service, and is subsequently non-certified or involuntarily separated, the six (6) month duration for the Employer contribution toward insurance benefits will

begin at the time the employee is non-certified or otherwise involuntarily separated and is no longer actively employed by the Employer.

In no event shall an extended benefit eligibility period be longer than a total of six (6) months. Further, an employee must be receiving an Employer Contribution under Section 3 (A) or (B) at the time of layoff in order to be eligible for the six (6) months continuation of insurance.

3. **Work-related Injury/Disability.** An employee who receives an Employer Contribution and who is off the State payroll due to a work-related injury or a work-related disability remains eligible for an Employer Contribution as long as such an employee receives workers' compensation payments. If such employee ceases to receive workers' compensation payments for the injury or disability and is granted a medical leave under Article 10, they shall be eligible for an Employer contribution during that leave.
4. **Corrections Early Retirement Incentive.**
 - a. **Corrections Early Retirement Incentive Options.** Any employee who is employed in a classification covered by the Correctional Employees Retirement Plan (M.S. §§352.91 and 352.911) shall be eligible to retire under one of the following Corrections Early Retirement Incentive programs if the conditions for eligibility as set forth in Section 3D4b below are met.
 - 1) **Pre-Fifty-Five Corrections Early Retirement Incentive.** Any employee who attains the age of fifty (50) after the effective date and before the expiration date of the contract and who is employed in a classification covered by the Correctional Employees Retirement Plan (M.S. §§352.91 and 352.911) who retires at or after their fiftieth (50th) birthday but before their fifty-fifth (55th) birthday shall be entitled to participate in the Pre-Fifty-Five (55) Corrections Early Retirement Incentive in accordance with the provisions set forth in Section 3D4b below.

Notwithstanding any changes in coverage in accordance with this or any subsequent Agreement, the Employer contribution for health and dental insurance shall be equal to one hundred twenty (120) times the amount of the monthly Employer contribution applicable to that employee at the time of their retirement, divided by the number of months until the employee attains the age of sixty-five (65).
 - 2) **Post-Fifty-Five Corrections Early Retirement Incentive.** Any employee who attains the age of fifty-five (55) after the effective date and before the expiration date of the contract and who is employed in a classification covered by the Correctional Employees Retirement Plan (M.S. §§352.91 and 352.911) may opt during the pay period in which their fifty-fifth (55th) birthday occurs or any time thereafter until the employee attains the age of sixty-five (65) to participate in the Post-Fifty-Five Corrections Early Retirement Incentive in accordance with the provisions set forth in Section 3D4b below.

b. **Conditions for Eligibility.**

1) **CERP Employees Who Are Covered by This Agreement Before July 1, 2009.**

CERP Employees who are in a classification covered by this agreement before July 1, 2009 shall be subject to the following conditions for eligibility:

- a) Employees exercising either of these options must be eligible for insurance coverage under the provisions of this Article.
- b) Employees exercising either of these options shall be provided with the Employer Contribution toward the health and dental insurance which the employee had in place on the day before they retired. For employees retiring directly from an unpaid medical leave, coverage must have been continued throughout the leave in order to qualify for the Employer Contribution. Such employees shall receive the level of Employer Contribution they were eligible for the day before their unpaid leave began.
- c) Employees eligible to receive an Employer contribution for health and dental coverage immediately prior to taking advantage of the Correctional Employees Retirement Plan (M.S. §§352.91 and 352.911) shall continue to receive an Employer contribution for themselves and their enrolled dependents until the employee attains the age of sixty-five (65). In the event that a retired employee who had elected health and/or dental coverage with eligible dependents dies before attaining the age of sixty-five (65), the enrolled dependent spouse and/or enrolled dependent child(ren) shall maintain the existing employer contribution for health and/or dental coverages until such time that the employee would have turned age 65.
- d) An employee who retires with no Employer contribution for dependent coverage or who terminates dependent coverage following retirement may add a dependent in accordance with Section 5B1; however, that employee shall not subsequently be eligible for an Employer contribution for dependent coverage except when the dependent is the employee's spouse and the spouse immediately at the time of their retirement is enrolled in SEGIP and receiving an Employer contribution for health and dental coverage.
- e) Receipt of the Corrections Early Retirement Incentive benefits is contingent upon completion of all the required forms and continued payment of the required premium.
- f) Employees on an unpaid leave of absence in excess of one (1) year, excluding military and medical leaves, shall be subject to the provisions in Section 3D4b2) below.

2) **Employees Who Are Covered by This Agreement on or After July 1, 2009.**

Employees who promote, demote, transfer, or who are appointed to a classification covered by this agreement on or after July 1, 2009 shall be subject

to the conditions listed directly above in Section 3C4b1) and the following additional conditions for eligibility:

- a) Employees must have a minimum cumulative total of ten (10) years of service in a classification covered by the Correctional Employees Retirement Plan (M.S. §§352.91 and 352.911) at the time of their date of retirement. Any time spent in a classification that is not covered under the Correctional Employees Retirement Plan (M.S. §§352.91 and 352.911) will not satisfy, and will not be combined with covered time to satisfy, the required time.
- b) The employee must have been employed in a classification covered by the Correctional Employees Retirement Plan (M.S. §§352.91 and 352.911) for a minimum of five (5) years immediately preceding their date of retirement.

E. Maintaining Eligibility for Employer Contribution.

1. **General.** An employee who receives a full or partial Employer Contribution maintains that eligibility as long as the employee meets the Employer Contribution eligibility requirements, and appears on a State payroll for at least one (1) full working day during each payroll period. This requirement does not apply to employees who receive an Employer Contribution while on layoff as described in Section 3D2, or while eligible for workers' compensation payments as described in Section 3D3.
2. **Unpaid Leave of Absence.** If an employee is on an unpaid leave of absence, then vacation leave, compensatory time, or sick leave cannot be used for the purpose of maintaining eligibility for an Employer Contribution by keeping the employee on a State payroll for one (1) working day per pay period.
3. **School Year Employment.** If an employee is employed on the basis of a school year and such employment contemplates absences from the State payroll during the summer months or vacation periods scheduled by the Appointing Authority which occur during the regular school year, the employee shall nonetheless remain eligible for an Employer Contribution, provided that the employee appears on the regular payroll for at least one (1) working day in the payroll period immediately preceding such absences.
4. **Special Leaves.** An employee who is on an approved FMLA leave or on a Voluntary Reduction in Hours as provided elsewhere in this Agreement maintains eligibility for an Employer Contribution.

Section 4. Amount of Employer Contribution. The Employer Contribution amounts and rules in effect on June 30, 2023 will continue through December 31, 2023.

A. Contribution Formula - Health Coverage.

1. **Employee Coverage.** For employee health coverage for the 2022 and 2023 plan years, the Employer contributes an amount equal to ninety-five percent (95%) of the employee-only premium of the Minnesota Advantage Health Plan (Advantage).

2. **Dependent Coverage.** For dependent health coverage for the 2022 and 2023 plan years, the Employer contributes an amount equal to eighty-five percent (85%) of the dependent premium of Advantage.

B. **Contribution Formula - Dental Coverage.**

1. **Employee Coverage.** For employee dental coverage, the Employer contributes seventy percent (70%) of the employee premium of the dental plan.
2. **Dependent Coverage.** For dependent dental coverage, the Employer contributes fifty percent (50%) of the dependent premium of the dental plan.

- C. **Contribution Formula - Basic Life Coverage.** For employee basic life coverage and accidental death and dismemberment coverage, the Employer contributes one-hundred percent (100%) of the cost.

Section 5. Coverage Changes and Effective Dates.

A. **When Coverage May Be Chosen.**

1. **Newly Hired Employees.** All employees hired to an insurance eligible position must make their benefit elections by their initial effective date of coverage as defined in this Article, Section 5C. Insurance eligible employees will automatically be enrolled in basic life coverage. If employees eligible for a full Employer Contribution do not choose a health plan administrator and a primary care clinic by their initial effective date, and do not waive medical coverage, they will be enrolled in a Benefit Level Two clinic (or Level One, if available) that meets established access standards in the health plan with the largest number of Benefit Level One and Two clinics in the county of the employee's residence at the beginning of the insurance year. If an employee does not choose a health plan administrator and primary care clinic by their initial effective date, but was previously covered as a dependent immediately prior to their initial effective date, they will be defaulted to the plan administrator and primary care clinic in which they were previously enrolled.
2. **Eligibility Changes.** Employees who become eligible for a full Employer Contribution must make their benefit elections within thirty (30) calendar days of becoming eligible. If employees do not choose a health plan administrator and a primary care clinic and do not waive coverage within this thirty (30) day timeframe, they will be enrolled in a Benefit Level Two clinic (or Level One, if available) that meets established access standards in the health plan with the largest number of Benefit Level One and Two clinics in the county of the employee's residence at the beginning of the insurance year.

If employees who become eligible for a partial Employer Contribution choose to enroll in insurance, they must do so within thirty (30) days of becoming eligible or during open enrollment.

An employee may change their health or dental plan if the employee changes to a new permanent work or residence location and the employee's current plan is no longer available. If the employee has family coverage and if the new residence location is outside of the current plan's service area, the employee shall be permitted to switch to a new plan

administrator and new Benefit Level within thirty (30) days of the residence location change. The election change must be due to and correspond with the change in status. An employee who receives notification of a work location change between the end of an open enrollment period and the beginning of the next insurance year, may change their health or dental plan within thirty (30) days of the date of the relocation under the same provisions accorded during the last open enrollment period. An employee or retiree may also change health or dental plans in any other situation in which the Employer is required by the applicable federal or state law to allow a plan change.

3. **Waiving Medical Coverage.** Employees may choose to waive medical coverage. If an employee is eligible for the full employer contribution and desires to waive medical coverage, the employee must submit a Waiver of Medical Coverage form and provide proof of other coverage by the end of the employee's enrollment period. If an employee does not submit the form and proof by the end of the employee's enrollment period, the employee will be enrolled in medical coverage, with the next opportunity to waive coverage during Open Enrollment or upon a permitted Qualified Life Event. If an employee waives medical coverage, the employee can elect it again during the next Open Enrollment or midyear upon a permitted Qualified Life Event.

B. When Coverage May be Changed or Cancelled.

1. **Changes Due to a Life Event.** After the initial enrollment period and outside of any open enrollment period, an employee may elect to change health or dental coverage (including adding or canceling coverage) and any applicable employee contributions in the following situations (as long as allowed under the applicable provisions, regulations, and rules of the federal and state law in effect at the beginning of the plan year).

The request to change coverage must be consistent with a change in status that qualifies as a life event, and does not include changing health or dental plans, which may only be done under the terms of Section 5A above. Any election to add coverage must be made within thirty (30) days following the event, and any election to cancel coverage must be made within sixty (60) days following the event. (An employee and a retired employee may add dependent health or dental coverage following the birth of a child or dependent grandchild, or following the adoption of a child, without regard to the thirty (30) day limit.) These life events (for both employees and retirees) are:

- a. A change in legal marital status, including marriage, death of a spouse, divorce, legal separation and annulment.
- b. A change in number of dependents, including birth, death, adoption, and placement for adoption.
- c. A change in employment status of the employee, or the employee's or retiree's spouse or dependent, including termination or commencement of employment, a strike or lockout, a commencement of or return from an unpaid leave of absence, a change in worksite, and a change in working conditions (including changing between part-time and full-time or hourly and salary) of the employee, the employee's or

retiree's spouse or dependent which results in a change in the benefits they receive under a cafeteria plan or a health or dental plan.

- d. A dependent ceasing to satisfy eligibility requirements for coverage due to attainment of age or otherwise no longer meets the eligibility requirements under Section 2C.
 - e. A change in the place of residence of the employee, retiree or their spouse or dependent that is not in the health plan service administrator's service area.
 - f. Significant cost or coverage changes (including coverage curtailment and the addition of a benefit package).
 - g. Family Medical Leave Act (FMLA) leave.
 - h. Judgments, decrees or orders.
 - i. A change in coverage of a spouse or dependent under another Employer's plan.
 - j. Open enrollment under the plan of another Employer.
 - k. Health Insurance Portability and Accountability Act (HIPAA) special enrollment rights for new dependents and in the case of loss of other insurance coverage.
 - l. A COBRA-qualifying event.
 - m. Loss of coverage under the group health plan of a governmental or educational institution (a State's children's health insurance program, medical care program of an Indian tribal government, State health benefits risk pool, or foreign government group health plan).
 - n. Entitlement to Medicare or Medicaid.
 - o. Any other situations in which the group health or dental plan is required by the applicable federal or state law to allow a change in coverage.
2. **Canceling Dependent Coverage During Open Enrollment.** In addition to the above situations, dependent health or dependent dental coverage may also be cancelled for any reason during the open enrollment period that applies to each type of plan (as long as allowed under the applicable provisions, regulations and rules of the federal and state law in effect at the beginning of the plan year).
3. **Canceling Employee Coverage.** A part-time employee may also cancel employee coverage within sixty (60) days of when one of the life events set forth above occurs.
4. **Effective Date of Benefit Termination.** Medical, dental and life coverage termination will take effect on the first of the month following the loss of eligible employee or dependent status. Disability benefit coverage terminations will take effect on the day following loss of eligible employee status.

C. **Effective Date of Coverage.**

1. **Initial Effective Date.** The initial effective date of coverage under the Group Insurance Program is the thirtieth (30th) day following the employee's first day of employment, re-

hire, or reinstatement with the State. The initial effective date of coverage for an employee whose eligibility has changed is the date of the change. An employee must be actively at work on the initial effective date of coverage, except that an employee who is on paid leave on the date State-paid life insurance benefits increase is also entitled to the increased life insurance coverage. In no event shall an employee's dependent's coverage become effective before the employee's coverage.

If an employee is not actively at work due to employee or dependent health status or medical disability, medical and dental coverage will still take effect. (Life and disability coverage will be delayed until the employee returns to work.)

2. **Delay in Coverage Effective Date.**

- a. **Basic Life.** If an employee is not actively at work on the initial effective date of coverage, coverage will be effective on the first day of the employee's return to work. The effective date of a change in coverage is not delayed in the event that, on the date the coverage change would be effective, an employee is on an unpaid leave of absence or layoff.
- b. **Medical and Dental.** If an employee is not actively at work on the initial effective date of coverage due to a reason other than hospitalization or medical disability of the employee or dependent, medical and dental coverage will be effective on the first day of the employee's return to work.

The effective date of a change in coverage is not delayed in the event that, on the date the coverage change would be effective, an employee is on an unpaid leave of absence or layoff.

- c. **Optional Life and Disability Coverages.** In order for coverage to become effective, the employee must be in active payroll status and not using sick leave on the first day following approval by the insurance company. If it is an open enrollment period, coverage may be applied for but will not become effective until the first day of the employee's return to work.

D. **Open Enrollment.**

1. **Frequency and Duration.** There shall be an open enrollment period for health coverage in each year of this Agreement, and for dental coverage in the first year of this Agreement. Open enrollment periods shall last a minimum of fourteen (14) calendar days in each year of the Agreement. Open enrollment changes become effective on January 1 of each year of this Agreement. Subject to a timely contract settlement, the Employer shall make open enrollment materials available to employees at least fourteen (14) days prior to the start of the open enrollment period.
2. **Eligibility to Participate.** An employee eligible to participate in the State Employee Group Insurance Program, as described in Sections 2A and 2B, may participate in open enrollment. In addition, a person in the following categories may, as allowed in section 5D1 above, make certain changes: (1) a former employee or dependent on continuation coverage, as described in Section 2D, may change plans or add coverage for health

and/or dental plans on the same basis as active employees; and (2) an early retiree, prior to becoming eligible for Medicare, may change health and/or dental plans as agreed to for active employees, but may not add dependent coverage.

3. **Materials for Employee Choice.** Each year prior to open enrollment, the Appointing Authority will give eligible employees the information necessary to make open enrollment selections. Employees will be provided a statement of their current coverage each year of the contract.
- E. **Coverage Selection Prior to Retirement.** An employee who retires and is eligible to continue insurance coverage as a retiree may change their health or dental plan during the sixty (60) calendar day period immediately preceding the date of retirement. The employee may not add dependent coverage during this period. The change takes effect on the first day of the month following the date of retirement.

Section 6. Basic Coverages.

A. Employee and Family Health Coverage.

1. **Minnesota Advantage Health Plan (Advantage).** The health coverage portion of the State Employee Group Insurance Program is provided through the Minnesota Advantage Health Plan (Advantage), a self-insured health plan offering four (4) Benefit Level options. Provider networks and claim administration are provided by multiple plan administrators. Coverage offered through Advantage is determined by Section 6A2.
2. **Coverage Under the Minnesota Advantage Health Plan.** From July 1, 2023 through December 31, 2023, health coverage under the SEGIP will continue at the level in effect on June 30, 2023. Effective January 1, 2024, Advantage will cover eligible services subject to the copayments, deductibles and coinsurance coverage limits stated. Services provided through Advantage are subject to the managed care procedures and principles, including standards of medical necessity and appropriate practice, of the plan administrators. Coverage details are provided in the Advantage Summary of Benefits.
 - a. **Benefit Options.** Employees must elect a plan administrator and primary care clinic. Those elections will determine the Benefit Level through Advantage. Enrolled dependents must elect a primary care clinic that is available through the plan administrator chosen by the employee.
 - 1) **Plan Administrator.** Employees must elect a plan administrator during their initial enrollment in Advantage and may change their plan administrator election only during the annual open enrollment and when permitted under Section 5. Dependents must be enrolled through the same plan administrator as the employee.
 - 2) **Benefit Level.** The primary care clinics available through each plan administrator are assigned a Benefit Level. The Benefit Levels are outlined in the benefit chart below. Primary care clinics may be in different Benefit Levels for different plan administrators. Family members may be enrolled in clinics that are in different Benefits Levels. Employees and their dependents may change to clinics in

different Benefit Levels during the annual open enrollment. Employees and their dependents may also elect to move to a clinic in a different Benefit Level within the same plan administrator by calling their plan administrator, with changes typically effective the following day. Unless the individual has a referral from their primary care clinic, there are no benefits for services received from providers in Benefit Levels that are different from that of the primary care clinic in which the individual has enrolled.

- 3) **Primary Care Clinic.** Employees and each of their covered dependents must individually elect a primary care clinic within the network of providers offered by the plan administrator chosen by the employee. Employees and their dependents may elect to change clinics within their clinic's Benefit Level as often as the plan administrator permits and as outlined above.
- 4) **Advantage Benefit Chart for Services Incurred During Plan Years 2022 and 2023.**

2022 and 2023 Benefit Provision	Benefit Level 1 The member pays:	Benefit Level 2 The member pays:	Benefit Level 3 The member pays:	Benefit Level 4 The member pays:
Deductible for all services except drugs and preventive care (S/F)	\$250/\$500	\$400/\$800	\$750/\$1,500	\$1,500/\$3,000
Office visit copay/urgent care (copay waived for preventive services)	\$35	\$40	\$70	\$90
Mental Health Office Visit Copay	\$0 not subject to the Deductible	\$0 not subject to the Deductible	\$50	\$70
In-Network Convenience Clinics and Online Care (deductible waived)	\$0	\$0	\$0	\$0
Emergency room copay	\$100 not subject to the Deductible	\$125 not subject to the Deductible	\$150 not subject to the Deductible	\$350 not subject to the Deductible

2022 and 2023 Benefit Provision	Benefit Level 1 The member pays:	Benefit Level 2 The member pays:	Benefit Level 3 The member pays:	Benefit Level 4 The member pays:
Facility copays - Per inpatient admission (waived for admission to Center of Excellence) - Per outpatient surgery	\$100 \$60	\$200 \$120	\$500 \$250	N/A – subject to Deductible and 25% Coinsurance to OOP maximum N/A – subject to Deductible and 25% Coinsurance to OOP maximum
Coinsurance for MRI/CT scan services	10%	15%	25%	N/A – subject to Deductible and 30% Coinsurance to OOP maximum
Coinsurance for services <u>NOT</u> subject to copays	5% (95% coverage after payment of deductible)	5% (95% coverage after payment of deductible)	20% (80% coverage after payment of deductible)	25% for all services to OOP maximum after deductible
Coinsurance for lab, pathology and X-ray (not included as part of preventive care and not subject to office visit or facility copayments)	10% (90% coverage after payment of deductible)	10% (90% coverage after payment of deductible)	20% (80% coverage after payment of deductible)	25% for all services to OOP maximum after deductible
Coinsurance for durable medical equipment	20% (80% coverage after payment of 20% coinsurance)	20% (80% coverage after payment of 20% coinsurance)	20% (80% coverage after payment of 20% coinsurance)	25% for all services to OOP maximum after deductible
Copay for three-tier prescription drug plan	Tier 1: \$18 Tier 2: \$30 Tier 3: \$55	Tier 1: \$18 Tier 2: \$30 Tier 3: \$55	Tier 1: \$18 Tier 2: \$30 Tier 3: \$55	Tier 1: \$18 Tier 2: \$30 Tier 3: \$55

2022 and 2023 Benefit Provision	Benefit Level 1 The member pays:	Benefit Level 2 The member pays:	Benefit Level 3 The member pays:	Benefit Level 4 The member pays:
Maximum drug out-of-pocket limit (S/F)	\$1,050/\$2,100	\$1,050/\$2,100	\$1,050/\$2,100	\$1,050/\$2,100
Maximum non-drug out-of-pocket limit (S/F)	\$1,700/\$3,400	\$1,700/\$3,400	\$2,400/\$4,800	\$3,600/\$7,200

- b. **Incentive.** Employees will receive a \$70 first-dollar credit in the plan year 2025 to their individual deductible (regardless of whether the employee is enrolled in single or family coverage), conditional upon completion of qualifying activities in the wellbeing program by the deadline.
- c. **Services Received From, or Authorized By, a Primary Care Physician within the Primary Care Clinic.** Under Advantage, the health care services outlined in the benefits charts above shall be received from, or authorized by a primary care physician within the primary care clinic. Preventive care, as outlined in the Summary of Benefits, is covered at one hundred (100) percent for services received from or authorized by the primary care clinic. The primary care clinic shall be selected from approved clinics in accordance with the Advantage administrative procedures. Unless otherwise specified in 6A2, services not received from, or authorized by, a primary care physician within the primary care clinic may not be covered. Unless the individual has a referral from their primary care clinic, there are no benefits for services received from providers in Benefit Levels that are different from that of the primary care clinic in which the individual has enrolled.
- d. **In-Area Services Not Requiring Referral From a Primary Care Physician Within the Primary Care Clinic.**
- 1) **Routine Eye Exams.** Limited to one (1) routine examination per year for which no copay applies. Eye injury or illness at an in-network provider will be covered as an office visit based on the benefit level in which the individual is enrolled.
 - 2) **Emergency Services and Urgent Care.** The emergency room copay applies to all outpatient emergency visits that do not result in hospital admission within twenty-four (24) hours.
 - 3) **Obstetrics and Gynecological Care.** The deductible and coinsurance for services not subject to copays applies.
 - 4) **Mental Health Care and Substance Use Disorder Treatment.**
 - 5) **Chiropractic Care.**

For all services listed above apart from urgent care and emergency care, a provider must be in-network with the member's plan administrator for the service to be provided.

e. **Prescription Drugs.**

1) **Copayments and Annual Out-of-Pocket Maximums.**

For the first and second year of the contract:

Tier 1 Copayment: Eighteen dollar (\$18) copayment per prescription or refill for a Tier 1 drug dispensed in a thirty (30) day supply.

Tier 2 Copayment: Thirty dollar (\$30) copayment per prescription or refill for a Tier 2 drug dispensed in a thirty (30) day supply.

Tier 3 Copayment: Fifty-five dollar (\$55) copayment per prescription or refill for a Tier 3 drug dispensed in a thirty (30) day supply.

Out of Pocket Maximum: There is an annual maximum eligible out-of-pocket expense limit for prescription drugs of one thousand and fifty dollars (\$1,050) per person or two thousand one hundred dollars (\$2,100) per family.

2) **Insulin.** Insulin will be treated as a prescription drug subject to a separate copay for each type prescribed.

3) **Brand Name Drugs.** If the subscriber chooses a brand name drug when a bioequivalent generic drug is available, the subscriber is required to pay the standard copayment plus the difference between the cost of the brand name drug and the generic. Amounts above the copay that an individual elects to pay for a brand name instead of a generic drug will not be credited toward the out-of-pocket maximum.

f. **Special Service Networks.** The following services must be received from special service network providers in order to be covered. All terms and conditions outlined in the Summary of Benefits apply.

1) Mental health services – inpatient or outpatient.

2) Chemical dependency services – inpatient and outpatient.

3) Chiropractic services.

4) Transplant coverage.

5) Cardiac services.

6) Home infusion therapy.

7) Hospice.

8) Fertility.

g. **Individuals whose permanent residence and principal work location are outside the State of Minnesota and outside of the Advantage Plan's service area.** If these individuals use a provider within the plan administrator's national network preferred

provider organization in their area, services will be covered at Benefit Level Two. If a national network provider is not available in their area, services will be covered at Benefit Level Two through any other provider available in their area. If a national network provider is available but not used, benefits will be covered at Benefit Level 3. All terms and conditions outlined in the Summary of Benefits will apply.

h. **Children living with an ex-spouse outside the Advantage Plan's service area.**

Covered children living with former spouses outside the service area and enrolled under this provision as of December 31, 2003, will be covered at Benefit Level Two. If available, care must be received by providers in the plan administrator's national network. If a national network provider is available but not used, benefits will be covered at Benefit Level Three.

i. **Health Care Services Received Outside the Minnesota Advantage Health Plan's Service Area**

For covered services received by employees, former employees, and dependents outside of the Advantage service area, all care that is received within the national network of the member's plan administrator will be covered at Benefit Level 3, with a separate out of area deductible. Urgent care and emergency care will be covered at Benefit Level 3 whether or not the providers are within the member's plan administrator's national network. All other out-of- area care must be received within the given plan administrator's national network to be covered by the plan. Referrals are not required for care received outside of the Advantage Plan's service area.

j. **Lifetime maximums and non-prescription out-of-pocket maximums.** Coverage under Advantage is not subject to a per person lifetime maximum.

In the first and second years of the contract, coverage under Advantage is subject to a plan year, non-prescription drug, out-of-pocket maximum of one thousand seven hundred dollars (\$1,700) per person or three thousand four hundred dollars (\$3,400) per family for members whose primary care clinic is in Cost Level 1 or Cost Level 2; two thousand four hundred dollars (\$2,400) per person or four thousand eight hundred dollars (\$4,800) per family for members whose primary care clinic is in Cost Level 3; and three thousand six hundred dollars (\$3,600) per person or seven thousand two hundred dollars (\$7,200) per family for members whose primary care clinic is in Cost Level 4.

k. **In-Network Convenience Clinics and Online Care.** Services received at in-network convenience clinics and online care are not subject to a copayment in each year of the Agreement. First dollar deductibles are waived for convenience clinic and online care visits. (Note that prescriptions received as a result of a visit are subject to the drug copayment and out-of-pocket maximums described above at 6A2(4)e.)

3. **Benefit Level Two Health Care Network Determination.** Issues regarding the health care networks for the 2022 insurance year shall be negotiated in accordance with the following procedures:

- a. At least twelve (12) weeks prior to the open enrollment period for the 2022 insurance year the Employer shall meet and confer with the Joint Labor/Management Committee on Health Plans in an attempt to reach agreement on the Benefit Level Two health care networks.
- b. If no agreement is reached within five (5) working days, the Employer and the Joint Labor/Management Committee on behalf of all of the exclusive representatives shall submit a list of providers/provider groups in dispute to a mutually agreed upon neutral expert in health care delivery systems for final and binding resolution. The only providers/provider groups that may be submitted for resolution by this process are those for which, since the list for the 2020 insurance year was established, Benefit Level Two access has changed, or those that are intended to address specific problems caused by a reduction in Benefit Level Two access.

Absent agreement on a neutral expert, the parties shall select an arbitrator from a list of five (5) arbitrators supplied by the Bureau of Mediation Services. The parties shall flip a coin to determine who strikes first. One-half (1/2) of the fees and expenses of the neutral shall be paid by the Employer and one-half (1/2) by the Exclusive Representatives. The parties shall select a neutral within five (5) working days after no agreement is reached, and a hearing shall be held within fourteen (14) working days of the selection of the neutral.

- c. The decision of the neutral shall be issued within two (2) working days after the hearing.
4. **Coordination with Workers' Compensation.** When an employee has incurred an on-the-job injury or an on-the-job disability and has filed a claim for workers' compensation, medical costs connected with the injury or disability shall be paid by the employee's health plan, pursuant to M.S. 176.191, Subdivision 3.
 5. **Health Promotion and Health Education.** Both parties to this Agreement recognize the value and importance of health promotion and health education programs. Such programs can assist employees and their dependents to maintain and enhance their health, and to make appropriate use of the health care system. To work toward these goals:
 - a. **Develop Programs.**
 - 1) **Policy.** The Employer will develop and implement health promotion, health education programs, and other programs mutually agreed upon with the Joint Labor Management Committee on Health Plans, subject to the availability of resources. Each Appointing Authority will develop a health promotion and health education program consistent with the Minnesota Management and Budget policy. Upon request of any exclusive representative in an agency, the Appointing Authority shall jointly meet and confer with the exclusive representative(s) and may

include other interested exclusive representatives. Agenda items shall include but are not limited to smoking cessation, weight loss, stress management, health education/self-care, and education on related benefits provided through the health plan administrators serving state employees.

- 2) **Pilot Programs.** The Employer may develop voluntary pilot programs to test the acceptability of various risk management programs, programs that seek to control costs, programs that streamline the delivery of services, or that enhance services to members. Incentives for participation in such programs may include improvements to the benefits outlined in this Article. Implementation of such pilot programs is subject to the review and approval of the Joint Labor-Management Committee on Health Plans.
- b. **Health Plan Specification.** The Employer will require health plans participating in the Group Insurance Program to develop and implement health promotion and health education programs for State employees and their dependents.
- c. **Employee Participation.** The Employer will assist employees' participation in health promotion and health education programs. Health promotion and health education programs that have been endorsed by the Employer (Minnesota Management and Budget) will be considered to be non-assigned job-related training pursuant to Administrative Procedure 21. Approval for this training is at the discretion of the Appointing Authority and is contingent upon meeting staffing needs in the employee's absence and the availability of funds. Employees are eligible for release time, tuition reimbursement, or a pro rata combination of both. Employees may be reimbursed for up to one hundred (100) percent of tuition or registration costs upon successful completion of the program. Employees may be granted release time, including the travel time, in lieu of reimbursement.
6. **Post Retirement Health Care Benefit.** Employees who separate from State service and who, at the time of separation are insurance eligible and entitled to immediately receive an annuity under a State retirement program, shall be entitled to a contribution of two hundred fifty dollars (\$250) to the Minnesota State Retirement System's (MSRS) Health Care Savings Plan. Employees who have a HCSP waiver on file shall receive a two hundred fifty dollars (\$250) cash payment. If the employee separates due to death, the two hundred fifty dollars (\$250) is paid in cash, not to the HCSP. An employee who becomes totally and permanently disabled on or after January 1, 2008, who receives a State disability benefit, and is eligible for a deferred annuity under a State retirement program is also eligible for the two hundred fifty dollar (\$250) contribution to the MSRS Health Care Savings Plan. Employees are eligible for this benefit only once.
7. **Temporary plan changes due to a state or national emergency.**

SEGIS and the unions recognize that certain natural disasters and other major emergencies may disrupt or seriously threaten to disrupt the State of Minnesota at a time when employees are especially needed to provide services. If the State or a federal government agency declares a state of emergency or otherwise invokes emergency authority by declaration, rules, regulations or similar official statements, the terms of the programs administered by SEGIS may be changed for the period of the declared emergency and for up to a 30 day run-out period.

These changes may include changes to programs administered by SEGIS including but not limited to, benefit design, enrollment and eligibility, billing, and administration as well as waiver of out-of-network restrictions, changes to out of pocket costs, extension of time frames for enrollment and billing, and other protocols reasonably required to provide Members with access to benefits.

These changes must be agreed to by both SEGIS and the Joint Labor Management Committee. Nothing in this provision prohibits SEGIS from making changes authorized or required under another authority including but not limited to a state or federal law, regulation, order, or rule without union agreement.

B. Employee Life Coverage.

1. **Basic Life and Accidental Death and Dismemberment Coverage.** The Employer agrees to provide and pay for the following term life coverage and accidental death and dismemberment coverage for all employees eligible for an Employer Contribution, as described in Section 3. Any premium paid by the State in excess of fifty thousand dollars (\$50,000) coverage is subject to a tax liability in accord with Internal Revenue Service regulations. An employee may decline coverage in excess of fifty thousand dollars (\$50,000) by filing a waiver in accord with Minnesota Management and Budget procedures. The basic life insurance policy will include an accelerated benefits agreement providing for payment of benefits prior to death if the insured has a terminal condition.

Employee's Annual Base Salary	Group Life Insurance Coverage	Accidental Death and Dismemberment Principal Sum
\$10,000 - \$15,000	\$15,000	\$15,000
\$15,001 - \$20,000	\$20,000	\$20,000
\$20,001 - \$25,000	\$25,000	\$25,000
\$25,001 - \$30,000	\$30,000	\$30,000
\$30,001 - \$35,000	\$35,000	\$35,000
\$35,001 - \$40,000	\$40,000	\$40,000
\$40,001 - \$45,000	\$45,000	\$45,000
\$45,001 - \$50,000	\$50,000	\$50,000
\$50,001 - \$55,000	\$55,000	\$55,000

Employee's Annual Base Salary	Group Life Insurance Coverage	Accidental Death and Dismemberment Principal Sum
\$55,001 - \$60,000	\$60,000	\$60,000
\$60,001 - \$65,000	\$65,000	\$65,000
\$65,001 - \$70,000	\$70,000	\$70,000
\$70,001 - \$75,000	\$75,000	\$75,000
\$75,001 - \$80,000	\$80,000	\$80,000
\$80,001 - \$85,000	\$85,000	\$85,000
\$85,001 - \$90,000	\$90,000	\$90,000
Over \$90,000	\$95,000	\$95,000

2. **Extended Benefits.** An employee who becomes totally disabled before age 70 shall be eligible for the extended benefit provisions of the life insurance policy until age 70. Employees who were disabled prior to July 1, 1983 and who have continuously received benefits shall continue to receive such benefits under the terms of the policy in effect prior to July 1, 1983.

Section 7. Optional Coverages.

A. Employee and Family Dental Coverage.

1. **Coverage Under the State Dental Plan.** The State Dental Plan will provide the following coverage:
 - a. **Copayments.** Effective January 1, 2020, the State Dental Plan will cover allowable charges for the following services subject to the copayments and coverage limits stated. Higher out-of-pocket costs apply to services obtained from dental care providers not in the State Dental Plan network. Services provided through the State Dental Plan are subject to the State Dental Plan's managed care procedures and principles, including standards of dental necessity and appropriate practice. The plan shall cover general cleaning two (2) times per plan year and special cleanings (root or deep cleaning) as prescribed by the dentist.

Service	In-Network	Out-of-Network
Diagnostic/Preventive	100%	50% after deductible
Fillings	80% after deductible	50% after deductible
Endodontics	80% after deductible	50% after deductible
Periodontics	80% after deductible	50% after deductible
Oral Surgery	80% after deductible	50% after deductible
Crowns	80% after deductible	50% after deductible
Implants	80% after deductible	50% after deductible
Prosthetics	80% after deductible	50% after deductible

Service	In-Network	Out-of-Network
Prosthetic Repairs	80% after deductible	50% after deductible
Orthodontics	80% after deductible	50% after deductible

- b. **Deductible.** An annual deductible of fifty dollars (\$50) per person and one hundred fifty dollars (\$150) per family applies to State Dental Plan non-preventive services received from in-network providers. An annual deductible of one hundred twenty-five dollars (\$125) per person applies to State Dental Plan services received from out of network providers. The deductible must be satisfied before coverage begins.
- c. **Annual Maximums.** State Dental Plan coverage is subject to a two thousand and two hundred dollar (\$2200) annual maximum benefit payable (excluding orthodontia and preventive services) per person. "Annual" means per insurance year.
- d. **Orthodontia Lifetime Maximum.** Orthodontia benefits are subject to a three thousand dollar (\$3,000) lifetime maximum benefit. If an employee elects dental benefits on their own policy, dollars spent when the employee was a dependent of another policyholder shall not be applied toward the new policy's lifetime maximum.

B. Life Coverage.

1. **Employee.** An employee may purchase up to five hundred thousand dollars (\$500,000) additional life insurance, in increments established by the Employer, subject to satisfactory evidence of insurability. A new employee may purchase up to two (2) times annual salary in optional employee life coverage by their initial effective date of coverage as defined in this Article, Section 5C without evidence of insurability. An individual may only be covered on one state sponsored life coverage policy. A retired employee who returns to state service with optional employee life coverage in place or who has already received a paid-up benefit are not eligible for optional employee life coverage. An employee who becomes eligible for insurance may purchase up to two (2) times annual salary in optional employee life coverage without evidence of insurability within thirty (30) days of the initial effective date as defined in this Article.
2. **Spouse.** An employee may purchase up to five hundred thousand dollars (\$500,000) life insurance coverage for their spouse in increments established by the Employer, subject to satisfactory evidence of insurability. An individual may only be covered on one state sponsored life coverage policy. A retired employee who returns to state services with optional spouse life coverage in place or who has already received a paid-up benefit is not eligible for optional spouse life coverage. A new employee may purchase either five thousand dollars (\$5,000) or ten thousand dollars (\$10,000) in optional spouse life coverage by their initial effective date of coverage as defined in this Article, Section 5C without evidence of insurability. An employee who becomes eligible for insurance may purchase either five thousand dollars (\$5,000) or ten thousand dollars (\$10,000) in optional spouse coverage without evidence of insurability within thirty (30) days of the initial effective date as defined in this Article.

3. **Children/Grandchildren.** An employee may purchase life insurance in the amount of ten thousand dollars (\$10,000) as a package for all eligible children/grandchildren (as defined in Section 2C2 and 2C3 of this Article). An individual may only be covered on one policy, by one employee participating in the State Employee Group Insurance Program. For a new employee, child/grandchild coverage requires evidence of insurability if application is made after the initial effective date of coverage as defined in this Article, Section 5C. An employee who becomes eligible for insurance may purchase child/grandchild coverage without evidence of insurability if application is made within thirty (30) days of the initial effective date as defined in this Article. Child/grandchild coverage commences immediately from the moment of live birth up to age twenty-six (26).
4. **Accelerated Life.** The additional employee, spouse and child life insurance policies will include an accelerated benefits agreement providing for payment of benefits prior to death if the insured has a terminal condition.
5. **Waiver of Premium.** In the event an employee becomes totally disabled before age seventy (70), there shall be a waiver of premium for all life insurance coverage that the employee had at the time of disability.
6. **Paid Up Life Policy.** At age sixty-five (65) or the date of retirement, an employee who has carried optional employee life insurance for the five (5) consecutive years immediately preceding the date of the employee's retirement or age sixty-five (65), whichever is later, shall receive a post-retirement paid-up life insurance policy in an amount equal to twenty (20) percent of the smallest amount of optional employee life insurance in force during that five (5) year period. The employee's post-retirement death benefit shall be effective as of the date of the employee's retirement or the employee aged sixty-five (65), whichever is later. Employees who retire prior to age sixty-five (65) must be immediately eligible to receive a state retirement annuity and must continue their optional employee life insurance to age sixty-five (65) in order to remain eligible for the employee post-retirement death benefit.

An employee who has carried optional spouse life insurance for the five (5) consecutive years immediately preceding the date of the employee's retirement or spouse age sixty-five (65), whichever is later, shall receive a post-retirement paid-up life insurance policy in an amount equal to fifteen (15) percent of the smallest amount of optional spouse life insurance in force during that five (5) year period. The spouse post-retirement death benefit shall be effective as of the date of the employee's retirement or spouse age sixty-five (65), whichever is later. The employee must continue the full amount of optional spouse life insurance to the date of the employee's retirement or spouse age sixty-five (65), whichever is later, in order to remain eligible for the spouse post-retirement death benefit.

7. **Procurement.** A disability insurance Request for Proposal (RFP) may be issued during the term of this labor agreement. This RFP may result in changes to the current disability coverage benefit. The Joint Labor Management Committee on Health Plans

(JML) will participate in the disability coverage RFP process and the JLM must agree to changes that modify the disability coverage provisions from status quo benefit levels.

Each policy remains separate and distinct, and amounts may not be combined for the purpose of increasing the amount of a single policy.

C. **Disability Coverage.**

1. **Short-Term Disability Coverage.** An employee may purchase short-term disability coverage that provides benefits of from three hundred dollars (\$300) to five thousand dollars (\$5,000) per month, up to two-thirds (2/3) of an employee's salary, for up to one hundred eighty (180) days during total disability due to a non-occupational accident or a non-occupational sickness. Benefits are paid from the first day of a disabling injury or from the eighth day of a disabling sickness. For a new employee, coverage applied for by the initial effective date of coverage as defined in this Article, Section 5C does not require evidence of insurability. For an employee who becomes eligible for insurance, coverage applied for within thirty (30) days of the initial effective date does not require evidence of insurability. An employee who is insurance eligible and moves from a temporary position to a permanent position will be allowed to enroll in short-term disability coverage within thirty (30) days of the event without providing evidence of insurability. A short-term disability open enrollment will be offered every five years.
2. **Long-Term Disability Coverage.** New employees may enroll in long-term disability insurance by their initial effective date of coverage. Employees who become eligible for insurance may enroll in long-term disability insurance within thirty (30) days of their initial effective date as defined in this Article, Section 5C. An employee who is insurance eligible and moves from a temporary position to a permanent position will be allowed to enroll in long-term disability coverage within thirty (30) days of the event without providing evidence of insurability. The terms are the same as for employees who wish to add/increase during the annual open enrollment. During open enrollment only, an employee may purchase long-term disability coverage that provides benefits of from three hundred dollars (\$300) to seven thousand dollars (\$7,000) per month, based on the employee's salary, commencing on the 181st calendar day of total disability, and not subject to evidence of insurability but with a limited term pre-existing condition exclusion. Employees should be aware that other wage replacement benefits, as described in the certificate of coverage (i.e., Social Security Disability, Minnesota State Retirement Disability, etc.), may result in a reduction of the monthly benefit levels purchased. In any event, the minimum is the greater of three hundred dollars (\$300) or fifteen (15) percent of the amount purchased. The minimum benefit will not be reduced by any other wage replacement benefit. In the event that the employee becomes totally disabled before age seventy (70), the premiums on this benefit shall be waived.
3. **Procurement.** A disability insurance Request for Proposal (RFP) may be issued during the term of this labor agreement. This RFP may result in changes to the current disability coverage benefit. The Joint Labor Management Committee on Health Plans

(JML) will participate in the disability coverage RFP process and the JLM must agree to changes that modify the disability coverage provisions from status quo benefit levels.

- D. **Accidental Death and Dismemberment Coverage.** An employee may purchase accidental death and dismemberment coverage that provides principal sum benefits in amounts ranging from five thousand dollars (\$5,000) to two hundred thousand dollars (\$200,000). Payment is made only for accidental bodily injury or death and may vary, depending upon the extent of dismemberment. An employee may also purchase from five thousand dollars (\$5,000) to twenty-five thousand dollars (\$25,000) in coverage for their spouse, but not in excess of the amount carried by the employee.
- E. **Vision Coverage.** Under the life of this agreement, an optional and fully employee-paid vision benefit will be available pursuant to contract parameters with the State's vision vendor.
- F. **Continuation of Optional Coverages During Unpaid Leave or Layoff.** An employee who takes an unpaid leave of absence or who is laid off may discontinue premium payments on optional policies during the period of leave or layoff. If the employee returns within one (1) year, the employee shall be permitted to pick up all optionals held prior to the leave or layoff. For purposes of reinstating such optional coverages, the following limitations shall be applicable.

For the first twenty-four (24) months of long-term disability coverage after such a period of leave or layoff during which long-term disability coverage was discontinued, any such disability coverage shall exclude coverage for pre-existing conditions. For disability purposes, a pre-existing condition is defined as any disability which is caused by, or results from, any injury, sickness or pregnancy which occurred, was diagnosed, or for which medical care was received during the period of leave or layoff. In addition, any pre-existing condition limitations that would have been in effect under the policy but for the discontinuance of coverage shall continue to apply as provided in the policy.

The limitations set forth above do not apply to leaves that qualify under the Family Medical Leave Act (FMLA).

ARTICLE 20 - EXPENSE ALLOWANCES

Section 1. General.

The Appointing Authority may authorize travel at State expense for the effective conduct of the State's business. Such authorization must be granted prior to the incurrence of the actual expenses. Employees affected under this Article shall be reimbursed for such expenses that had been authorized by the Appointing Authority in accordance with the terms of this Article.

Section 2. Automobile Expense.

When a State-owned vehicle is not available and an employee is required to use their personal automobile to conduct authorized State business, the Appointing Authority shall reimburse the

employee at the then current Federal IRS mileage reimbursement rate on the most direct route. When a State-owned vehicle is offered and declined by the employee, mileage shall be paid at the rate of seven (7) cents per mile less than the current Federal IRS mileage reimbursement rate on the most direct route. However, if a State-owned vehicle is available, the Appointing Authority may require an employee to use the State car to conduct authorized State business. Deviations from the most direct route, such as vicinity driving or departure from the employee's residence, shall be shown separately on the employee's daily expense record and reimbursed under the foregoing rates. Actual payment of toll charges and parking fees shall be reimbursed. An employee shall not be required by the Appointing Authority to carry automobile insurance coverage beyond that required by law.

When employees do not report to the office during the day or are required to make business calls before or after reporting to the office, their allowable mileage is the lesser of the mileage from their home to the first stop or from the office to the first stop; all mileage between points visited on state business during the day; and the lesser of the mileage from the last stop to their home or from the last stop to the office.

Employees accepting mobility assignments, as defined in Administrative Procedure 1.1, are not eligible for mileage reimbursement for the trip between their home and the mobility assignment.

Employees who use a specially equipped personal van or van-type vehicle on official State business shall be reimbursed for mileage at a rate of forty-two (42) cents per mile on the most direct route. In order to qualify for this reimbursement rate, the vehicle must be equipped with a ramp, lift, or other level exchanging device designed to provide access for a wheelchair.

Reimbursement for use of a motorcycle on official State business shall be at a rate of fifteen (15) cents per mile on the most direct route.

The Appointing Authority may authorize travel in personal aircraft when it is deemed in the best interest of the State. Mileage reimbursement in such cases shall be at a rate of forty-five (45) cents and shall be based on the shortest route based on direct air mileage between the point of departure and the destination.

Section 3. Commercial Transportation.

When an employee is required to use commercial transportation (air, taxi, rental car, ride-share etc.) in connection with authorized business of an Appointing Authority, the employee shall be reimbursed for the actual expenses of the mode and class of transportation so authorized. Reasonable gratuities may be included in commercial travel costs.

Section 4. Overnight Travel.

Employees in travel status who incur expenses for lodging shall be allowed actual reasonable costs of lodging, in addition to the actual cost of meals while away from their temporary or permanent work station, up to the maximums stated in Section 5 of this Article. Employees in

travel status in excess of one (1) week without returning home shall be allowed actual cost not to exceed \$16.00 per week for laundry and dry cleaning for each week after the first week.

Section 5. Meal Allowances.

Employees assigned to be in travel status between the employee's temporary or permanent work station and a field assignment shall be reimbursed for the actual cost of meals including a reasonable gratuity. Employees must meet the following conditions to be eligible for meal reimbursement:

- A. **Breakfast.** Breakfast reimbursements may be claimed only if the employee is on assignment away from their temporary or permanent work station in a travel status overnight or departs from home in an assigned travel status before 6:00 A.M.
- B. **Noon Meal.** Lunch reimbursement may be claimed only if the employee is in travel status and is performing required work more than thirty-five (35) miles from their temporary or permanent work station and the work assignment extends over the normal noon meal period.
- C. **Dinner.** Dinner reimbursement may be claimed only if the employee is away from their temporary or permanent work station in a travel status overnight or is required to remain in a travel status until after 7:00 P.M.
- D. **Reimbursement Amount.** Except for high-cost localities as identified by the Internal Revenue Service (IRS), the maximum reimbursement for meals including tax and gratuity shall be:

Breakfast	\$ 11.00
Lunch	\$13.00
Dinner	\$19.00

For high-cost localities as identified by the IRS (specifically excluding any cities within Minnesota), the maximum reimbursement shall be:

Breakfast	\$12.00
Lunch	\$15.00
Dinner	\$23.00

Employees who meet the eligibility requirements for two (2) or more consecutive meals shall be reimbursed for the actual costs of the meals up to the combined maximum reimbursement for the eligible meals.

- E. **Escort Meal Reimbursement.** Corrections Officers from correctional facilities who escort inmates to a medical center, and who because of appointments, operational needs, or staff shortages cannot be relieved for a meal period, shall be eligible to receive a lunch tray when guarding such inmates over the lunch hour, if the inmate is given a tray.

Section 6. Special Expenses.

When prior approval has been granted by an Appointing Authority, special expenses, such as registration or conference fees, banquet tickets, or meals, incurred as a result of State business, shall also be reimbursed.

Section 7. Payment of Expenses.

The Appointing Authority shall advance the estimated cost of travel expenses where the anticipated expenses total at least fifty dollars (\$50.00), provided the employee makes such a request a reasonable period of time in advance of the travel date. Employees may request a State issued credit card. If the employee receives such a card, the Appointing Authority and the employee may mutually agree to use the card in place of the advance. Reimbursements shall be made within the payroll period following the payroll period in which the employee submits the expenses.

Section 8. Training Expenses.

- A. **Assigned Training.** When the Appointing Authority assigns an employee to training and/or developmental activities, such activities shall be considered to be work assignments. Release time, reimbursement for tuition and expenses shall be in accord with the applicable Administrative Procedure on job-related training and with this Article.
- B. **Non-Assigned Training.** The Appointing Authority may approve release time and reimbursement for non-assigned training in accord with the applicable Administrative Procedure on employee training. Any expenses for reimbursements shall be in accord with this Article.
- C. **Travel Time.** Employees attending conferences, seminars, workshops or training at their own initiative shall not be compensated for more than eight (8) hours per day, unless required by state or federal law.

Employees attending these events at the direction of the Appointing Authority shall be compensated for hours of attendance and travel time.

- D. **Appeal Procedure.** Upon request of the Local Union, an Appointing Authority shall develop an internal appeal system to review the denial of a training request. A copy of the appeal and the determination shall be sent to the Local Union. Such determination shall not be grievable.

Section 9. Parking.

Any parking fee increase to the employee in a State-owned lot shall be limited to the actual cost increase.

In addition, it is agreed that State agencies must offer the Local Union an opportunity to meet and confer prior to implementing changes in local parking policies and prior to the relocation of agency offices.

Employees cannot be charged for parking if they do not use parking. This does not apply to absences of less than one (1) month or in situations where the employee voluntarily continues to pay the parking fee.

Section 10. Certification and Licensure.

If the Appointing Authority decides to implement a new licensure and/or certification requirement, the Appointing Authority shall, upon request of the Union, meet and confer on the subject of reimbursement of necessary expenses involved in obtaining the licensure or certification for current employees in the job classification.

Section 11. Uniforms and Protective Clothing.

- A. **Uniforms.** Employees who are required to wear uniforms as a condition of employment shall be furnished such uniforms by the Appointing Authority. Proper maintenance and cleanliness of uniforms is an employee responsibility. Uniforms shall not be utilized for off-duty activity by the employee. Where the Appointing Authority has maintained uniforms, it will continue to do so provided staffing and facilities are available.
- B. **Protective Clothing.** Employees required to wear protective clothing or safety devices as a condition of employment shall have such clothing or devices furnished and maintained in proper working condition by the Appointing Authority.
- C. **Clothing Damage.** An employee will be reimbursed for injury to or loss of their personal property while acting within the scope of their employment, pursuant to Minnesota Statutes 3.66 through 3.84 and in accord with procedures established by the Department of Corrections.
- D. **Uniform Committee.** The Union shall be entitled to select a representative to serve on the uniform committee where one exists, and such representative shall meet without loss of pay.

ARTICLE 21 - RELOCATION ALLOWANCES

Section 1. Authorization.

- A. **Eligibility.** Eligibility for reimbursement of relocation expenses shall be limited to those moves where the new work location is at least thirty-five (35) miles from the employee's current work location or the change in residence is required by an Appointing Authority as a condition of employment. The provisions of this Article shall not apply to employees who currently commute thirty-five (35) miles or more to their work location unless the employee's new work location is thirty-five (35) miles or more from the current work location.

Employees who move to a new position as the result of a bid/expression of interest or who return to a former position during the trial period are not eligible for reimbursement of any relocation expenses.

No reimbursement for relocation expenses shall be allowed unless the change of residence is completed within six (6) months or an extension has been approved by the Appointing Authority.

- B. **Required Reimbursement.** The Appointing Authority shall reimburse relocation expenses, consistent with Section 2, to eligible employees who:
- are required by an Appointing Authority to change residence as a condition of employment.
 - must accept a layoff option beyond thirty-five (35) miles because no vacancy or bumping option is available within thirty-five (35) miles.
 - are reassigned, transferred, or demoted to vacant positions in their State agency due to the abolishment (including transfer to another governmental jurisdiction or a private enterprise), removal to a new location, or removal to another State agency of all or a major portion of the operations of their Appointing Authority.
- C. **Partial Reimbursement Required.** The Appointing Authority shall reimburse relocation expenses, except realtor's fees, to eligible employees who have a layoff option available within thirty-five (35) miles of their work location but choose an option beyond thirty-five (35) miles to either maintain or take the least reduction in the hourly rate of pay.

The Appointing Authority shall reimburse moving and miscellaneous expenses, as provided in Sections 2C and D, to eligible employees who demote during the probationary period but after the trial period. Such employees are not eligible for reimbursement under Sections 2A and B.

Employees who are promoted to a higher classification, and who change residences in order to accept such a promotion, and who meet the thirty-five (35) mile requirement shall be reimbursed for all covered, incurred expenses up to a maximum of fifteen hundred dollars (\$1,500.00). Entitlement to any other amount noted herein is otherwise waived.

No reimbursement for relocation expenses shall be allowed unless the change of residence is completed within six (6) months.

- D. **Discretionary Reimbursement.** The sending or receiving Appointing Authority may, at its sole discretion, reimburse relocation expenses to eligible employees who claim a vacant position in another seniority unit.

The Appointing Authority may limit the type and/or amount of reimbursement but may not exceed the provisions of Section 2.

Section 2. Covered Expenses.

Employees must have received prior authorization from their Appointing Authority before incurring any expenses authorized by this Article.

- A. **Travel Status.** Employees eligible for relocation expenses pursuant to Section 1 shall be considered to be in travel status up to a maximum of ninety (90) calendar days and shall be allowed standard travel expenses to return to their original work station once a week while being lodged at their new station, or by mutual agreement between the employee and the Appointing Authority, travel between their original work station and their new work station on a daily basis. If the first option is used, standard travel expenses for the employee's spouse shall be borne by the Appointing Authority for a maximum of two (2) trips not to exceed a total of seven (7) calendar days during the ninety (90) calendar day period.
- B. **Realtor's Fees.** Realtor's fees for the sale of the employee's domicile, not to exceed \$5,000, shall be paid by the Appointing Authority. Additional realtor's fees of up to \$10,000 total may be paid at the discretion of the Appointing Authority.
- C. **Moving Expenses.** The Appointing Authority shall pay the cost of moving and packing the employee's household goods. The employee shall obtain no less than two (2) bids for packing and/or moving household goods and approval must be obtained from the Appointing Authority prior to any commitment to a mover to either pack or ship the employee's household goods. The Appointing Authority shall pay for the moving of house trailers if the trailer is the employee's domicile, and such reimbursement shall include the cost of transporting support blocks, skirts, and/or other attached fixtures.
- D. **Miscellaneous Expenses.** The employee shall be reimbursed up to a maximum of \$1,000 for the necessary miscellaneous expenses directly related to the move. At their sole discretion, Appointing Authorities may authorize payment of additional relocation expenses incurred as the result of the work-related move up to the amount of \$785. These expenses may include such items as: fees involved in the purchase of housing in the new location, disconnecting and connecting appliances and/or utilities, the cost of insurance for property damage during the move, the cost of moving up to two (2) cars, the reasonable transportation costs of the employee's family to the new work location at the time the move is made including meals and lodging (such expenses shall be consistent with the provisions of Article 20 (Expense Allowances)), or other direct costs associated with rental or purchase of another residence. No reimbursement will be made for the cost of improvements to the new residence or reimbursable deposits required in connection with the purchase or rental of the residence.

Neither the State of Minnesota nor any of its agencies shall be responsible for any loss or damage to any of the employee's household goods or personal effects as a result of such a transfer.

ARTICLE 22 - WORK RULES

An Appointing Authority may establish and enforce reasonable work rules that are not in conflict with the provisions of this Agreement. Such rules shall be applied and enforced without discrimination. The Appointing Authority shall discuss and, upon request, meet regarding the changes in new or amended work rules with the Local Union, explaining the need therefor, and shall allow the Local Union reasonable opportunity to express its views prior to placing them in effect. Work rules will be labeled as new or amended and shall be posted on appropriate bulletin boards as far in advance of their effective date as practicable.

ARTICLE 23 - NON-DISCRIMINATION

The provisions of this Agreement shall be applied equally to all employees in each bargaining unit without discrimination as to age, sex, marital status, sexual preference/orientation, gender identity, race, color, creed, disability, national origin, or political affiliation or as defined by statute or executive order. The Union shall share equally with the Appointing Authority the responsibility for applying this provision of the Agreement.

The Appointing Authority agrees not to interfere with the rights of employees to become members of the Union, and there shall be no discrimination, interference, restraint, or coercion by the Appointing Authority or any Employer representative against any employee because of Union membership or non-membership or because of any employee activity in an official capacity on behalf of the Union, which is in accord with the provisions of this Agreement.

The Union accepts its responsibility as exclusive bargaining representative and agrees to represent all employees in each bargaining unit without discrimination, interference, restraint, or coercion because of membership or non-membership in the Union.

Employees covered by this Agreement shall perform their duties and responsibilities in a non-discriminatory manner as such duties and responsibilities involve other employees, the general public and/or clients.

See Appendix I entitled "Prohibition of Sexual Harassment."

ARTICLE 24 - MANAGEMENT RIGHTS

It is recognized that, except as expressly modified by this Agreement, the Employer retains all inherent managerial rights necessary to operate and direct the affairs of the Employer and its agencies in all its various aspects.

These rights include but are not limited to the right to determine policy, functions, and programs; determine and establish budgets; utilize technology; relieve employees due to lack of work or other legitimate reasons; determine the methods, means, organization and number

of personnel by which such operations and services are to be conducted; and select, and direct personnel.

Any terms of employment not specifically established or modified by this Agreement shall remain exclusively within the discretion of the Employer to modify, establish, or eliminate.

ARTICLE 25 - UNION RIGHTS

Section 1. Union Activities.

With advance notice to the employee's immediate supervisor, the Appointing Authority agrees that during working hours, on the Appointing Authority's premises, and without loss of pay, the Local Union President or designated Union Representative shall be allowed reasonable time which does not unduly interfere with their normal duties to: post Union notices and announcements; transmit communications authorized by the Local Union or its Officers to the Employer or their representative; or consult with the Employer, their representatives, Local Union Officers, or other Union Representatives, concerning enforcement of any provisions of this Agreement.

See Article 10 for unpaid Union Leave provisions.

The Local Union shall be provided a reasonable amount of time at formal orientation programs to distribute the contract and steward list to new employees.

Section 2. Employee Bulletin Boards.

The Appointing Authority shall furnish and maintain adequate bulletin board space in convenient places in the work areas to be used exclusively by the Union for posting pertinent Union information. It is specifically understood that posted materials shall not advocate any course of action contrary to the provisions of this Agreement nor shall it contain material of a partisan political or inflammatory nature.

ARTICLE 26 - SAVINGS CLAUSE

This Agreement is intended to be in conformity with all applicable and valid federal and state laws and those rules or regulations promulgated thereunder having the force and effect of law which are in effect on the effective date of this Agreement. Should any Article, Section, or portion thereof of this Agreement be held unlawful and unenforceable, such decision shall apply only to the specific Article, Section, or portion thereof directly specified in the decision, and all other valid provisions shall remain in full force and effect.

Should the implementation of any provision or portion of this Agreement be delayed or withheld because of an applicable federal law, Executive Order, or regulation regarding wage and price controls, only such specific provision or portion shall be affected and the remainder of this Agreement shall continue in full force and effect. Any portion or provisions of this

Agreement thus delayed or withheld shall become effective and be implemented at such time, in such amounts, and for such periods, retroactively and prospectively, as will be permitted by law at any time during the term of this Agreement or any extension thereof.

ARTICLE 27 - HOUSING

Section 1. Rental Rates.

Any employee who is required by the Appointing Authority to live in a State-owned residence as a condition of employment shall not be required to pay rent for the dwelling. Any employee who is not required by the Appointing Authority to live in a State-owned residence as a condition of employment shall pay a fair rental rate established by the Appointing Authority for the dwelling.

In the event the Appointing Authority no longer requires an employee to live in a State-owned residence as a condition of employment, the employee will be given a reasonable period of time of not less than six (6) months in which to find alternate housing if the employee so decides. However, the six (6) month time period shall not apply in the following situations:

1. An employee resigns, retires, or is terminated from State service; or
2. An employee accepts a different position in State service that does not require that they live in the State housing.

The Appointing Authority shall advise all employees in writing if occupancy of a particular dwelling is a condition of employment.

Section 2. Utilities and Repairs.

The Appointing Authority shall pay all taxes on State owned residences.

If the Appointing Authority requires an employee to maintain an office in the State-owned residence, the Appointing Authority shall pay all utilities related to the operation of the office.

The employee occupying the residence will be responsible for changing storm windows and screens and routine maintenance of the grounds designated as residence property, but all necessary decorating, painting, and repairs shall be done by the Appointing Authority at no cost to the employee. Employees shall not alter any plumbing, wiring, or any roof, wall, or partition without express written approval from the Appointing Authority and may be held responsible for any damage or alteration beyond ordinary wear.

Section 3. Garage Space.

If available, garage space may be used by the employee for their private vehicle without cost to the employee. If State facilities are provided for this purpose, the employee shall not use State equipment or facilities for the repair or maintenance of the employee's vehicle.

ARTICLE 28 - NO STRIKE OR LOCKOUT

Section 1. No Strikes.

The Union agrees that it will not promote or support any unlawful strike under the Minnesota Public Employment Labor Relations Act. A strike is lawful if conducted as provided under the provisions of M.S. 179A.18. A strike is defined under the Minnesota Public Employment Labor Relations Act as a "concerted action in failing to report for duty, the willful absence from one's position, the stoppage of work, slowdown, or the abstinence in whole or in part from the full, faithful, and proper performance of the duties of employment for the purpose of inducing, influencing, or coercing a change in the conditions or compensation or the rights, privileges, or obligations of employment." (M.S. 179A.03, Subdivision 16.)

Any employee who knowingly violates the provisions of this Section may be discharged or otherwise disciplined. Any employee so disciplined may elect to grieve the discipline under Article 17 (Grievance Procedure) of this Agreement.

Section 2. No Lockouts.

No lockout, or refusal to allow employees to perform available work, shall be instituted by the Employer and/or its Appointing Authorities during the life of this Agreement.

ARTICLE 29 -

(INTENTIONALLY BLANK - HOLD FOR FUTURE USE)

ARTICLE 30 - BARGAINING UNIT ELIGIBLE WORK TRAINEES APPRENTICES

Section 1. Training/Apprenticeship Programs.

Individuals appointed to work training and apprenticeship programs (pre-service trainees) pursuant to M.S. 43A.21 shall have their terms and conditions of employment governed exclusively by the provisions of the approved training program submitted to Minnesota Management and Budget by the affected operating department of State government. Apprenticeship programs shall comply with any requirements of the Department of Labor and Industry.

Section 2. Benefits and Pay.

Notwithstanding Section 1 above, such individuals shall be governed by the provisions of Article 7, Holidays, Article 8, Vacation Leave, Article 9, Sick Leave, and Article 19, Insurance, of this Agreement. In addition, such individuals shall receive any general wage adjustment(s) provided for the class for which they are training or serving an apprenticeship.

ARTICLE 31 - LABOR/MANAGEMENT COMMITTEES

Section 1. Purpose.

The Employer and its Appointing Authorities, and the Union and its affiliated Local Unions, hereby endorse the goal of a mutually constructive, cooperative relationship between the parties. To help to promote and foster such a relationship, the parties agree to establish a structure of joint labor-management committees, at both statewide and agency levels. The committees shall be composed of representatives from Units 2, 3, 4, 6, 7, and 8.

Section 2. Statewide Committees.

The parties agree to establish the following joint committees which shall function at the statewide level:

- A. **Safety Committee.** This Committee shall be composed of no more than seven (7) representatives each from the Employer and the Union. The Committee shall meet at least quarterly or upon the call of the Union or the Employer.

This Committee shall propose policies, programs and guidelines, as appropriate, in the following areas:

- Compliance with OSHA standards;
- Conditions of State facilities and buildings, including temperature and ventilation;
- Coordination for building safety issues for multi-Appointing Authority worksites;
- Feasibility of providing annual hearing and eye examinations and blood tests for employees whose job related duties may subject them to recognized health hazards;
- Training programs for Local Safety Committees' members;
- Right-to-Know Training;
- Communicable diseases in the workplace and the prevention thereof;
- Review workers' compensation claims experience and First Reports of Injury;
- The appropriate handling of bomb threats;
- Safety shoes for General Maintenance Workers;
- Methods of distribution of safety related policies;
- Review issues of computer safety;
- Climate Stress Threshold Limits; and
- Additional issues of mutual concern.

The Committee shall make recommendations to the Commissioner of Minnesota Management and Budget, who may then refer them to other appropriate State officials.

- B. **Affirmative Action Committee.** The Committee shall be composed of eight (8) persons designated by the Employer and an equal number of persons designated by the Union.

The Committee shall meet as determined by the parties. This Committee shall study:

- Affirmative action plans;
- Affirmative action goals and objectives, including specific procedures to promote achievement of hiring goals and protection of goals in event of layoff;
- Data, including labor market statistics to determine if protected class individuals are available for employment or exist in present State employment;
- Proposed solutions to existing problems brought to the Committee for review and discussion;
- Measures to provide maximum cooperation with goals and objectives determined by the Committee;
- Sexual harassment training;
- Possible methods of increasing employees' awareness of the types and effects of discrimination and the resources available to them to determine if they have been the object of discrimination; and
- Work with the ACCESS (Alliance for Collaboration and Cooperation in Employment and State Services), the Diversity Action Council and the Office of Diversity to develop statewide anti-discrimination and diversity training.
- When vacancies occur on the institution-level affirmative action committees, the Local Union may submit names to the Appointing Authority for consideration to serve on the committee.

The Employer may, with the approval of the Union, add to the Safety Committee, additional employees from other exclusive representatives.

Section 3. Local Labor/Management Committees.

A Local Labor/Management Committee shall be established for each State agency and/or principal place of employment. Local Committees shall be composed of no more than seven (7) representatives from each State agency and the Local Union(s).

The purpose of such Committees shall be to improve communications between the Appointing Authority and the Local Union and to serve as a forum in which issues of mutual concern can be discussed. The Committees shall have no authority to conduct negotiations on contractual issues nor are they intended to serve as a substitute for the Grievance Procedure of this Agreement.

Local Labor/Management Committees in existence on the effective date of this Agreement, may continue as currently constituted; however, such committees shall be governed by the general conditions expressed herein.

Local Labor/Management Committees shall meet at least quarterly, or as mutually agreed. Meetings shall be held during normal day shift working hours, and members shall receive no loss of pay for time spent at committee meetings. Travel and subsistence expenses incurred shall not be the responsibility of the Appointing Authority. However, reasonable travel time to and from committee meetings shall be without loss of pay, not to exceed the employee's regularly scheduled workday.

Local Labor/Management Committees may review and discuss agency training policies and expenditures, training on the use of new equipment and computer software, notice and training regarding new or revised laws and regulations, training on sexual harassment, issues related to assigned training, employee parking charges and other related subjects. The Committees may also discuss the issuance and administration of work rules, including dress codes, and designation of positions as “weather essential”. Where no uniform committee exists, upon request of the Local Union or policy committee, the Appointing Authority or Agency shall meet and confer on uniform issues.

The parties shall include the matter of employee involvement in purchasing decisions on the agenda of at least one (1) meeting of the Labor/Management Committee during the term of this Agreement. (See page 162 of the Agreement for further information.)

ARTICLE 32 - WORKERS' COMPENSATION

Section 1. Return to Work.

- A. **Labor Management Committee.** Each Appointing Authority and Local Union shall establish a joint committee to discuss ways to facilitate the return to work of employees on Workers' Compensation. This Committee may be an existing Labor/Management Committee or a new committee.
- B. **Employment.** The State agrees to maintain the policy of attempting to place employees who have incurred a work-related disability in areas of work which would fit the employee's physical capabilities but not to create a job just to provide employment.
- C. **Union Notification.** When there are any special return to work accommodations for employees on Workers' Compensation, the Appointing Authority shall notify the Local Union and, upon request, shall meet with the Local Union.
- D. **Article 12 Waiver.** The parties may agree to waive Article 12 by mutual agreement to implement this Section.

Section 2. Sick Leave/Vacation Leave Coordination.

When an employee on Workers' Compensation benefits has decided to use sick leave, vacation leave or compensatory time to supplement their Workers' Compensation benefits the following procedure applies: The employee shall notify the Appointing Authority in writing that they wish to supplement their Workers' Compensation check through use of sick leave, vacation leave or compensatory time. Sick leave must be exhausted before the vacation leave or compensatory time can be used. The Appointing Authority shall obtain from the Workers' Compensation Division the amount of the benefit check and automatically authorize a payroll check in the amount of the difference between the benefit check and the employee's regular gross pay for the employee's normal pay period. The employee's sick leave, vacation leave or compensatory

time balance shall be reduced by the amount of the payroll check divided by the employee's hourly rate of pay at the time the payroll check is issued.

An employee who uses sick leave or vacation leave or compensatory time while awaiting the determination of the Worker's Compensation claim shall retain the Worker's Compensation payment. The Appointing Authority shall collect the payroll overpayment by processing a prior period adjustment(s). The Appointing Authority shall credit back to the employee's sick leave, vacation leave or compensatory time the number of hours equal to the amount of the Worker's Compensation check divided by the employee's hourly rate.

Section 3. Insurance.

Benefits provided under Article 19 shall continue as long as an employee meets the eligibility requirements of Article 19 and is off the State payroll due to a work-related injury or work-related disability and is receiving or is eligible to receive Workers' Compensation disability payments.

When an employee has incurred an on-the-job injury or disability and has filed a claim for Workers' Compensation, medical costs connected with the injury or disability shall be paid by the Health Maintenance Organization or the Health Insurance Carrier pursuant to the provisions of M.S. 176.191, Subdivision 3.

ARTICLE 33 - EMPLOYEE ASSISTANCE PROGRAM

The Union and the Employer recognize that problems not directly associated with the employee's job function can affect an employee's job performance. The Union and the Employer believe it is in the interest of the employee, their family, and the Employer to provide a voluntary employee assistance program which offers confidential, professional help to employees and their dependents to resolve such problems. To that end, both parties hereby endorse and support the State of Minnesota's Employee Assistance Program, as established and operated by Minnesota Management and Budget. A referral to EAP shall not be referenced on a performance appraisal or evaluation. The Employer and the Union agree to form a Joint Labor/Management Committee on Employee Assistance. The Committee will be composed of an equal number of representatives for the Union and the Employer. The Committee shall be chaired by the Director of the Employee Assistance Program. The Committee shall review the state EAP program, EAP provider networks, and EAP training programs for employees and supervisors. The Employer may, with the approval of the Union, add to the Committee additional employees from other exclusive representatives.

ARTICLE 34 - ADA/WORKERS' COMPENSATION

Section 1. Purpose.

The Union and the Employer agree that they have a joint obligation to comply with the Americans with Disabilities Act (ADA). The Union and the Employer agree that they have the

obligation to consider accommodation requests from qualified ADA individuals and employees returning from workers' compensation injuries. The Employer agrees to maintain the policy of attempting to place employees who have incurred a work-related disability in areas of work which would fit the employee's physical capabilities but not to create a job just to provide employment.

The Appointing Authority shall provide these reasonable accommodations in a fair and equitable manner. Should reasonable accommodation request(s) raise the question of waiving the collective bargaining agreement, the Employer and the Union shall follow the procedures in Section 3.

Section 2. Information.

Both parties recognize their responsibility for confidentiality. The Union agrees to prepare an informational brochure which the Appointing Authority will provide to any employee who requests a reasonable accommodation. Upon request of the Local Union, the Appointing Authority shall provide a report of all accommodation requests, whether each request was approved or denied, accommodations made, and the cost of each accommodation.

Section 3. Process.

Upon request, an employee seeking an accommodation shall be entitled to union representation. The union representative and the employee shall be allowed a reasonable amount of time during working hours, without loss of pay, to discuss the request. The Appointing Authority shall review employee requests for accommodations considering ADA guidelines on equipment purchase or modification, accessibility improvement, and scheduling modifications and/or restructuring of current positions and duties allowable under the collective bargaining agreement, before considering or requesting waiver of the collective bargaining agreement.

If the Appointing Authority determines that contract waiver is necessary, it shall contact the local union to convene a meet and confer to be held within a reasonable time during normal working hours with union designee(s) on employer-paid time. At this meeting, the Appointing Authority shall inform the local union of the employee's restriction(s) subject to each party's confidentiality obligations, the specific article(s) to be waived and the manner in which the Appointing Authority proposes to modify that article(s).

At this meeting, the Appointing Authority shall also consider additional options presented by the Local Union. Between the meet and confer and notification to the Appointing Authority of the Local Union's decision, the Appointing Authority may make temporary accommodations. Any contract waiver must be agreed to by both the Appointing Authority and the Local Union or the Council 6 Executive Board.

If an employee's job duties are changed as a result of an accommodation, the employee's supervisor shall inform the employee's co-workers of any restrictions that might impact on their job duties. The supervisor shall use discretion when relaying this information.

ARTICLE 35 - DURATION

The provisions of this Agreement cancel and take the place of all previous Agreements and shall become effective the 11th day of October, 2023, and shall remain in full force and in effect through the 30th day of June 2025.

It shall be automatically renewed from biennium to biennium thereafter unless either party shall notify the other in writing no later than January 1 of odd-numbered years that it desires to modify the Agreement. In the event such notice is given, negotiations shall commence not later than March 1st of odd-numbered years.

This Agreement shall remain in full force and effect during the period of negotiations and until notice of termination of this Agreement is provided to the other party in the manner set forth in the following paragraph.

In the event that a Successor Agreement has not been agreed upon by an expiration date of this Agreement as provided for in paragraphs 1 or 2 above, either party may terminate this Agreement by the serving of written notice upon the other party not less than ten (10) calendar days prior to the desired termination date which shall not be before the expiration date provided above.

FOR THE UNION

**Bart A
Andersen**

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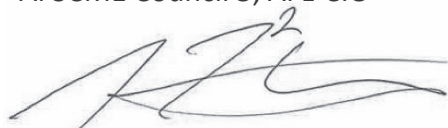
Bart Andersen
Executive Director
AFSCME, Council No. 5, AFL-CIO



Joe Broge
Chief Negotiator
AFSCME Council 5, AFL-CIO



Dan Gorman
Unit 8 Chair
AFSCME Council 5, AFL-CIO



Jeff Vars
Unit 8 Co-Chair
AFSCME Council 5, AFL-CIO

FOR THE EMPLOYER

Erin Campbell

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Campbell
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Erin Campbell
Commissioner of Minnesota Management
and Budget

**Jennifer E.
Claseman**

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Jennifer Claseman
Enterprise Director for Labor Relations,
Minnesota Management and Budget

**Matthew
Begansky**

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Matthew Begansky
Labor Relations Consultant 4
Minnesota Management and Budget

**Cassie
Tischer**

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Cassie Tischer
Labor Relations Consultant 2
Minnesota Management and Budget

Dori Leland

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Dori H. Leland
Enterprise Director for Employee
Classification and Compensation,
Minnesota Management and Budget

**Galen
Benshoof**

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Galen Benshoof
Enterprise Director for Employee
Insurance, Minnesota Management and
Budget

APPENDIX A

The following is the bargaining unit for which AFSCME, Council 5, AFL-CIO has exclusive bargaining rights at the time this Agreement was signed.

Unit 8, Corrections Officer Unit

CORRECTIONS OFFICER UNIT **UNIT 8**

Case No: 81-PR-1959-A

All employees in the classifications included in the Correctional Counselor Unit No. 8 by the Joint-Subcommittee on Employee Relations on March 24, 1980, as amended, whose employment service exceeds the lesser of 14 hours per week of 35% of the normal work week and more than 67 work days per year, excluding supervisory employees, confidential employees, and other employees excluded by the Public Employment Labor Relations Act, M.S. 179A.

APPENDIX B - HOLIDAYS

This table should be used for employees who are appointed or recalled or on a voluntary reduction in hours during a pay period in which a holiday occurs as described in the letter in Appendix B1. Such employees shall have their holiday pay prorated on the following basis, based on the hours worked or paid in the next pay period which does not include a holiday. This table should also be used for employees who are laid off or terminated during a pay period in which a holiday occurs, but the proration should be based on the hours worked or paid in the most recent previous pay period which does not include a holiday.

**Hours worked or paid	Holiday hours earned for each holiday in the pay period.
Less than 9½	0
At least 9½, but less than 19½	1
At least 19½, but less than 29½	2
At least 29½, but less than 39½	3
At least 39½, but less than 49½	4
At least 49½, but less than 59½	5
At least 59½, but less than 69½	6
At least 69½, but less than 72	7
At least 72	8

** These hours include paid leaves of absence, paid vacation and sick leave, and compensatory time off, but excludes overtime hours.

APPENDIX B1 - HOLIDAYS

For employees not covered by Appendix B, eligible employees who normally work less than seventy-two (72) hours per pay period and eligible intermittent employees and temporary employees shall have their holiday pay prorated on the following basis.

Table 1: For pay periods containing one holiday:

**Hours worked or paid:	Holiday hours earned for holiday
Less than 4.5	0
At least 4.5, but less than 13.5	1
At least 13.5, but less than 22.5	2
At least 22.5, but less than 31.5	3
At least 31.5, but less than 40.5	4
At least 40.5, but less than 49.5	5
At least 49.5, but less than 58.5	6
At least 58.5, but less than 67.5	7
At least 67.5	8

Table 2: For pay periods containing two holidays:

**Hours worked or paid:	Holiday hours earned for holiday
Less than 4	0
At least 4, but less than 12	1
At least 12, but less than 20	2
At least 20, but less than 28	3
At least 28, but less than 36	4
At least 36, but less than 44	5
At least 44, but less than 52	6
At least 52, but less than 60	7
At least 60	8

Table 3: For pay periods containing three holidays:

**Hours worked or paid:	Holiday hours earned for holiday
Less than 3.5	0
At least 3.5, but less than 10.5	1
At least 10.5, but less than 17.5	2
At least 17.5, but less than 24.5	3
At least 24.5, but less than 31.5	4
At least 31.5, but less than 38.5	5
At least 38.5, but less than 45.5	6
At least 45.5, but less than 52.5	7
At least 52.5	8

**These hours include hours worked, paid leaves of absence, paid vacation and sick leave, and compensatory time off, but excludes overtime hours.

For part-time employees only, uncompensated approved leave will be counted as “hours paid” but only for scheduled hours for which the employee requests and is granted time off as an unpaid leave of absence. A change in unscheduled days does not constitute an unpaid leave. See the following letter.



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May 26, 1999

Mr. Peter Benner, Executive Director

AFSCME Council 6, AFL-CIO

300 Hardman Avenue South

South St. Paul, MN 55075

Dear Pete:

As we discussed in negotiations, the State and the Union have agreed to change the method used to calculate holiday pay proration for employees who work less than full time. This change will be effective on October 1, 1997.

The State will provide the following direction to agencies in this matter:

Part-time employees and eligible intermittent employees who are not working on the holiday shall have holiday pay calculated based on the number of hours paid in the pay period divided by the number of non-holiday hours in the pay period. For example: for pay periods containing one holiday, the employee's hours paid would be divided by 72; for pay periods containing two holidays, the employee's hours paid would be divided by 64; and for pay periods containing three holidays, the employee's hours paid would be divided by 56. This ratio will then be multiplied by eight and rounded to the nearest whole hour to determine the number of holiday hours paid. See Appendix B1.

For part-time employees only, uncompensated approved leave will be counted as "hours paid," but only for scheduled hours for which the employee requests and is granted time off as an unpaid leave of absence. Such approved leave without pay (LWOP) must be clearly marked on the timesheet and will be coded as such. A change in unscheduled days does not constitute an unpaid leave.

Overtime compensated at the rate of time and one-half shall not count as hours worked or paid. Overtime compensated at the rate of straight time (i.e. "part-time pilot" situations) shall count as hours worked or paid.

If an employee is appointed or recalled during a pay period in which a holiday(s) occurs, and the employee is eligible for holiday pay, the proration shall be based on the hours worked or paid in the next pay period which does not include a holiday. For this purpose, and for those employees on a voluntary reduction in hours, use the table in Appendix B.

Equal Opportunity Employer

Minnesota Department of Employee Relations

Page 2

May 26, 1999

If an employee is laid off or terminated during a pay period in which a holiday(s) occurs, and the employee is eligible for holiday pay, the proration shall be based on the hours worked or paid in the most recent pay period which does not include a holiday. For this purpose, use the table in Appendix B.

Sincerely,

Wayne Simoneau /s/

Deputy Commissioner

WS:can

APPENDIX C - VACATION

Eligible employees being paid for less than a full eighty (80) hour pay period shall have their vacation accruals prorated according to the rate table listed below:

<u>HOURS OF VACATION ACCRUED DURING EACH PAYROLL PERIOD OF LENGTH OF SERVICE</u>							
No. Hours Worked/Paid During Pay Period**	0 thru 5 years	After 5 thru 8 years	After 8 thru 12 years	After 12 thru 18 years	After 18 thru 25 years	After 25 thru 30 years	After 30 years
Less than 9½	0	0	0	0	0	0	0
At least 9½, but less than 19½	.75	1	1.25	1.5	1.5	1.75	1.75
At least 19½, but less than 29½	1	1.25	1.75	2	2	2.25	2.25
At least 29½, but less than 39½	1.5	2	2.75	3	3	3.25	3.5
At least 39½, but less than 49½	2	2.5	3.5	3.75	4	4.25	4.5
At least 49½, but less than 59½	2.5	3.25	4.5	4.75	5	5.5	5.75
At least 59½, but less than 69½	3	3.75	5.25	5.75	6	6.5	6.75
At least 69½, but less than 79½	3.5	4.5	6.25	6.75	7	7.5	8
At least 79½	4	5	7	7.5	8	8.5	9

** For the purposes of this Appendix, "hours worked/paid" means all hours worked, and all paid leaves of absence, paid vacations and sick leave, paid holidays and compensatory time off. Overtime hours are included in "hours worked/paid" based on the number of hours worked, not the number of hours compensated.

APPENDIX D - SICK LEAVE

Eligible employees being paid for less than a full eighty (80) hour pay period shall have sick leave accruals prorated according to the rate schedule indicated below:

<u>HOURS OF SICK LEAVE ACCRUED DURING EACH PAYROLL PERIOD</u>	
Number of Hours Worked/Paid During Pay Period**	Number of Hours Accrued
Less than 9½	0
At least 9½, but less than 19½	.75
At least 19½, but less than 29½	1
At least 29½, but less than 39½	1.5
At least 39½, but less than 49½	2
At least 49½, but less than 59½	2.5
At least 59½, but less than 69½	3
At least 69½, but less than 79½	3.5
At least 79½	4

**For purposes of this Appendix, “hours worked/paid” means all hours worked, and all paid leaves of absence, paid vacation and sick leave, paid holidays and compensatory time off. Overtime hours are included in “hours worked/paid” based on the number of hours worked, not the number of hours compensated.

APPENDIX E-1

Compensation Grid 8, Unit 8 AFSCME Corrections Officers Effective 7/1/2023 – 1/2/2024

		Step A	Step B	Step C	Step D	Step E	Step F	Step G	Step H	Step I	Step J	Step K	Step L
Range	Rate	01	02	03	04	05	06	07	08	09	10	11	12
01	HR	24.69											
01	YR	51,553											
02	HR	25.37	26.15	26.84	27.63	28.46	29.29	30.17	31.02	31.90	32.80	33.69	34.64
02	YR	52,973	54,601	56,042	57,691	59,424	61,158	62,995	64,770	66,607	68,486	70,345	72,328
03	HR	29.29	30.17	31.02	31.90	32.80	33.69	34.64	35.64	36.64	37.66	38.69	39.77
03	YR	61,158	62,995	64,770	66,607	68,486	70,345	72,328	74,416	76,504	78,634	80,785	83,040

HR - Hourly Rate

YR - Yearly Rate

Monthly Rate - 174 x Hourly Rate

Unit 8 AFSCME Corrections Officers Classes and Salaries as of July 1, 2023

JOB CODE	JOB TITLE	GRID	BARG	COMP	MINIMUM HOURLY	MAXIMUM HOURLY	MINIMUM ANNUAL	MAXIMUM ANNUAL
003437	Corr Canine Officer	8	208	03L	29.29	39.77	61,158	83,040
001085	Corr Officer 1	8	208	01A	24.69	24.69	51,553	51,553
001086	Corr Officer 2	8	208	02L	25.37	34.64	52,973	72,328
001719	Corr Officer 3	8	208	03L	29.29	39.77	61,158	83,040

APPENDIX E-2

Compensation Grid 8, Unit 8 AFSCME Corrections Officers Effective 1/3/2024 – 6/30/2024

		Step A	Step B	Step C	Step D	Step E	Step F	Step G	Step H	Step I	Step J	Step K	Step L
Range	Rate	01	02	03	04	05	06	07	08	09	10	11	12
01	HR	27.44											
01	YR	57,295											
02	HR	28.12	28.90	29.59	30.38	31.21	32.04	32.92	33.77	34.65	35.55	36.44	37.39
02	YR	58,715	60,343	61,784	63,433	65,166	66,900	68,737	70,512	72,349	74,228	76,087	78,070
03	HR	32.04	32.92	33.77	34.65	35.55	36.44	37.39	38.39	39.39	40.41	41.44	42.52
03	YR	66,900	68,737	70,512	72,349	74,228	76,087	78,070	80,158	82,246	84,376	86,527	88,782

HR - Hourly Rate

YR - Yearly Rate

Monthly Rate - 174 x Hourly Rate

Unit 8 AFSCME Corrections Officers Classes and Salaries as of January 3, 2024

JOB CODE	JOB TITLE	GRID	BARG	COMP	MINIMUM HOURLY	MAXIMUM HOURLY	MINIMUM ANNUAL	MAXIMUM ANNUAL
003437	Corr Canine Officer	8	208	03L	32.04	42.52	66,900	88,782
001085	Corr Officer 1	8	208	01A	27.44	27.44	57,925	57,925
001086	Corr Officer 2	8	208	02L	28.12	37.39	58,715	78,070
001719	Corr Officer 3	8	208	03L	32.04	42.52	66,900	88,782

APPENDIX E-3

Compensation Grid 8, Unit 8 AFSCME Corrections Officers Effective 7/1/2024 – 6/30/2025

		Step A	Step B	Step C	Step D	Step E	Step F	Step G	Step H	Step I	Step J	Step K	Step L
Range	Rate	01	02	03	04	05	06	07	08	09	10	11	12
01	HR	28.67											
01	YR	59,863											
02	HR	29.39	30.20	30.92	31.75	32.62	33.48	34.40	35.29	36.21	37.15	38.08	39.07
02	YR	61,366	63,058	64,561	66,294	68,111	69,906	71,827	73,686	75,606	77,569	79,511	81,578
03	HR	33.48	34.40	35.29	36.21	37.15	38.08	39.07	40.12	41.16	42.23	43.30	44.44
03	YR	69,906	71,827	73,686	75,606	77,569	79,511	81,578	83,771	85,942	88,176	90,410	92,791

HR - Hourly Rate

YR - Yearly Rate

Monthly Rate - 174 x Hourly Rate

Unit 8 AFSCME Corrections Officers Classes and Salaries as of July 1, 2024

JOB CODE	JOB TITLE	GRID	BARG	COMP	MINIMUM HOURLY	MAXIMUM HOURLY	MINIMUM ANNUAL	MAXIMUM ANNUAL
003437	Corr Canine Officer	8	208	03L	33.48	44.44	69,906	92,791
001085	Corr Officer 1	8	208	01A	28.67	28.67	59,863	59,863
001086	Corr Officer 2	8	208	02L	29.39	39.07	61,366	81,578
001719	Corr Officer 3	8	208	03L	33.48	44.44	69,906	92,791

APPENDIX F

The following is an alphabetical listing of seniority units for which AFSCME, Council 5, AFL-CIO has exclusive bargaining rights at the time this Agreement was signed.

Corrections, Department of - Central Office and Community Services
Corrections, Department of - Minnesota Correctional Facility, Faribault
Corrections, Department of - Minnesota Correctional Facility, Lino Lakes
Corrections, Department of - Minnesota Correctional Facility, Oak Park Heights
Corrections, Department of - Minnesota Correctional Facility, Red Wing
Corrections, Department of - Minnesota Correctional Facility, Rush City
Corrections, Department of - Minnesota Correctional Facility, Shakopee
Corrections, Department of - Minnesota Correctional Facility, St. Cloud
Corrections, Department of - Minnesota Correctional Facility, Stillwater
Corrections, Department of - Minnesota Correctional Facility, Willow River/Moose Lake
Corrections, Department of - Minnesota Correctional Facility, Togo

APPENDIX G - CLASS OPTIONS

A "class option" is defined as an area of specialization which may require special licensure, certification or registration, and for which separate minimum qualifications are used in making appointments to a position in a class.

The Employer reserves the right to eliminate and/or modify class options and to create new options during the life of this Agreement. The Employer shall notify the Union in writing when a class option is created or eliminated. Upon request, the Employer will meet and discuss new class options with the Union.

APPENDIX H

The following are Junior/Senior Plans in existence as of July 1, 2001. The Employer reserves the right to eliminate and/or modify these plans and to create new plans during the life of this Agreement.

<u>Class Title</u>	<u>DOC</u>
CO 1 - CO 2	X

APPENDIX I - PROHIBITION OF SEXUAL HARASSMENT

It is agreed by the Employer and the Union that all employees have a right to a workplace free of verbal and/or physical sexual harassment. "Sexual harassment" includes unwelcome sexual advances, requests for sexual favors, sexually motivated physical contact or communication of a sexual nature when:

1. Submission to that conduct or communication is made a term or condition, either explicitly or implicitly, of obtaining employment;
2. Submission to or rejection of that conduct or communication by an individual is used as a factor in decisions affecting that individual's employment; or
3. That conduct or communication has the purpose or effect of substantially interfering with an individual's employment or creating an intimidating, hostile, or offensive employment environment.

The Employer agrees that all agency complaint procedures for sexual harassment shall be opened to Union participation at the request of the complaining employee and that each Appointing Authority/designee shall inform a complaining party of this right. Further, the Employer and Union agree that agency complaint procedures covering sexual harassment are modified to include these additional requirements:

1. When a complaint of sexual harassment is initiated, a notice of a complaint in progress will be sent by the Appointing Authority/designee to the Union. If in filing a complaint an employee states that they are unable to function in the worksite from which the complaint arose, the Appointing Authority/designee shall conduct a preliminary investigation within two (2) working days. If this preliminary investigation establishes that a reasonable basis for the employee's concern about continuing in the work situation exists, the Appointing Authority/designee shall take intervening action to defuse the situation which may include temporarily reassigning either party until such time as the complaint is fully investigated, there is a finding, and corrective action, if required, is implemented.
2. Within thirty (30) calendar days, the Appointing Authority/designee shall conduct a full investigation and prepare a report along with designated actions to be taken to remedy the complaint. If the complaining employee has requested the Union's involvement in the complaint, the Union's representative as well as the complainant shall be provided a written summary of the findings and resolution. The Union and Employer agree that all hearings and records shall be private and that reprisal against an aggrieved employee or a witness is prohibited.
3. If the Appointing Authority fails to respond or fails to resolve the matter to the satisfaction of the appealing party, then the complaint may be referred to the Equal Opportunity Division of Minnesota Management and Budget for review within twenty-one (21) calendar days of the response or lack of response by the Appointing Authority. The Equal Opportunity Division shall confer within ten (10) working days with the Appointing Authority/designee involved in an attempt to resolve the complaint.

Any complaint which is not resolved by this procedure is not subject to the provisions of Article 17 of the Master Agreement between the Union and the Employer. Such unresolved

complaints, if pursued, must be filed with the Minnesota Department of Human Rights within one (1) year of the occurrence of the alleged harassment.

APPENDIX J - APPOINTING AUTHORITY/DESIGNEE'S DUTY TO FURNISH INFORMATION TO EXCLUSIVE REPRESENTATIVES REGARDING CONTRACT GRIEVANCES

I. Purpose

To provide guidelines for State agencies regarding release of information requested by exclusive representatives as part of the grievance process so that Appointing Authorities/designees can determine what information to release and when to release it.

II. Policy

Under the Public Employment Labor Relations Act (PELRA), exclusive representatives have rights to information which is relevant to enforcement of the collective bargaining agreement and is necessary for them to make informed decisions about processing grievances. Consequently, subject to these guidelines, Appointing Authorities/designees must furnish to the exclusive representatives requested information that is necessary for the exclusive representatives to fulfill their duty of representation. Disclosure of such information must be consistent with the Minnesota Government Data Practices Act, the Minnesota Vulnerable Adults Act and any other applicable state or federal statute.

III. What Information Should Be Disclosed To The Exclusive Representatives

- A. An Appointing Authority/designee has no duty to supply exclusive representatives with information absent a request from the exclusive representative.
- B. Non-public information that is requested must be relevant to the exclusive representative's role in representing employees in the bargaining unit. Information is relevant if it appears to be "reasonably necessary" for the exclusive representative to perform its duty to investigate and process grievances or to fulfill its collective bargaining objectives. Unless the disclosure of data is prohibited by statute (e.g., Vulnerable Adults Act, Data Practices Act) or plainly appears irrelevant, the information must be disclosed to the exclusive representative, if so requested. If the Appointing Authority/designee withholds information on the basis of a provision of the Data Practices Act, the Appointing Authority/designee is required to explain, orally and in writing, the statutory basis for the refusal to provide such information.

It should be noted that exclusive representatives have the same right to obtain "public" data as any other party. This right exists even if the data requested appears irrelevant to a grievance at hand or some other business of the exclusive representative.

- C. Information must be released to the exclusive representative in a useful and timely fashion. This does not mean that the Appointing Authority/designee must necessarily provide the information in the form requested by the exclusive representative. However, under the Data Practices Act, the Appointing Authority/designee is required, upon request, to explain the meaning of the data that is being provided.
- D. If the Appointing Authority/designee believes that collecting or compiling requested information is unduly burdensome, or that the exclusive representative's request for information is too broad or vague, the Appointing Authority/designee must raise this problem with the exclusive representative promptly. In this situation, the Appointing Authority/designee must attempt to work out acceptable arrangements with the exclusive representative so that the release of the information can accommodate the needs of both parties. In short, an Appointing Authority/designee cannot refuse to release information simply due to administrative hardships or solely because the request is not specific enough.

Unless there are specific contract provisions to the contrary, the Appointing Authority can require that the exclusive representative pay the actual costs of gathering the information and making and compiling the copies.

IV. Information That May Be Protected

Certain information under the Data Practices Act is considered "private" information. This means that only the individual upon whom the information is based has access to the data, unless the individual consents to the release of the data. Therefore, if an exclusive representative requests "private" data on an individual, such information cannot be released until the exclusive representative presents to the Appointing Authority/designee a proper and appropriate consent form from the involved individual permitting the Appointing Authority/designee to release the information to the exclusive representative. If such a consent is obtained and the information is relevant, the data must be released to the exclusive representative.

Also, under the Vulnerable Adults Act, certain types of information, such as data on residents, clients, patients, and names of individuals reporting resident abuse to the DHS licensing agency under that specific section of the statute, are "private" and may not be released to the exclusive representative unless the exclusive representative presents the Appointing Authority/designee an informed consent from the involved individual or guardian.

If the exclusive representative requests information that is "confidential" under the Data Practices Act, the request must be denied. For example, during the period when the Appointing Authority/designee is in the process of conducting an investigation regarding employee misconduct, witness statements, interview notes, and formal investigatory reports are considered "civil investigative data." Such data is classified as "confidential" under the Data Practices Act. Therefore, the Appointing Authority/designee may not release

any of this kind of data to the exclusive representative. However, once the investigation has been completed and disciplinary action has been taken, witness statements, interview notes, and formal investigatory reports are releasable to the exclusive representative upon request.

V. Fear Of Retaliation Against Management's Witness

At times, the Appointing Authority/designee may have reason to believe that releasing the names of witnesses or their statements to the exclusive representative may subject witnesses to harassment. However, in general, a mere belief that witnesses may be subjected to harassment should not preclude releasing the names. Rather, there must be evidence that the witnesses are being or would be subjected to harassment if the exclusive representative were aware of the names. It is anticipated that this type of situation would occur rarely. However, if it does occur, then the Labor Relations Bureau should be notified so that appropriate arrangements can be made to safeguard the witnesses. The names will eventually be released to the exclusive representative with witness statements or summaries thereof, but under controlled conditions.

VI. "When" The Requested Information Should Be Released To The Exclusive Representative

Generally, an exclusive representative should not be given data or information prior to a formal grievance being filed. However, if the Appointing Authority/designee believes that disclosing certain information to the exclusive representative could resolve a dispute thereby preventing the filing of an official grievance, the Appointing Authority/designee may decide to disclose such information. Thus, "pre-grievance" disclosure is optional with the Appointing Authority/designee, consistent with all of the above guidelines.

The Labor Relations Bureau encourages Appointing Authorities to cooperate in the release of information at an early stage in the grievance process. Often grievances can be resolved at these earlier steps if the exclusive representative has access to information upon which to base a decision as to whether or not to proceed with the grievance. Accordingly, if an exclusive representative requests relevant information at the first or second step of the grievance procedure, generally the information should be released unless the issue has not yet crystallized to the point where the Appointing Authority can determine whether or not the requested information, if non-public, is relevant. However, before disclosing such information, line supervisors and managers should be aware of the implication such information will have on the impact the final outcome of the grievance.

If the information has not been released at an earlier stage and an exclusive representative requests information at the third step of the grievance procedure, the Appointing Authority/designee must release the information, under the standards discussed in this policy, to the exclusive representative. The Appointing Authority/designee should consider meeting with the exclusive representative prior to the actual third step meeting to disclose as well as explain the information in a single setting. A third step meeting would then be held at a later time. Another option is to begin the third step meeting by providing the

information to the exclusive representative, explaining it as necessary, and then proceeding with the meeting.

VII. Exceptions

Each request for information should be reviewed on a case-by-case basis. The specific facts of any particular situation will determine the appropriate action. If the Appointing Authority/designee has any questions as to what information should be released and/or when it should be released, the Labor Relations Bureau should be contacted.

APPENDIX K - POLICY ON COMPUTER ERGONOMICS

Prepared Jointly by AFSCME, Council 5 and the
Minnesota Management and Budget Through
A Joint Labor-Management Committee

Purpose and Scope. This policy is intended to provide guidelines to state agencies and employees addressing ergonomic considerations associated with the operation of computers and computer work stations.

Specifically, this policy provides agencies with options they should explore to enhance the general working conditions of those employees who operate a computer and encourages discussion with employees who will be operating new computer hardware and/or software being purchased.

This policy is not subject to the grievance and arbitration provisions contained in Article 17 of this Agreement.

Policy. It is the policy of the State Executive Branch to provide employees who work with computers on a continuing and substantial basis with a consistent reference in regard to recognized workplace hazards and work station comfort which would enable state employees to perform productively.

Policy Guidelines.

- A. **Illumination:** Effective illumination in the space housing computers is an important part of insuring health and user comfort. Lighting levels for computer work should be substantially lower than for tasks using printed materials or in traditional office work. Illumination is measured in units called lux, or footcandles. While the lighting in offices is usually 750 lux (75 footcandles) and higher, the lighting level where computers are used should be in a lower range (200-500 lux or 20-50 footcandles).

Lower lighting can be accomplished by simply removing bulbs or reaching an agreement with the building lessor to make arrangements for more suitable lighting conditions. Task lighting may be necessary in areas where illumination levels are particularly low. The Safety

and Workers' Compensation Director's Office or your Department Safety Officer are able to provide assistance in determining appropriate lighting levels.

- B. **Control of Glare and Reflection:** Glare and reflection are primary problems for employees who operate computers. As a result of these problems, operators may incur eye discomfort or eye strain. A number of corrective actions should be taken to alleviate these problems including the use of indirect lighting, covering windows with blinds, repositioning work stations so that operators are not facing windows or bright lights, and use of hoods around screens. As a general rule, screens should not be placed with a window directly in front or behind the terminal and the screen should be positioned at a 90-degree angle to windows. Managers should review computers work areas and act to correct glare and reflection problems.
- C. **Work Station Design:** Many musculoskeletal problems of fatigue and stress which may arise through computers use can be reduced through proper work station design. Agencies should consider suggested ergonomic recommendations when purchasing equipment, redesigning work areas, and when employees express concerns. It is the policy of the employer to select equipment which meets industry standards in regard to character height and width, character spacing, word and line spacing, and character format. Aspects which should be considered in work station design include screen placement and color; keyboard, chair, and table height; and use of related equipment to reduce strain and maximize the comfort of the work station. Examples of such considerations include:
- Adjustable platforms for terminals and keyboards. An operator's arms should be parallel to the floor when keying.
 - Proper distance between the eyes and the screen (suggested between 18 and 30 inches) and use of screens which are capable of tilting backwards to provide a comfortable viewing angle.
 - Keyboards that are detachable or separate from the terminal so that their placement for height and angle can be adjusted by the operator. Other keyboard factors may include size and weight of the keyboard and the keytouch.
 - Use of wrist supports. There are different kinds of equipment available for supporting wrists during keying including padded wrist rests or chairs with wrist support arms.
 - Use of footrests if necessary, to have the operator's feet resting flat on the floor.
 - Color of screens seems to be a matter of personal preference, although some research has shown that red and blue should be avoided. Most screens in use today are called negative polarity, or light characters against a dark background. Some people appear to prefer positive polarity, or dark characters on a light background because they feel it aids in focusing, requires less adaptation by the viewer, and decreases glare and reflections on the screen.

- Use of document holders to keep printed materials at the same height, plain and angle as the screen, thus eliminating excessive twisting and bending movements of the neck, as well as minimizing constant eye refocusing.

Assigning employees to specific work stations, as much as possible, is advisable to prevent the need for frequent readjustments. Your Department Safety Officer or the Safety and Workers' Compensation Director's Office may be called upon for assistance in designing work stations.

- D. **Office Environment/Design:** Extraneous factors such as noise, humidity, and heat produced by the computer can add to operator discomfort and stress. Locating work stations away from heat and cooling vents provides for increased operator comfort. Printers are often a major source of excessive noise for computer work. Decreased noise levels can be obtained by installing acoustic pads and covers for printers or by locating printers in another room or at a distance from workers.
- E. **Maintenance of Equipment:** Regular inspection of terminals and work station equipment should be conducted by the operator as part of their regular duties. Frequent inspections of the display screen controls should be conducted to ensure they are operating correctly, as well as chair adjustments. Screens should also be dusted regularly to provide maximum visual clarity. The manager or supervisor should periodically monitor this activity to ensure that operators are carrying out their responsibilities. In the event that service is necessary, the vendor should be contacted.
- F. **Computer Work Routine Interruptions:** Employees should periodically be given the opportunity to work on alternate tasks, enabling the operator to flex other parts of their body and adjust vision to different site conditions. Alternate tasks are particularly important when the operator spends a large amount of uninterrupted time at the terminal. Incorporating non-computer tasks into the job whenever possible is helpful in relieving the monotony that can be caused by performance of repetitive tasks and can give the employee the opportunity to build additional job skills. In addition to the above recommendations, the collective bargaining agreement between the State of Minnesota and AFSCME, Council No. 5, provides for alternative work assignments or a rest period during each four-hour period, in addition to the regular rest periods (Article 11, Section 3E).

APPENDIX L - STATUTORY LEAVES

Following are the citations for leaves designated by the Legislature. These leaves are subject to change or repeal. These leaves are not grievable or arbitrable under Article 17 of this contract.

Statute Number	Subject of Statute
3.088	Leave of Absence to Serve as a Legislator or For Election to a Full-time City or County Office
15.62	Athletic Leave of Absence

Statute Number	Subject of Statute
43A.185	Disaster Volunteer Leave
43A.187	Blood Donation Leave
43A.32	Leaves of Absence for Classified Employees Who Become Elected Public Officials or Candidates
181.940 - 181.9413	Parenting Leave, School Conference and Activities Leave, and Sick Leave Benefits: Care of Relatives
181.945	Bone Marrow Donation Leave
181.9455	Organ Donor Leave
181.946	Leave for Civil Air Patrol Service
181.947	Leave for Immediate Family Members of Military Personnel Injured or Killed in Active Services
181.948	Leave to Attend Military Ceremonies
192.26, 192.261	Military Service Leave
202A.135	Leave Time from Employment; Party Officers; Delegates to Party Conventions
202A.19	Precinct Caucus Leave
204B.195	Time Off From Work to Serve as Election Judge
204C.04	Time Off to Vote in a State Primary Election, a Presidential Primary Election, or an Election to Fill a Vacancy in the Office of United States Senator or United States Representative

APPENDIX M

The Statewide Family and Medical Leave Act (FMLA) Policy, Procedure, and General Memo are available online at:

- https://mn.gov/mmb/assets/1409-fmla-pol-consolidated_tcm1059-233700.pdf;
- https://mn.gov/mmb/assets/1409P--FMLA_tcm1059-233699.pdf;
- https://mn.gov/mmb/assets/2014-6fmlaguidance_tcm1059-125163.pdf

The Statewide Reimbursement for Safety Footwear is available on line at:
https://mn.gov/mmb/assets/1410---Safety-Footwear_tcm1059-124721.pdf.

These policies, procedures and memos are not grievable or arbitrable under this Collective Bargaining Agreement.

APPENDIX N – LETTERS

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DATE: June 30, 1991

TO: Agency Heads

FROM: Nancy Arneson McClure /s/
Deputy Commissioner - Labor Relations

PHONE: 296-8934

RE: Employee Involvement in Purchasing Decisions

During the recent round of negotiations between the State and AFSCME, Council No. 6, AFL-CIO, the Union expressed concerns regarding the lack of employees' participation and involvement in agency-level purchasing decisions on equipment and technologies. As a means of resolving this issue, we agreed to forward AFSCME's concerns directly to state agency heads.

Although it is understood that employees will not be making the ultimate purchasing decision, it is often helpful for supervisors and managers to consider the concerns and views of the employees before such decisions are made. In many cases, employees who currently operate the equipment or who will operate any new equipment/technology can offer valuable information, insight, and expertise regarding the various considerations that are involved in making equipment/technology purchasing decisions. For example, employees can offer suggestions concerning what type of equipment/technology to purchase, which type of equipment/technology best fits the needs of the workplace/operator, which type of equipment/technology would be most compatible with existing equipment/technology, etc.

The 1991-93 Agreement between the State of Minnesota and AFSCME, Council No. 6 agreed that purchasing would be discussed in the joint labor management committee for each state agency.

We are not implying with this memorandum that all agencies deny their employees opportunities for offering input into purchasing decisions. We do, however, want you to be aware of the perceptions which AFSCME has brought to our attention.

Please contact me should you have any questions or comments.

NM:tg

cc: Labor Relations Directors/Designees

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Minnesota Department of Employee Relations



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St. Paul, MN 55155
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www.doer.state.mn.us

August 7, 1995

Mr. Peter Benner
Executive Director
AFSCME, Council No. 6, AFL-CIO
256 Lafayette Road
St. Paul, MN 55107-1683

Dear Mr. Benner:

During the 1995-1997 negotiations between the State and AFSCME, the State agreed to provide a letter explaining our understanding of employees' rights to access and contest information in personnel and supervisor files under the statutes. This letter is not grievable or arbitrable and is subject to future changes under the law. Under the provisions of the Minnesota Data Practices Act, an employee has the right to access personnel data and to authorize release of such data to representatives, provided that the data is specific to the individual making the request and provided that the data have not been designated as confidential or protected non-public. In State agencies, personnel data on employees is maintained by Human Resource offices and management/supervisory staff. The contents of these personnel files, other than any data designated as confidential or protected non public, shall be disclosed to the employee upon request and in accordance with agency procedures. Questions pertaining to the contents of these files should be brought to the attention of the person responsible for maintaining the data.

Additionally, an employee has the right to formally contest the accuracy or completeness of this data. To exercise this right the employee is required to notify the responsible authority in writing describing the nature of the disagreement. Within 30 days the responsible authority must either 1) correct the data found to be inaccurate or incomplete or 2) notify the individual that they believe the data to be correct. This determination may then be appealed pursuant to the Administrative Procedure Act relating to contested cases. Further details are set forth in Minn. Stat., Section 13.04, subd. 4, and Minn. Rules, Chapter 1205 and are subject to future changes in the law or rule. Employees do not have any unilateral right to decide what materials should be placed in their personnel file - only to contest whether the data placed there by the responsible authority is complete and accurate.

Sincerely,

John Kuderka /s/
Deputy State Negotiator
Labor Relations/Compensation Division

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August 21, 2003

Mr. Peter Benner, Executive Director
AFSCME Council No. 6, AFL-CIO
300 Hardman Avenue South, Suite 3
South St. Paul, MN 55075-2470

Dear Mr. Benner:

During 1996, the Joint Labor/Management Committee on Employee Assistance developed the following parameters and guidelines on leave time for EAP appointments.

EAP Parameters:

- The EAP acts primarily as an assessment, short-term counseling and referral agency.
- Counseling sessions in state EAP offices are usually one hour in length.
- The majority of EAP clients are provided one or two counseling sessions. Occasionally, EAP clients will be seen up to four sessions, but these are usually spaced out over several weeks.

Guidelines on leave time for EAP Appointments:

- State time should be allowed for all supervisory-suggested referrals to EAP.
- Self-initiated use of EAP could be granted state time, vacation or sick leave.
- Vacation leave or sick leave may be used if an employee does not want to request the use of State time through his/her supervisor.
- On occasions when EAP refers the employee to community resources, the employee would be expected to use sick leave for health related issues covered under insurance plans and vacation leave for all other concerns, i.e., financial, career, and marriage counseling.

Sincerely,

A handwritten signature in cursive script that reads "Paul A. Larson".

Paul A. Larson
Deputy Commissioner

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Minnesota Department of Employee Relations



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DATE: August 13, 1997

TO: State Supervisors
Human Resource Directors/Designees
Labor Relations Directors/Designees

FROM: John Shabatura /s/
Deputy Commissioner

PHONE: 296-8273

RE: Employee Performance Reviews

As part of the negotiations with AFSCME for the 1997-1999 labor contract, we had extensive discussions regarding the appropriateness of AFSCME leadworkers attending the performance evaluations of other AFSCME employees.

It is our recommendation that AFSCME leadworkers not be included in the actual evaluation meeting of a fellow bargaining unit member. It is, however, appropriate for a leadworker to provide input for such evaluation.

If you have questions, please contact your Labor Relations Representative.

JS:can

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Minnesota Department of Employee Relations

DATE: July 1, 2001

TO: HR Directors/Designees
Labor Relations Representatives/Designees

FROM: Donald J. Wodek, Deputy Commissioner /s/
Labor Relations

PHONE: (651) 296-8273

RE: Training Supervisors

During the 2001-2003 negotiations between the State of Minnesota and AFSCME, Council No. 6, AFL-CIO, the Union expressed concerns regarding issues detailed below. As a means of resolving these issues, the parties agreed to resolve them via a letter. This letter is not grievable or arbitrable and is subject to change when necessary to comply with Minnesota and federal laws.

Pursuant to the State's agreement with AFSCME, please instruct your supervisors of the following:

1. When the criteria for removal of filed material under Article 16 - Discipline and Discharge, Section 7C are met, the material shall be removed from both the official personnel file and from any supervisory files and offered to the employee before being destroyed.
2. Upon request from the Union or the employee, the Human Resource Office shall remove any undated document or item in the employee's personnel file and offer it to the employee before being destroyed.
3. In filling a vacancy under Article 12 - Vacancies, Filling of Positions, Section 7E, structured interview questions shall be prepared and scoring weights determined prior to the interview.

If you have any questions regarding these, please contact your Labor Relations Representative.



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June 18, 2003

Mr. Steve Kreisberg
Associate Director
Research and Collective Bargaining Services
AFSCME International, AFL – CIO
1625 L Street, N.W.
Washington, D.C. 20036-5687

RE: Probationary Periods and Military Leave

Dear Mr. Kreisberg:

During the 2003 – 2005 round of bargaining, questions regarding the effect of Military Leave on a probationary period became an issue. In support of discussions that occurred at the table, the State offered to draft this letter outlining the current Department of Corrections (DOC) practice with respect to these issues.

Upon notice of military orders that will result in an extended leave of absence (e.g., more than 10 consecutive days), the DOC will place the employee on a Military Leave of Absence through the extent of his/her orders. If at the time of the commencement of the leave, the employee is serving a probationary period, any days in excess of ten (10) consecutive working days shall be added to the duration of the probationary period. Accordingly, upon return from the Military Leave of Absence, the employee will continue serving his/her probationary period through the balance of the remaining time. If the employee satisfactorily performs his/her job, and is therefore certified, the employee will be given permanent status, promoted (if applicable), and given retroactive pay and class seniority in the new class back to the date the probationary period would have been completed but for the Military Leave of Absence. Additionally, while the employee is out on military leave, s/he will continue to accrue vacation leave, sick leave, and state seniority. If the employee does not satisfactorily perform his/her job, the employee will be non-certified.

Sincerely,

A handwritten signature in black ink, appearing to read "Amy J. McKee", is enclosed within a rectangular box.

Amy J. McKee
Labor Relations Rep., Sr.
Labor Relations Bureau
Department of Employee Relations
(651) 296-6019

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Minnesota Department of Employee Relations

June 30, 2003

Mr. Steve Kreisberg
Associate Director
Research and Collective Bargaining Services
AFSCME International, AFL – CIO
1625 L Street, N.W.
Washington, D.C. 20036-5687

RE: Deletion of language

Dear Mr. Kreisberg:

During the 2003 – 2005 round of bargaining, the parties agreed to delete references and provisions relating to the terms and conditions of employment for part-time, seasonal, and student workers in the new 2003 – 2005 State of Minnesota and AFSCME Unit 8, AFL – CIO agreement because the Department of Corrections (DOC) did not utilize these employment conditions and/or classes in this unit. However, the parties also agreed that if the DOC decides at any time in the future to utilize these employment conditions and/or classes in Unit 8, the provisions applicable to such employment conditions and/or classes shall be those contained in the State of Minnesota and AFSCME Council 6, AFL – CIO agreement that is current at the time DOC makes the decision to utilize these employment conditions and/or classes. The parties further agreed to negotiate any changes and/or modifications to that reinstated language either during the following round of bargaining and/or during supplemental negotiations. This letter serves to confirm the parties mutual understanding.

Sincerely,



Amy J. McKee
Labor Relations Rep., Sr.
Labor Relations Bureau
Department of Employee Relations
(651) 296-6019

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Minnesota Department of Employee Relations

DATE: March 22, 2004

TO: Wardens, Human Resource Directors and Designees, Watch Commanders, Captains,
and Lieutenants

FROM: Amy J. McKee, LR Rep., Principal, Department of Employee Relations
Sid Helseth, Senior Business Agent, AFSCME Council 6, AFL – CIO



RE: Interpretive Guidelines – Shift Exchanges

On Thursday, January 8 and Friday, January 30, 2004, representatives of the Bureau of Mediation Services, Department of Employee Relations, AFSCME Council 6, AFL – CIO, Department of Corrections, and Unit 208 – Correctional Officers met to discuss a variety of issues surrounding shift exchanges. The outcome of these meetings resulted in some substantive changes to the contractual language regarding Shift Exchanges (see Article 5, Hours of Work) and these Interpretive Guidelines. The Guidelines are intended to be a resource to all parties involved with respect to the interpretation of the language contained in Article 5 as well as establish a uniform interpretation of the language. While nothing in this letter is grievable or arbitrable, it is intended to set a precedent for the utilization and interpretation of the language contained in Article 5. The guidelines are as follows:

1. Once an exchange has been approved, the exchange follows the employee. If either employee bids to a new shift, the payback transfers to the new shift(s). For example, Employees A and B both work first watch, but have different days off, and agree to a shift exchange. Employee A works for Employee B but before Employee B works for Employee A, Employee A bids to second watch. When the date of payback arrives for Employee B, Employee B must work Employee A's second watch shift.
2. If an employee bids to the same shift and days off that the employee is scheduled to work the payback, the employee must notify the Appointing Authority of the conflict. The employee owes the Appointing Authority the time and will work with the Appointing Authority to find a mutually agreeable alternate payback date. If the parties cannot agree on an alternate payback day, then the Appointing Authority may adjust the employee's schedule for one (1) work week to accommodate an alternate payback day. The alternate payback day may include the employee's scheduled day off.

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3. The Appointing Authority retains the right to deny a shift exchange based on the institutional needs of the facility. Such denial will not be deemed unreasonable if approving the exchange would result in:
 - a. No CO3's on shift;
 - b. No A or B Level Responders on shift;
 - c. No weapons qualified employees on shift;
 - d. No respirator qualified employees on shift;
 - e. No warrants qualified employees on shift;
 - f. No count control qualified employees on shift; or
 - g. No first turn-key qualified employees on shift.

Additionally, an Appointing Authority may deny a shift exchange if one of the parties to the exchange is on a light duty assignment that cannot be accommodated if the exchange were to be approved.

4. It is the intent of the parties to treat an approved shift exchange as the employee's regularly scheduled shift to every extent possible. Therefore, the Appointing Authority will treat failure to report to duty, lateness for duty, or sick call in (see Article 9, Sick Leave) for a shift exchange payback in the same or similar manner as if the payback had been the employee's regularly scheduled shift. This may, however, result in the Appointing Authority issuing discipline, up to and including discharge, for such infractions.
5. Previously approved shift exchanges that are part of a continuous vacation period cannot be cancelled by either party once the vacationing employee has left for vacation. For example, Employee A requests a period of vacation but is unable to get two days of vacation in the middle of the request. Employee B agrees to participate in a shift exchange with Employee A so that Employee A may take a continuous vacation. Once Employee A completes his/her last scheduled shift prior to the commencement of the vacation period, the shift exchange cannot be cancelled by either party even if the cancellation would be fifteen (15) calendar days or longer.
6. When employee cancels a shift exchange fifteen (15) calendar days or more in advance of the first exchanged shift, the canceling employee must also notify the other party to the exchange of the cancellation in addition to the written notice to the watch commander(s) or employee's scheduling supervisor(s).

cc: Josh Tilson, Mediator, Bureau of Mediation Services



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September 3, 2003

Mr. Steve Kreisberg
Associate Director
Research and Collective Bargaining Services
AFSCME International, AFL – CIO
1625 L Street, N.W.
Washington, D.C. 20036-5687

RE: Exposure to Hazardous Substances

Dear Mr. Kreisberg:

During the 2003 – 2005 round of bargaining, the parties had a number of discussions regarding the Department of Corrections (DOC) contracting with local clinics and hospitals to cover emergency costs related to any drug(s) deemed necessary in the case of an employee exposure to hazardous substances.

This letter serves to document that during the course of those discussions, both parties acknowledged that the DOC has taken the appropriate steps to establish such contracts. Further, the parties agreed that this program is operating smoothly and that exposed employees are able to immediately seek appropriate medical attention with all associated costs being billed directly to the DOC.

Sincerely,

Amy J. McKee

A handwritten signature in cursive script, reading "Amy J. McKee", enclosed in a rectangular box.

Labor Relations Representative, Senior
Labor Relations Bureau

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Minnesota Department of Employee Relations



DATE: August 15, 2014

TO: State Supervisors
Human Resource Directors/Designees
Labor Relations Directors/Designees

FROM: Marcy Cordes, Assistant Commissioner/State Negotiator
Labor Relations Division

A handwritten signature in cursive script, reading "Marcy Cordes", enclosed in a thin black rectangular border.

RE: Further Expansion of Sick Leave Benefits

On August 1, 2013, the Minnesota legislature passed a law which expanded employees' entitlement to use accrued sick leave benefits, allowing them to use paid sick leave for reasonable periods of time as the employee's attendance may be necessary due to the illness or injury of the following family members:

- Adult children
- Spouse
- Brother or Sister
- Parent
- Stepparent
- Grandparent

The legislature has since passed further legislation effective August 1, 2014 which now allows employees to use sick leave as the employee's attendance may be necessary due to illness or injury of the following family members in addition to those named above:

- Grandchild
- Father-in-law
- Mother-in-law

In addition, the expanded law also allows employees to use sick leave for the purposes of obtaining assistance or providing assistance to a relative as named above because of sexual assault, domestic abuse or stalking.

As before, this expanded use of sick leave does not require that the persons being cared for live in the employee's household. The employer may limit the use of personal sick leave for the reasons listed above to a cap of 160 hours in any 12-month period.

You are to apply the expanded provisions of the law, as well as the sick leave provisions of the applicable contract/Plan.

If you have any questions, please contact your Labor Relations representative.



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July 26, 2005

Eliot Seide
Executive Director
AFSCME, Council No. 5, AFL-CIO
300 Hardman Avenue South, Suite 3
South St. Paul, MN 55075-2470

Dear Eliot:

In the 2005-2007 round of bargaining between the State and AFSCME, the State agreed to provide a letter explaining the process for applying for vacancies under the Multi-Source Recruitment and Selection process. All employees are encouraged to submit their resume to the State's employment database. This may be done on-line by accessing the State Careers website at <http://www.careers.state.mn.us>, or by submitting a paper resume to Minnesota Management & Budget, 400 Centennial Building, 658 Cedar Street, St. Paul, MN 55155. Applicants who have submitted a resume may also create different job search agents which will provide them with an overnight email notification whenever a position meeting their search criteria is advertised. That website also includes tips on how to create a resume and apply for state jobs.

Under the Multi-Source Recruitment and Selection process, all unlimited classified position vacancies are advertised on the Minnesota Management & Budget's website. Applicants may apply for a specific vacancy on-line or by directly contacting either Minnesota Management & Budget or the agency with the vacancy. Agencies with vacancies may also search that employment database for resumes that best meet the advertised minimum qualifications.

Applicants are evaluated to determine whether or not they meet the advertised minimum qualifications. This evaluation may consist of a variety of job-related selection assessment tools, dependent upon the requirements of the position. As agencies proceed to fill their vacancy, they honor all contractual requirements related to vacancy-filling.

Questions about the application process should be directed to the Minnesota Management & Budget Job Information Line at (651) 259-3637. Questions about specific vacancies should be directed to the Human Resources Office of the agency with the vacancy.

Sincerely,

A handwritten signature in cursive script that reads "Paul A. Larson". The signature is written in black ink and is enclosed within a thin black rectangular border.

Paul Larson
Deputy Commissioner

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July 12, 2013

Tim Henderson
Field Representative
AFSCME Council 5 No. 5, AFL-CIO
300 Hardman Avenue South
South St. Paul, MN 55075

RE: Eligibility to Bid

Dear Tim:

As part of the negotiations with AFSCME Unit 208 for the 2013 – 2015 labor contract, discussions were held regarding Article 12 – Vacancy Filling Language, Section 6, Eligibility for Bidding and Section 7, Filling Positions. This letter is intended to clarify that Corrections Officers who are on a leave of absence will be considered to be eligible bidders for purposes of awarding a bid. If the Corrections Officer is awarded a bid and is unable to work in the position within 6 months from the date the bid was awarded, the position shall be considered a vacancy and shall be posted. The Corrections Officer will not be an eligible bidder until they return from the leave of absence, at which time they will be placed in the utility pool with the same shift and regular days off as their most recent post. The Corrections Officer must bid on an available position within 90 days of returning from the leave of absence or they will be permanently assigned to a vacant position.

While nothing in this letter is grievable or arbitrable, it serves to confirm the parties' mutual understanding.

Sincerely,

A handwritten signature in black ink, appearing to read "Joy Hargons", enclosed in a thin black rectangular border.

Joy Hargons
Labor Relations Representative Principal
Labor Relations Division
(651) 259-3755



August 4, 2021

Joe Broge

AFSCME Council 5, AFL-CIO

300 Hardman Avenue S., Suite 3

South St. Paul, MN 55075-2470

Re: Recruiting Incentive and Employee Referral Incentive -Pilots

Dear Mr. Broge,

As part of our negotiations with AFSCME, Council 5, AFL-CIO, Unit 8 for the 2021-2023 Agreement, the parties discussed and agreed to the following Pilot Programs:

Recruiting Incentive (Pilot).

- With the advance approval of MMB, Appointing Authorities may offer a recruitment incentive of up to \$5,000 to employees who accept hard-to-fill positions. Whether or not a position is deemed "hard-to-fill" is determined by MMB, and the Appointment Authority must seek approval from MMB prior to offering a hiring incentive.
- The incentive shall be paid in two (2) installments, the first of which occurs after successful completion of the required probationary period in a lump sum effective the pay period following the new hire's certification, and the second of which occurs after two (2) years of continuous satisfactory service in that hard-to-fill position.
- This provision is not subject to the grievance or arbitration process.

This provision becomes effective upon the contract's successful ratification by the legislature, and will sunset upon the ratification of the 2023- 2025 contract. However, employees awarded an incentive during this contract period remain eligible to receive the full payment in subsequent contracts even if this pilot program is discontinued.

Employee Referral Incentive (Pilot).

- At their discretion, Appointing Authorities may offer a referral incentive to current employees who successfully refer someone other than a current employee into hard-to- fill positions. Whether or not a position is deemed "hard-to-fill" positions is determined by MMB; once MMB determines that a position meets the "hard-to-fill" criteria, the Appointing Authority has the discretion to determine when a referral incentive may be given, within the parameters set forth in this section.
- Employees seeking a referral bonus must request one on a form approved by the Employer.
- The total amount of referral incentive shall not exceed \$1,000 and shall be paid in a single installment, no sooner than after the new hire has successfully completed probation and been certified.
- The referring employee must still be employed with the State in order to receive a referral incentive.
- This provision is not subject to the grievance or arbitration process

This provision becomes effective upon the contract's successful ratification by the legislature and will sunset upon the ratification of the 2023- 2025 contract. However, employees deemed eligible for a referral incentive during this contract period remain eligible to receive the full payment in subsequent contracts even if this pilot program is discontinued.

Sincerely,

Jennifer E. Claseman
Enterprise Director
Labor Relations
651-259-3758 (office)

Cc Kristin Batson
Dori Leland

400 Centennial Building • 658 Cedar Street • St. Paul, Minnesota 55155
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October 4, 2019

Jolene Catudio
Field Representative
AFSCME Council 5 No. 5, AFL-CIO
300 Hardman Avenue South
South St. Paul, MN 55075

RE: Probationary Periods

Dear Ms. Catudio:

During the 2019-2021 round of bargaining, the parties discussed the effect of a disabling injury qualifying for Injured on Duty pay in accordance with Article 18 Section 10 that occurs during a probationary period. I am providing this letter to follow up on the discussions that occurred at the table.

Upon notice of a qualified on-duty disabling injury in accordance with Article 18 Section 10 that will result in an extended leave of absence (i.e., more than 10 consecutive working days), the Department of Corrections will grant the employee a Medical Leave of Absence. If the employee is serving a probationary period, any unpaid leaves of absence in excess of ten (10) consecutive working days shall be added to the duration of the probationary period. Accordingly, upon return from the medical leave of absence, the employee will continue serving their probationary period through the balance of the remaining time. If the employee satisfactorily completes the probationary period, and is therefore certified, the employee will be given permanent status, promoted (if applicable), and obtain class seniority in the new class back to the date the probationary period would have been completed but for the medical leave of absence associated with the qualified on-duty disabling injury. Any employee who does not successfully complete the probationary period will not be certified.

Sincerely,

A handwritten signature in blue ink, appearing to read 'Jennifer E. Claseman'.

Jennifer E. Claseman
Enterprise Director
Labor Relations
651-259-3758 (office)

cc: Edwin Hudson

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APPENDIX O - GLOSSARY

The descriptions found in this glossary are provided for informational purposes only and are not binding upon the parties. In the event of a conflict between any description set forth herein and a definition set forth in the contract/agreement, law, rule, or Administrative Procedure, the terms of that document shall prevail.

Actively at Work - Employees are “actively at work” if they are on active payroll status and not using paid or unpaid leave.

A.D.A. (Americans with Disabilities Act) - A Federal law intended to prohibit the specific forms of discrimination that people with disabilities face.

Administrative Procedures - The procedures of Minnesota Management and Budget developed in accord with M.S. 43A.04, Subd. 4.

Advisory Testing - A process used to determine an employee’s qualifications in some transfer, demotion and/or layoff situations. An employee may be authorized to advisory test for transfer and demotion even though the exam is not currently open for application.

Agency - Department, commission, board, institution, or other employing entity of the civil service, in which all positions are under the same appointing authority.

Applicant Pool - A group of applicants who have been determined to meet the minimum qualifications for a vacant position.

Appointing Authority - A person or a group of persons empowered by the Constitution, statute, or executive order to employ persons in, or to make appointments to positions in the civil service.

Appointment Status - See Article 12, Section 2.

Arbitration - If a grievance has not been satisfactorily resolved after the third step and Council 5 chooses to arbitrate, an impartial person is selected from a list of people approved by the Council 5 and Minnesota Management and Budget to hear the grievance and render an impartial decision which is binding on the parties.

Bargaining Units - Pursuant to M.S. 179A.10, Subd. 2, groupings of employees determined by the Bureau of Mediation Services, based on the type of work performed. See Appendix A.

Bidding - See Article 12, Sec. 7.

Change in Allocation - Reclassification resulting from abrupt, management-imposed changes in the duties and responsibilities of a person. An occupied position changed in allocation is considered a vacancy. See Article 12 Section 8.

Claiming - An option for filling vacancies when bidding and use of seniority unit layoff lists is exhausted that allows employees on notice of layoff to request to transfer or demote to another seniority unit. This option normally occurs between the date an employee receives a layoff notice and the date the employee is laid off. See Article 15, Section 3D, 3g.

Class Layoff List - See Article 15, Sec. 3H (2).

Class Option - See Appendix F for definition and lists.

Class Seniority - See Article 4, Sec. B.

Class Specifications (Specs) - Minnesota Management and Budget's description of a job classification including typical responsibilities and the knowledge, skills and abilities required.

Classified Service - All positions now existing or hereafter created in the civil service and not specifically designated unclassified pursuant to M.S. 43A.08 or other enabling legislation.

Confidential Employee - A state employee whose work involves access to information subject to use in collective bargaining or participation in collective bargaining. These employees are not represented by AFSCME.

Copayment - The amount or percentage that an insured person pays for a certain service or product once any deductible, if applicable, has been paid.

Delegated Authority - The responsibility and accountability given to an agency by Minnesota Management and Budget to perform certain classification, compensation, and selection functions. This authority may vary from agency to agency.

Demotion - The downward movement of an employee to a class which has a maximum salary that is two or more salary steps below the maximum of the current class.

Disabled Person (as defined by the ADA) - A person who: 1) has a physical or mental impairment that substantially limits a major life activity, 2) has a record of such an impairment, or 3) is regarded as having such an impairment.

E.A.P. (Employee Assistance Program) - A service available to all state employees, which provides assistance and referral for a variety of situations including emotional, financial, family, and alcohol or chemical dependency problems.

Emergency Employee - An employee who is appointed for no more than 45 aggregate work days in any 12-month period for any single Appointing Authority.

Employer - Minnesota Management and Budget, which is considered the Employer of all Executive Branch State employees and employees of the three retirement systems.

Employment Condition - See Article 12, Section 2.

Equal Classes - See Transferable Classes.

Finalist Pool - A group of applicants from the applicant pool who have been determined to best meet all the qualifications for a vacant position.

First Report of Injury - Related to Workers' Compensation, a form used for reporting injuries that happen to employees during the course of performing their job duties.

F.L.S.A. (Fair Labor Standards Act) - Federal law which governs hours of work and overtime provisions for all workers.

F.M.L.A. (Family Medical Leave Act) - Federal law mandating up to 12 weeks of job protected leave to eligible employees for certain family and/or medical reasons consistent with the Act, relevant State law and collective bargaining agreements/plan.

Formulary Drugs - List of prescribed drugs covered by each health plan.

Garrity Warning - A warning given to an employee by an employer during an employment investigation that requires the employee to either provide information or be discharged for refusing to provide information. If such a warning is given, the employee may object to the use of such information in a subsequent criminal proceeding on the basis that a self-incriminating statement was made under duress.

Generic Drug - The chemical name of a drug as opposed to the brand name of the drug. For instance, Benadryl is the brand name of the drug Diphenhydramine.

Grievance - See Article 17, Sec. 1.

Hay Evaluation System - A system used by Minnesota Management and Budget to evaluate the relative know-how, problem-solving, and accountability of job classes. Information from Hay evaluations is used to compare job classes for purposes of compensation setting and pay equity.

Incumbent - Employee currently serving in a job.

Job Audit - Process by which a position is reviewed by Minnesota Management and Budget or Appointing Authority to determine the correct classification.

Just Cause - A standard upon which discipline is based.

Layoff List - See Class Layoff List and Seniority Unit Layoff List.

Liquidation - To deplete an employee's vacation, compensatory bank or sick leave severance either by paying it in cash or by crediting the cash equivalent value to the employee's HCSP as required under the terms of the collective bargaining agreement.

Long Term Disability - See Article 19, Sec. 7B.

MMB (Minnesota Management and Budget) - The Employer of all Executive Branch State employees and employees of the three retirement systems.

Mobility Assignment - Per Administrative Procedure 1.1, voluntary, limited assignments of classified permanent employees to alternative duties within another state agency/Appointing Authority, governmental jurisdiction, or private employer. Duration cannot normally exceed two years.

M.S. - Minnesota Statutes.

Non-continuous, Non-extended Operation - Appointing Authorities, or portions thereof, which do not have 24 hour, 7-day per week schedules.

O.S.H.A. (Occupational Safety and Health Act) - Federal law which governs safety and health issues in the workplace.

P.E.L.R.A. (Public Employee Labor Relations Act) - Minnesota Statute 179A which governs the relationships between public employers and their employees. Provisions include granting public employees the right to organize, requiring public employers to meet and negotiate with public employees and establishing the responsibilities, procedures and limitations of public employment relationships.

Position Description - A document which defines an individual job's duties and responsibilities and the knowledge, skills, and abilities required to perform them.

Promotion - The upward movement of an employee to a class which has a salary range maximum that is two or more salary steps higher than the maximum of the current class or which requires an increase of two (2) or more steps to pay the employee at the minimum of the new range.

Provisional Appointment - An appointment authorized when no fully qualified person is suitable or available for appointment. Appointment may not normally exceed 12 months. Person must be qualified in all respects except for completion of a licensure or certification requirement.

Qualified - For the purpose of position qualifications, qualified means the employee has the job-related knowledge, skills and abilities required for initial appointment to the position and necessary for satisfactory performance of the job. See also Appendix N.

Reallocation - See Article 12, Section 9.

Reclassification - Change in the allocation of a position to a higher, lower or equivalent class.

Recomparison - A change in the classification to which a vacant or occupied position in the unclassified service is compared (allocated). The new job class may be higher, lower, or equal, but the position and incumbent, if any, remain unclassified.

Re-instatement - The rehire of a former or current permanent or probationary classified state employee, into a vacancy in a previously held class, within four years of separation from the class.

Related Classes - As determined by Minnesota Management and Budget or Appointing Authority, those classes which are similar in nature and character of work performed and which require similar qualifications. See Article 4, Section 1E.

Seniority Unit - Defines the area in which an employee may bid and from which an employee is laid off. See Appendix E.

Seniority Unit Layoff List - See Article 15, Sec. 3H (1).

Short Term Disability - See Article 19, Sec. 7B.

State Seniority - See Article 4, Sec. 1A.

Student Worker - Students in secondary, post-secondary and graduate study who are employed in the unclassified service to assist them in reaching identifiable educational goals. Appointment may be up to 36 months in duration.

Tennessen Warning - An explanation provided under M.S. 13.04 of the Data Practices Act when someone is asked to supply private or confidential data to a state agency. The warning must identify: (a) the purpose and intended use of the data; (b) whether the individual may refuse or is legally required to supply the requested data; (c) any consequence arising from supplying/refusing to supply the data; and (d) the identity of persons authorized by law to receive the data.

Transfer - The lateral movement of an employee to a position in: 1) the same class in a different agency, or 2) a different class assigned to the same salary range, or 3) a different class with a salary range maximum less than two (2) steps higher than the maximum of the current class and where the employee's current salary is less than two (2) steps below the minimum of the new class. Reassignment of an employee does not constitute a transfer.

Transferable Classes - Classifications which have salary range maximums which are less than 2 steps apart and where the employee's current salary is less than two steps below the minimum of the new class. This can be approximately calculated at the high end by using the maximum hourly rate of the current class, adding two steps and subtracting one cent, and at the low end by using the minimum of the new class, subtracting two steps and adding one cent.

Unclassified Service - All positions specifically designated as not being classified pursuant to M.S. 43A.08 and other enabling legislation. Unclassified employees often accrue state seniority, but do not accrue class seniority. Unclassified positions are not subject to the bidding or layoff provisions of the contract, can be terminated at will, and are not subject to the just cause test. Unclassified employees do not normally serve a probationary period.

Unlimited Appointment - An appointment for which there is no specified maximum duration.

Vacancy - See Article 12, Sec. 1 for definition and exceptions.

Work Area - Management defined subunit of an Appointment Authority which determines an employee's bidding and bumping options and rights.

APPENDIX P - DRUG TESTING

A. INTRODUCTION

This drug and alcohol testing policy is the exclusive policy for AFSCME Council 5, AFL-CIO Bargaining Unit employees including the craft, maintenance and labor unit; service unit; health care non-professional unit; clerical and office unit; technical unit; and correctional officer unit; and is limited to drug and alcohol testing required by the U.S. Department of Transportation to implement the Omnibus Transportation Employee Testing Act of 1991 and relevant U. S. Department of Transportation regulations.

B. PERSONS SUBJECT TO TESTING

All employees who are required to hold a Commercial Driver's License and a Class A or Class B License as a condition of employment are subject to testing under applicable sections of this policy. These employees are subject to random, pre-employment, pre-placement, post-accident, reasonable suspicion, return-to-duty, and follow-up testing. The specific requirements for testing are governed by regulations promulgated by the U.S. Department of Transportation.

New employees and current employees who are appointed to CDL covered positions shall receive a copy of the Testing Plan within fourteen (14) days of appointment to a CDL covered position.

All time spent administering an alcohol or controlled substance test, including travel time, will be paid at the employee's regular rate of pay, or at the appropriate overtime rate, whichever is applicable. An employee may be removed from work following a positive test result through the provisions of Article 16 - Discipline and Discharge. The employer shall pay all costs associated with the administration of alcohol and controlled substance tests. The cost of testing the "split specimen" at a federally certified laboratory if so requested by the employee shall be borne by the Employer if such test result is negative. The employee will be responsible for the cost of testing the "split specimen" if such test result is positive.

C. CIRCUMSTANCES FOR REASONABLE SUSPICION DRUG OR ALCOHOL TESTING

The Appointing Authority shall request or require an employee to undergo drug and alcohol testing if the Appointing Authority has reasonable suspicion that an employee has violated the provisions of law and regulation governing alcohol concentration, alcohol possession,

on-duty use, pre-duty use, use following an accident, refusal to submit to a required alcohol or controlled substance test, controlled substance use, and controlled substance testing. Reasonable suspicion must be based on specific, contemporaneous, articulable observations concerning the appearance, behavior, speech or body odors of the driver. The observations may include indications of the chronic and withdrawal effects of controlled substances. Observations for alcohol testing must be made during, just preceding, or just after the period of the work day that the driver is required to be in compliance with the regulations. A driver can be directed to undergo reasonable suspicion alcohol testing only while the driver is performing safety-sensitive functions, just before the driver is to perform safety-sensitive functions, or just after the driver is to perform safety-sensitive functions.

A written record shall be made of the observations leading to an alcohol reasonable suspicion test and shall be signed by the supervisor making the observation.

A supervisor requesting a drug or alcohol test must have successfully completed training developed or approved by Minnesota Management and Budget on drug and alcohol abuse, on how to recognize impairment on the job, on how to make a reasonable suspicion determination, and on the Employer's and/or Appointing Authority's written work rules. The Joint Oversight Committee shall review all reasonable suspicion determinations with negative test results. The Employer agrees to allow the Union to review the training prior to implementation.

D. REFUSAL TO UNDERGO TESTING

Employees do not have the right to refuse to undergo drug and alcohol testing. If an employee refuses to undergo drug or alcohol testing required by the Appointing Authority, or who is found to have adulterated the sample, the employee shall be deemed to have violated the relevant prohibitions in the regulations. Consistent with federal regulations, in order to be eligible to return to safety-sensitive duties for any employer, the employee must follow the process of Substance Abuse Professional (SAP) referral, treatment, return to duty testing and follow-up testing as if the test were positive.

E. RIGHT TO UNION REPRESENTATION

An employee is entitled to Union representation pursuant to Article 16, Section 2 prior to any reasonable suspicion test. When the physical presence of a union representative is not practicable, the employee shall be allowed to confer with a union representative by telephone. Local Unions shall provide Appointing Authorities with the names and phone numbers of representatives who can be called to provide representation in such cases.

F. RIGHTS OF EMPLOYEES

An employee, for whom a positive test result on a confirmation test was the first such result on a drug or alcohol test required by the Appointing Authority shall not be discharged if:

1. The Appointing Authority has first given the employee an opportunity to participate in either a drug or alcohol counseling or rehabilitation program, whichever is more appropriate, as determined by the substance abuse professional trained in the diagnosis and treatment of chemical dependency; or
2. If a determination has been made by the substance abuse professional trained in the diagnosis and treatment of chemical dependency that no counseling or rehabilitation program is necessary. However, an employee who has either refused the offer to participate in the counseling or rehabilitation program, or has failed to successfully complete the program has no such protection against discharge.

Expenses for the above stated rehabilitation or counseling program shall be pursuant to coverage under a state employee benefit plan or any other insurance plan the employee is covered under.

In addition, employees have the following rights:

1. The right not to be discharged, disciplined, discriminated against, or requested or required to undergo rehabilitation on the basis of a positive test result from an initial screening test that has not been verified by a confirmation test;
2. The right not to be discharged, disciplined, discriminated against, or required to undergo rehabilitation on the basis of medical history information revealed to the Medical Review Officer concerning the reliability of, or explanation for, a positive test result;
3. The right to access information in the subject's personnel or drug and alcohol file relating to positive test result reports and other information acquired in the drug and alcohol testing process, and conclusions drawn from and actions taken based on the reports or acquired information. An employee who is the subject of a drug and alcohol test shall, upon written request to the Medical Review Officer, have access to any records relating to his or her drug or alcohol test;
4. The right of an employee who has made a timely request for a confirmation retest to suffer no adverse personnel action if the confirmation retest does not confirm the result of the original confirmation test, using the same drug or alcohol threshold detection levels as used in the original confirmation test.

G. DATA PRIVACY

The purpose of collecting urine or breath is to test that sample for the presence of drugs or alcohol. A sample provided for drug or alcohol testing will not be tested for any other purpose. The name, initials, and employee identification number of the person providing the sample are requested so that the sample can be identified accurately but confidentially. Information about medications and other information relevant to the reliability of, or explanation for, a positive test result is requested to ensure that the test is reliable and to determine whether there is a valid medical reason for any drug or alcohol in the sample. The Appointing Authority will not disclose the test result reports and other information acquired in the drug or alcohol testing process to another Appointing Authority or employer or to a third party individual, government agency, or private organization without the written consent of the person tested, unless permitted by law or court order. An Appointing Authority will not disclose the test result reports and other information acquired in the drug or alcohol testing process to other Appointing Authorities unless the information is requested in connection with another drug test, or unless disclosure is necessary to permit follow-up testing or return to work testing. All data on the request for a test, the testing, and test results shall be kept separate from the regular personnel files, in locked file cabinets, accessible only by those supervisors, managers or confidential employees directly involved in the case.

H. RANDOM TESTING POOL

The employer shall establish a single pool of employees for random drug and alcohol testing. This pool may include non-state employees.

I. SELECTION OF CONTRACTORS TO ADMINISTER POLICY

The employer may contract with appropriate firms to administer alcohol and controlled substance tests. Requests for proposals shall be reviewed with the Union prior to issuance. Employees shall be referred to substance abuse professionals under the State Drug and Alcohol Testing Plan. If the employer does decide to administer alcohol or controlled substance testing with state employees, no law enforcement personnel shall be used.

J. JOINT LABOR-MANAGEMENT OVERSIGHT COMMITTEE

The Union and the Employer agree to form a Joint Labor-Management Oversight Committee to review the implementation of alcohol and controlled substance testing. The committee shall be composed of eight representatives of the union and eight representatives of the employer. It shall meet upon request.